Heidelberg Materials Australia – construction materials business of MAAS

MN-50009

Phase 1 Determination

Acquisition may be put into effect with conditions

30 July 2026

Contents

1. Determination

Notified acquisition	Heidelberg Materials Australia Holdings Pty Ltd's (**HMAH**) proposed acquisition of Regional Group Australia Pty Limited, Macquarie Geotechnical Pty Limited and Machinery Sales Pty Limited, being wholly owned subsidiaries of Maas Group Holdings Limited (**MGH**), which together comprise MGH's construction materials business (**MAAS**) (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition may be put into effect, subject to conditions. The conditions are: 1. Heidelberg Materials AG and/or HMAH must divest, or procure the divestment of, each of the Divestiture Businesses to a purchaser or purchasers approved in writing by the ACCC and, where there is a section 87B undertaking in effect, in accordance with that undertaking. 2. If either Heidelberg Materials AG or HMAH, or any of their Related Bodies Corporate, still owns any of the Divestiture Businesses 10 business days after the date of the determination, Heidelberg Materials AG and/or HMAH must provide the ACCC with an executed undertaking under section 87B of the Act, in the form at Attachments A, B or C of the determination (as applicable) which provides for the divestiture of the relevant Divestiture Business, and comply with that undertaking. (together, the **Conditions**).
Parties to the Acquisition	The acquirer, HMAH (formerly known as Hanson Holdings Australia Pty Ltd), is part of the Heidelberg Materials Australia group and its ultimate parent entity is Heidelberg Materials AG. HMAH and its related entities in Australia (**HMA**) supply a range of construction materials, including ready mix concrete (**RMX**), quarry products (including coarse and fine aggregates), asphalt and sustainable / recycled construction materials. HMA (via related bodies corporate) also operates waste disposal and recycling facilities and holds interests in the following joint ventures (**JV**) in Queensland, NSW and Victoria: • Cement Australia – 50:50 JV with Holcim, which produces and sells cement • Western Suburbs Concrete Partnership - 50:50 JV with Total Concrete Solutions Pty Ltd, which primarily supplies concrete in Western Sydney • XL Premix Pty Ltd - 51% interest in a JV with XL Concrete (Vic) Pty Ltd (which has a 49% interest), which primarily supplies concrete in Melbourne • Metromix Pty Ltd – 50:50 JV with Holcim, which involves aggregate and concrete supply in Sydney, and

	• Lytton Sands JV - 50:50 JV with Boral for the extraction and processing of natural sand in Brisbane. HMA's construction materials brands include Hymix, Alex Fraser Group, Elvin Group, Pioneer North Queensland, High Quality Concrete and Midway Concrete. The target, MAAS, is the construction materials business of MGH, a diversified industrials group listed on the ASX. In addition to its construction materials division, MGH also operates a civil construction and hire business, a construction equipment manufacture and retailing business, and a property development business. The MAAS construction materials business operates RMX plants, hard rock and natural sand quarries, an asphalt business, a recycling centre, and also provides materials testing and geotechnical services, and machinery sales and earthmoving services. MAAS' construction materials brands include Austek Roads, Macquarie Geotech, Regional Group Australia, Cleary Bros, Nationwide Machinery Sales & Hire, PWE Quarry Services, Amcor, Cardinia Environmental Recycling, Aerolite Quarries, Economix, Dandy Premix and Casacir.
Reasons for determination	The reasons for the ACCC's determination are set out in sections 2 – 4.

2. Statement of Reasons

2.1 When making a determination in Phase 1, the Australian Competition and Consumer Commission (**ACCC**) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the *Competition and Consumer Act 2010* (Cth) (the **Act**). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers.

2.2 Where the ACCC is satisfied that the acquisition, if put into effect, could, in all the circumstances, have the effect of substantially lessening competition in a market, the ACCC may also consider whether any competition issues can be addressed by one or more conditions.

2.3 For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines.

2.4 In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, additional information provided by HMA and MAAS (the **Parties**), third party feedback and publicly available information.

2.5 For the reasons given below, the ACCC has determined that the Acquisition may be put into effect with conditions.

Overlap and relationship between the Parties

2.6 The Acquisition includes the following MAAS assets:

- 43 quarries (including hard rock and natural sand quarries) in Queensland, NSW and Victoria
- 18 fixed and 4 mobile RMX batching plants in Queensland, NSW and Victoria
- 4 operating asphalt sites in Queensland, NSW and the ACT and an asphalt site under construction in Victoria
- 1 heavy construction and demolition waste disposal and recycling facility in Victoria
- 5 fixed and 8 mobile materials testing and geotechnical services labs in Queensland, NSW and Victoria
- 3 machinery sales sites in Queensland, NSW and Victoria.

2.7 The Parties overlap in particular geographic areas in the supply of RMX, coarse and fine aggregates, asphalt, and recycling. In particular, they overlap in the supply of the following products in the regions set out below and, where relevant, in more localised catchment areas within those regions:

- **RMX** in Central Queensland (including Rockhampton and Blackwater), Dubbo, Geelong, Greater Melbourne (including Northwest Melbourne), Illawarra, Shoalhaven and Tamworth
- **Coarse aggregates** in Central Queensland (including Biloela, Castle Creek and Banana), Dubbo, Greater Melbourne, Greater Sydney (to the extent that coarse aggregate quarries in South Coast NSW supply Greater Sydney), South Coast NSW (including Illawarra and Shoalhaven) and South East Queensland
- **Fine aggregates** in Greater Melbourne
- **Asphalt** in Greater Melbourne (once MAAS' Pakenham plant becomes operational) and South East Queensland
- **Heavy building & demolition waste disposal and recycling services** in Greater Melbourne.

2.8 The Parties operate at upstream (coarse and fine aggregates) and downstream (RMX and asphalt plants) levels. HMA has a 50% interest in the Cement Australia JV which supplies cement, which is another input into RMX. This varies from region to region; in some areas the Parties are active at both levels, and in others, one or both Parties are active at only one level (such as in Gladstone in Central Queensland, where only MAAS supplies coarse aggregates and only HMA supplies RMX).

Industry background

2.9 RMX is produced at batching plants from a mixture of cement, water, coarse aggregates and fine aggregates, and delivered by agitator trucks for use on residential, commercial, industrial and infrastructure construction projects. Demand for RMX is closely linked to levels of residential building activity, commercial construction and government investment in infrastructure projects.

2.10 RMX is perishable and therefore not suitable to transport long distances or for lengthy periods of time. Information received by the ACCC indicates that the maximum time RMX can be transported before it begins to set is 60 to 90 minutes, however some customers may also prefer suppliers located in close proximity to limit transportation costs.

2.11 RMX is largely a standardised, commoditised product, with competition driven primarily by price, reliability and availability.

2.12 In addition to RMX, aggregates are also used in the production of asphalt and other end uses such as road base, ballast, fill material, drainage and landscaping. However, RMX and asphalt applications typically require higher grades of aggregates than other uses. The aggregates used in RMX and asphalt must comply with relevant Australian Standards.

2.13 Coarse aggregates are produced from hard rock quarries, involving the extraction and crushing of rocks to produce different sized particles, as well as recycled construction and demolition waste. Fine aggregates (such as sand) are also produced from quarries.

2.14 The Parties submit that while aggregates can technically be transported further distances than RMX, transportation costs constrain supply distances. Based on information from the Parties and third parties, aggregates are generally bulky, low-value-to-weight products and delivered prices increase with distance.

2.15 The Parties submit that the time and cost to establish a new fixed RMX plant is dependent on the capacity and location of the plant. Establishing a new RMX plant generally involves purchasing or leasing suitably located and zoned land, securing relevant regulatory approvals for the operation of a RMX plant, acquiring plant and equipment (including agitator trucks to deliver RMX to sites) and employing suitable staff.

2.16 The Parties submit that the time and cost required to establish a new quarry varies depending on its location, scale and other site-specific matters. Third party feedback emphasised long lead times for quarry development approvals and significant capital investment. The ability to establish a new quarry is also dependent on the location of naturally occurring hard rock reserves.

3. Competition Assessment

3.1 The ACCC has considered the effects of the Acquisition by comparing the likely future state of competition if the Acquisition proceeds against the continuation of the current state of competition (being the likely future state of competition if the Acquisition does not proceed) for the majority of markets considered**. [Redacted – Confidential]**.

Relevant areas of competition

3.2 The ACCC considers that, for the purposes of assessing the Acquisition, the relevant areas of competition are the supply of the products in the geographic areas identified in paragraphs 2.7 and 2.8 above. In assessing the relevant geographic dimensions of the relevant markets and the extent of competitive constraint from alternate suppliers, the ACCC had regard to relevant geographic constraints on the supply of RMX and coarse aggregates (as outlined in paragraphs 2.10 and 2.14 above), customer data provided by the Parties and third party feedback.

Competition effects in the supply of RMX in Illawarra

3.3 The ACCC is satisfied that, disregarding any conditions the ACCC could include, the Acquisition could, in all the circumstances, have the effect of substantially lessening competition in the supply of RMX in Illawarra. The ACCC considers that HMA is likely to have the ability to profitably increase prices and/or decrease the quality of RMX supplied in Illawarra post-Acquisition.

3.4 The ACCC has considered market shares in the Illawarra based on information supplied by the Parties, as well as other market data and third party feedback. Based on all the information available, the ACCC considers that MAAS is currently the largest RMX supplier in the Illawarra. HMA, Boral and Holcim are the next largest RMX suppliers, each with two RMX plants in the north and south of the Illawarra region. Smaller competitors, Hytec and Southern Premix, each operate one RMX plant in the area.

3.5 Post-Acquisition, HMA would have a significant market share. Alternative suppliers are unlikely to pose a sufficient constraint on HMA post-Acquisition as they have relatively low market shares and third party feedback indicated that alternative suppliers may not constrain HMA to the same extent across all customers and locations in Illawarra.

3.6 The ACCC also found that new entry was unlikely due to the factors discussed at paragraph 2.15 above. In particular, third party feedback indicated that the cost of new entry into Illawarra, a metropolitan area, was likely higher than regional or rural areas due to environmental regulations as well as the cost of land. Relevantly, third party feedback received by the ACCC indicates that recent changes to the Illawarra RMX market have occurred by acquisition of existing suppliers only, rather than the establishment of new businesses.

Competition effects in the supply of RMX in Blackwater

3.7 The ACCC is satisfied that, disregarding any conditions the ACCC could include, the Acquisition could, in all the circumstances, have the effect of substantially lessening competition in the supply of RMX in Blackwater. The ACCC considers that HMA is likely to have the ability to profitably increase the prices and/or decrease the quality of RMX supplied in Blackwater post-Acquisition.

3.8 Blackwater is a rural town, located approximately 80km east of Emerald and approximately 200km west of Rockhampton in Queensland. The Parties are the only two suppliers of RMX in Blackwater and therefore each other's closest competitor in an already concentrated market.

3.9 The closest alternative RMX plant is located in Emerald. However, due to the perishable nature of RMX as outlined in paragraph 2.10 above, the ACCC found that alternative RMX plants located outside of Blackwater were unlikely to impose a sufficient competitive constraint on HMA post-Acquisition.

3.10 The ACCC found that there was a low likelihood of timely new entry due to the factors discussed above at paragraph 2.15. In particular, the ACCC had regard to the cost of new entry relative to the small size of the town of Blackwater and limited demand for RMX.

Competition effects in the supply of coarse aggregates in Central Queensland

3.11 The ACCC is satisfied that, disregarding any conditions the ACCC could include, the Acquisition could, in all the circumstances, have the effect of substantially lessening competition in the supply of coarse aggregates in Central Queensland. The ACCC considers that HMA is likely to have the ability to profitably increase the prices and/or decrease the quality of coarse aggregates supplied in Central Queensland post-Acquisition.

3.12 In Central Queensland, HMA operates a coarse aggregate quarry at Yalkara, and MAAS operates two quarries at Banana and Castle Creek. Based on information provided by the Parties and third party feedback, the ACCC considers that the market is already highly concentrated. Limited alternative suppliers, of which Kianga Quarries is the closest geographically, are unlikely to impose a sufficient constraint.

3.13 While HMA currently has a relatively small pre-Acquisition market share, absent any condition, it would have a significant post-Acquisition market share. The ACCC considers that establishment of a new coarse aggregate quarry is unlikely to be timely for the reasons outlined in paragraph 2.16 above.

Competition effects in other markets

3.14 The ACCC has considered a number of other areas of overlap as well as the actual and potential vertical relationships between the Parties. Based on the evidence before it the ACCC does not consider the Acquisition is likely to have the effect of substantially lessening competition in any other market. The reasons for this are set out below.

Competition effects in other RMX markets

3.15 In relation to the supply of **RMX in Tamworth**, the ACCC found that the Acquisition is unlikely to have the effect of substantially lessening competition. Critical to this conclusion was the fact that **[Redacted – Confidential]**.

3.16 In relation to the supply of **RMX in Dubbo**, the ACCC considers that, while the Acquisition would result in an increase in HMA's market share, the Parties would continue to face competition from alternative suppliers. These suppliers include Boral, Holcim, KB Concrete and Dubbo Mini Mix. The ACCC also considered, based on third party feedback and information supplied by the Parties, that some of these alternative suppliers have a material market presence and capacity relative to demand to increase their RMX production in response to any attempt by HMA post-Acquisition to raise prices or otherwise lessen competition.

3.17 The ACCC also considered whether the Acquisition would give HMA the ability and incentive to foreclose rival RMX suppliers in Dubbo by limiting or worsening the terms of supply of coarse aggregates. However, the ACCC found that it is unlikely that HMA would have the ability and incentive due to the presence of alternative suppliers of coarse aggregates.

3.18 In relation to the supply of **RMX in the Shoalhaven** in the South Coast of NSW, the ACCC considers that the presence of alternative suppliers, including Eziway Concrete, Boral and Holcim are likely to constrain HMA post-Acquisition.

3.19 In relation to the supply of **RMX in Rockhampton**, the ACCC considers that the presence of alternative suppliers, including Holcim, Tandy, Boral, Hopkins Brothers and Rockhampton Mini Mix, are likely to constrain HMA post-Acquisition. The ACCC also considered that several rival RMX suppliers are located geographically closer to HMA's Rockhampton plant than MAAS' plant, which supported the view that customers have alternative suppliers available.

3.20 In relation to the supply of **RMX in Gladstone in Central Queensland**, the Acquisition would combine HMA's RMX plant and MAAS' coarse aggregate quarry and RMX plant. The ACCC therefore considered the potential for HMA to foreclose rival RMX producers from access to MAAS' coarse aggregates. However, based on information from the Parties and third party feedback, the ACCC considers that due to the presence of a rival coarse aggregate quarry, Butlers, HMA is unlikely to have the ability and incentive to foreclose access to coarse aggregates.

3.21 In relation to the supply of **RMX in Melbourne**, while there has been recent consolidation of RMX suppliers in Melbourne and the Acquisition would result in further market concentration, the ACCC considers that HMA would continue to face competition from alternative suppliers. These include Barro, Boral and Holcim, each of which operates multiple RMX plants across Melbourne, as well as a range of other competitors. The ACCC also had regard to the scale of demand in a large market such as Melbourne and examples of recent new entry and expansion by suppliers. While some market participants raised concerns about competition in Melbourne markets, the ACCC ultimately found that customers would continue to have access to competitive alternatives.

3.22 In relation to the supply of **RMX in areas other than those addressed above**, the ACCC does not consider the Acquisition is likely to result in a significant impact on competition due to a lack of competitive overlap, low market share aggregation and/or the presence of alternative suppliers.

Competition effects in other fine and coarse aggregate markets

3.23 In relation to the supply of **coarse aggregates in Dubbo**, the ACCC considers, based on information and documents from the Parties and third party feedback, that the presence of multiple large alternative suppliers with remaining quarry reserves, including Boral and Holcim, are likely to constrain HMA post-Acquisition.

3.24 In relation to the supply of **coarse aggregates in the South Coast of NSW**, the ACCC considers, based on information and documents from the Parties and third party feedback, that the presence of alternative large suppliers with remaining quarry reserves, including Boral and Holcim, are likely to constrain HMA post-Acquisition.

3.25 In relation to the supply of **coarse aggregates into Greater Sydney**, the ACCC received submissions from third parties expressing concerns that the Acquisition may remove MAAS as a future competitor for the supply of coarse aggregates into

Greater Sydney. The ACCC closely considered these submissions. Based on all the information before it, the ACCC found:

- MAAS is not currently a significant supplier of coarse aggregates into Greater Sydney.
- **[Redacted – Confidential]**.
- There are multiple alternative quarries supplying coarse aggregates into Greater Sydney, including in the South Coast of NSW, Blue Mountains / Oberon region, the Central Coast of NSW and Newcastle / Lower Hunter region. Having regard to the presence of other competitors with remaining reserves, HMA would be constrained post-Acquisition.

3.26 The ACCC also considered whether the Acquisition would give HMA the ability and incentive to foreclose downstream (RMX or asphalt) rivals. However, the ACCC considers that this was unlikely, given there are multiple alternative quarries supplying coarse aggregates into Greater Sydney that these rivals could switch to.

3.27 In relation to the supply of **coarse and fine aggregates in Melbourne**, the ACCC considers that the presence of alternative suppliers, including Boral, Barro and Holcim, are likely to constrain HMA post-Acquisition. The ACCC also considered potential customer foreclosure post-Acquisition in response to concerns from third parties that MAAS is one of the largest non-vertically integrated RMX suppliers in Melbourne. However, the ACCC considered that rival quarry owners would continue to have sufficient customers post-Acquisition, including as quarry reserves in Melbourne diminish. These concerns also related to consolidation in the industry more generally, however these concerns were not sufficiently connected to a competition issue arising from the Acquisition.

3.28 In relation to the supply of **coarse aggregates in South East Queensland**, the ACCC notes that MAAS' coarse aggregate quarry is **[Redacted – Confidential]**. On this basis, the ACCC considers that the Acquisition is unlikely to result in consolidation in this market, and in any event, multiple alternative suppliers would remain, including Boral, Holcim and Karreman Quarries. The ACCC also considered the likelihood of customer foreclosure. However, third party feedback indicated that demand for coarse aggregates is increasing significantly in South East Queensland due to a number of residential developments, infrastructure projects and construction related to the 2032 Olympic Games. As such, the ACCC found that the Acquisition is unlikely to have the effect of substantially lessening competition in this regard.

3.29 In relation to the supply of **aggregates in areas other than those addressed above**, the ACCC does not consider the Acquisition is likely to result in a significant impact on competition due to a lack of competitive overlap, low market share aggregation and/or the presence of alternative suppliers.

Competition effects in asphalt, recycling and cement markets

3.30 The ACCC is not satisfied that the Acquisition would, in all the circumstances, be likely to have the effect of substantially lessening competition in:

- any markets for the supply of asphalt and recycling in Melbourne due to the presence of several competitors that are likely to constrain HMA post-Acquisition

- any markets for the supply of cement.

3.31 **[Redacted – Confidential]**. The ACCC considers that HMA would be unlikely to have the ability and incentive to foreclose rival cement suppliers, **[Redacted – Confidential]**.

3.32 The ACCC also does not consider that any other vertical theory of harm arises in relation to asphalt and recycling.

4. Conditions

4.1 The ACCC has determined under s51ABZE(1) of the Act that the Acquisition may be put into effect, subject to the following conditions:

1. Heidelberg Materials AG and/or HMAH must divest, or procure the divestment of, each of the Divestiture Businesses to a purchaser or purchasers approved in writing by the ACCC and, where there is a section 87B undertaking in effect, in accordance with that undertaking.
2. If either Heidelberg Materials AG or HMAH, or any of their Related Bodies Corporate, still owns any of the Divestiture Businesses 10 business days after the date of the determination, Heidelberg Materials AG and/or HMAH must provide the ACCC with an executed undertaking under section 87B of the Act, in the form at Attachments A, B or C of the determination (as applicable) which provides for the divestiture of the relevant Divestiture Business, and comply with that undertaking.

4.2 The ACCC must not include conditions unless it is satisfied that, disregarding any conditions the ACCC could include, the Acquisition, if put into effect, could, in all the circumstances, have the effect of substantially lessening competition in any market.

4.3 The ACCC must have regard to all relevant matters, and may have regard to the effect on the interests of consumers that compliance with the conditions would have, or be likely to have, or any consumer benefits that would result, or be likely to result from compliance with the conditions.

4.4 It is a contravention of section 45AZ of the Act for a person to put the Acquisition into effect and to not comply with any conditions. Where a person does not comply with conditions, the Federal Court may make orders including, in some circumstances, divestiture or a declaration that the acquisition is void.

Assessment with the Conditions

4.5 As set out above, the ACCC is satisfied that, disregarding any conditions the ACCC could include, the Acquisition could, in all the circumstances, have the effect of substantially lessening competition in the supply of RMX in Illawarra, the supply of RMX in Blackwater, and the supply of coarse aggregates in Central Queensland. To address this, the ACCC has decided to include the Conditions in its determination.

4.6 The objective of the Conditions is to address the competition issues identified in respect of the Acquisition, as set out in this determination and statement of reasons.

4.7 The Conditions are capable of resolving the competition issues in respect of the local markets for the supply of RMX in Illawarra, the supply of RMX in Blackwater and the supply of coarse aggregates in Central Queensland, as they require Heidelberg Materials AG and HMAH to:

- ensure that each Divestiture Business is sold to a purchaser approved by the ACCC that will result in the creation or strengthening of a viable, effective, stand-alone, independent and long-term competitor in relevant markets, and
- where applicable, give and comply with section 87B undertakings, that also require Heidelberg Materials AG and HMAH to:
  - ensure the purchaser of each Divestiture Business has all the necessary associated assets and rights to compete effectively with HMA in the relevant markets
  - maintain the economic viability, marketability, competitiveness and goodwill of each Divestiture Business prior to divestiture
  - provide for the effective oversight of Heidelberg Materials AG and HMAH's compliance with each undertaking.

4.8 The Conditions incorporate a remedy offer HMA made to the ACCC on 28 May 2026 in respect of the Yalkara quarry business and further remedy offers made to the ACCC on 29 June 2026 in respect of the Blackwater and Illawarra RMX businesses, with some changes that the ACCC considered appropriate including to reflect the ACCC's approval of a purchaser.

The Conditions address the competition issues

4.9 The Conditions address the competition issues set out above in each of Blackwater, Central Queensland and Illawarra, by:

- preserving an independent supplier and competitive constraint that would otherwise be lost as a result of the Acquisition, and
- facilitating the entry or expansion of an independent competitor through the divestiture to a purchaser approved by the ACCC.

The Conditions can be effectively implemented

4.10 The ACCC has also had regard to whether there are risks associated with implementation of the Conditions that may limit the effectiveness of the Conditions in addressing the competition issues. The ACCC considers the Conditions can be effectively implemented.

Composition of each Divestiture Business

4.11 Based on third party feedback, the ACCC considers that each Divestiture Business is appropriately configured and that a suitable purchaser may operate it effectively.

Emergence of an appropriate purchaser

4.12 The ACCC has decided to approve Corbet Property Pty Ltd as trustee for the Corbet Property Trust as the Approved Purchaser of the Blackwater RMX business and Corbet Quarries and Concrete Pty Ltd as the Approved Purchaser of the Yalkara quarry business. In making each of these decisions, the ACCC had regard to:

- the relevant undertakings,
- the relevant Proposed Purchaser Notices, including associated transaction documents,
- submissions, responses to information requests and correspondence from HMA and Corbet Quarries and Concrete Pty Ltd, and
- information obtained by the ACCC during its assessment of the Acquisition, including third party submissions.

4.13 In approving Corbet Property Pty Ltd as trustee for the Corbet Property Trust as the Approved Purchaser of the Blackwater RMX business and Corbet Quarries and Concrete Pty Ltd as the Approved Purchaser of the Yalkara quarry business, the ACCC had regard to the factors outlined at clause 6.7 of the relevant undertakings, and considers that both Corbet Property Pty Ltd as trustee for the Corbet Property Trust and Corbet Quarries and Concrete Pty Ltd satisfy those factors.

4.14 For the divestiture of HMA's Illawarra RMX business, based on submissions provided by the Parties and third party feedback, the ACCC considers there are suitable purchasers available to support a timely and effective divestiture to an ACCC-approved purchaser. The ACCC will consider the materials provided to it in a Proposed Purchaser Notice and may have regard to the factors set out in clause 6.5 of the relevant undertaking.

Integrity of each Divestiture Business and other considerations

4.15 The ACCC considers that the integrity of each Divestiture Business will be protected prior to divestiture, and took account of other considerations related to the effective implementation of the Conditions. The Undertakings are substantially in the ACCC's standard form and provide for comprehensive obligations, including:

- Divestiture Business Protection obligations on HMA,
- appointment of an ACCC-approved independent manager to manage each Divestiture Business prior to divestiture if divestitures don't take place prior to the Control Date, and
- where required, appointment of an ACCC-approved independent auditor to monitor and report on compliance with each Undertaking.

Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act

Attachment A – s87B undertaking

Undertaking to the Australian Competition and Consumer Commission

Given under section 87B of the *Competition and Consumer Act 2010* (Cth) by Heidelberg Materials AG and Heidelberg Materials Australia Holdings Pty Ltd (ACN 611 565 649)

Contents

1. Person giving the Undertaking

1.1. This Undertaking is given to the Australian Competition and Consumer Commission (**ACCC**) by Heidelberg Materials AG and its subsidiary Heidelberg Materials Australia Holdings Pty Ltd (ACN 611 565 649) (together referred to as **Heidelberg Materials** in this Undertaking).

2. Background

The parties to the proposed acquisition

2.1. Heidelberg Materials Australia Holdings Pty Ltd ACN 611 565 649.

2.2. Maas Group Holdings Limited ACN 632 994 542.

The Proposed Acquisition

2.3. On 5 February 2026, HMA entered into a share sale deed to acquire the construction materials business of MAAS (the **Proposed Acquisition**).

The Notification

2.4. On 26 May 2026, HMA lodged a notification in respect of the Proposed Acquisition with the ACCC (the **Notification**).

2.5. The objective of this Undertaking is to address the concerns about the Proposed Acquisition set out in the ACCC's determination and statement of reasons in respect of the Notification.

3. Commencement of this Undertaking

3.1. This Undertaking comes into effect when:

(a) this Undertaking is executed by Heidelberg Materials; and

(b) this Undertaking so executed is accepted by the ACCC

(the **Commencement Date**).

4. Cessation of Ongoing Obligations

Revocation

4.1. The ACCC may, at any time, revoke its acceptance of this Undertaking if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading. Such a revocation must be express and in writing.

Withdrawal

4.2. Heidelberg Materials may request withdrawal of this Undertaking pursuant to section 87B of the Act at any time. This Undertaking is taken to be withdrawn on the date the ACCC consents in writing to that withdrawal.

Waiver

4.3. The ACCC may, at any time, waive any of the obligations contained in this Undertaking. Such a waiver must be express and in writing.

Extension

4.4. The ACCC may, at any time, extend the date by which any of the obligations in this Undertaking is to be satisfied. Such an extension must be express and in writing.

Survival

4.5. Unless and until this Undertaking is withdrawn in accordance with section 87B(2) of the Act, clauses 1, 2, 3, 4, 9, 11, 12, 13, 14, 15, 16 and 17 survive completion of the obligations in clauses 5, 6, 7, 8, 10, Schedule 4 and Confidential Schedule 5.

5. Divestiture of the Divestiture Business

Divestiture

5.1. Heidelberg Materials must, in accordance with this Undertaking, divest, or cause the divestiture of, the Divestiture Business only to an Approved Purchaser.

5.2. In the event that clause 10 applies, Heidelberg Materials must not authorise the Approved Divestiture Agent to divest the Unsold Business (as the case may be) to a purchaser other than an Approved Purchaser.

5.3. Heidelberg Materials must divest, or cause the divestiture of, the Divestiture Business by:

(a) the sale, assignment, transfer and/or licence of all of the assets in Schedule 4 to the Approved Purchaser, pursuant to the Approved Sale and Purchase Agreement and prior to the end of the Initial Sale Period, otherwise clause 10 applies;

(b) the transfer or grant to the Approved Purchaser of all Consents pursuant to clauses 5.4 to 5.5;

(c) the transfer of any Transferred Personnel required pursuant to clauses 5.7 to 5.8;

(d) compliance with any Approved Transitional Technical Assistance Agreement required pursuant to clauses 5.9 to 5.11; and

(e) compliance with any Approved Transitional Supply Agreement required pursuant to clauses 5.12 to 5.14.

Consents

5.4. Heidelberg Materials must:

(a) obtain or assist the Approved Purchaser to obtain as expeditiously as possible, all Consents as required before completion of the divestiture of the Divestiture Business;

(b) comply with all requirements necessary to obtain any Consents, including by promptly providing all information necessary for the Consents to be given;

(c) act in good faith in its negotiations with the Approved Purchaser in relation to obtaining any Consents;

(d) promptly pay the costs and expenses of any third party reasonably incurred in providing the Consents; and

(e) enter an agreement with the Approved Purchaser and approved by the ACCC, or vary any existing Approved Transitional Supply Agreement as required by the Approved Purchaser, in relation to any goods or services that are required for the operation of the Divestiture Business which may be affected by any failure to gain a Consent.

5.5. If, seven Business Days before completion of the divestiture of the Divestiture Business, the Approved Purchaser does not or is otherwise unable to obtain one or more Consents, then Heidelberg Materials must:

(a) immediately provide to the ACCC in writing details of the:

(i) Consents that have not been obtained;

(ii) reasons why the Consents have not been obtained; and

(iii) information or material required to obtain the Consents.

(b) continue to do everything in its power to satisfy clause 5.4 as soon as possible after the completion of the divestiture of the Divestiture Business (and until such time as clause 5.4 is satisfied).

5.6. Even if Heidelberg Materials has complied with clause 5.4 to 5.5, it will be in breach of this Undertaking if it is unable to effect the divestiture of the Divestiture Business by reason that one or more Consents are not obtained.

Transferred Personnel

5.7. At the option of the Approved Purchaser, Heidelberg Materials must transfer to the Approved Purchaser:

(a) all employees; and

(b) all service providers under a contract for service;

who are, in the view of the Approved Purchaser, required for the Approved Purchaser to maintain, operate or conduct effectively the Divestiture Business and who consent to the transfer of their employment or contract for service to the Approved Purchaser (**Transferred Personnel**).

5.8. When fulfilling its obligations under clause 5.7, Heidelberg Materials must:

(a) encourage all Transferred Personnel to remain with the Divestiture Business, including offering incentives based on industry practice;

(b) not directly or indirectly discourage any Transferred Personnel from any obligations to provide services to the Divestiture Business;

(c) effective on the date of the divestiture of the Divestiture Business, release the Transferred Personnel from any obligations to provide services to Heidelberg Materials;

(d) effective on the date of the divestiture of the Divestiture Business, release the Transferred Personnel from any non-compete or similar restraint of trade obligation, to the extent that such an obligation would otherwise prevent the person from performing his or her contemplated role in relation to the Divestiture Business or Unsold Business; and

(e) not procure, promote or encourage the transfer of any of the Transferred Personnel from the Approved Purchaser to Heidelberg Materials for a period of 12 months after the completion of the divestiture of the Divestiture Business.

Technical Assistance

5.9. At the option of the Approved Purchaser, Heidelberg Materials must supply to the Approved Purchaser, under an Approved Transitional Technical Assistance Agreement, any Technical Assistance that is required by the Approved Purchaser in order to operate the Divestiture Business.

5.10. Heidelberg Materials must ensure that any Approved Transitional Technical Assistance Agreement, and any renewal or extension of an Approved Transitional Technical Assistance Agreement, provides for the supply of Technical Assistance:

(a) on a transitional basis for a period that is nominated by the Approved Purchaser and approved in writing by the ACCC; and

(b) at cost price and otherwise on arm’s length terms.

5.11. To avoid doubt, Heidelberg Materials must seek prior written approval from the ACCC of any renewal or extension of an Approved Transitional Technical Assistance Agreement. Without limiting the ACCC’s discretion in making a decision on whether to approve a renewal or extension of an Approved Transitional Technical Assistance Agreement, the ACCC will have regard to the criteria set out in clauses 5.9 and 5.10.

Transitional Supply Agreements

5.12. At the option of the Approved Purchaser, Heidelberg Materials must ensure the continued supply by Heidelberg Materials to the Approved Purchaser, under an Approved Transitional Supply Agreement, of any goods or services that are required by the Approved Purchaser in order for the Approved Purchaser to be established as a viable, effective, stand-alone, independent and long-term competitor in the supply of RMX in Illawarra.

5.13. Heidelberg Materials must ensure that any Approved Transitional Supply Agreement and any renewal or extension of an Approved Transitional Supply Agreement:

(a) is for a reasonable transitional period, to be nominated by the Approved Purchaser and approved in writing by the ACCC;

(b) provides for the supply of the included goods and services at cost price; and

(c) is on such terms other than price which are no less favourable to the Approved Purchaser than arm's length terms.

5.14. To avoid doubt, Heidelberg Materials must seek prior written approval from the ACCC of any renewal or extension of an Approved Transitional Supply Agreement. Without limiting the ACCC's discretion in making a decision on whether to approve a renewal or extension of an Approved Transitional Supply Agreement, the ACCC will have regard to the criteria set out in clauses 5.12 and 5.13.

6. Process for approving a proposed purchaser

Potential purchasers

6.1. Heidelberg Materials must provide the ACCC and Approved Independent Auditor with:

(a) the identity of any person who expresses an interest in acquiring the Divestiture Business;

(b) the status of negotiations with each person; and

(c) a copy of each person's offer to acquire the Divestiture Business, where relevant;

at the following times:

(d) as soon as possible following the Commencement Date for those persons who express interest before the Commencement Date;

(e) after the Commencement Date, within 10 Business Days of each person expressing the interest and/or providing an offer;

regardless of whether the person subsequently withdraws or is declined.

Provision of a notice for a Proposed Purchaser

6.2. To seek ACCC approval for a Proposed Purchaser, Heidelberg Materials or the Approved Divestiture Agent must provide the ACCC with a notice in the form prescribed in Schedule 2 to this Undertaking (**Proposed Purchaser Notice**), including a draft sale and purchase agreement, a draft transitional technical assistance agreement (where required by the Proposed Purchaser), and a draft transitional supply agreement (where required by the Proposed Purchaser).

6.3. The Proposed Purchaser Notice must be provided to the ACCC at least 20 Business Days prior to the end of the Initial Sale Period.

Approval of a Proposed Purchaser after the Commencement Date

6.4. The ACCC may, in its discretion, approve or reject in writing the Proposed Purchaser identified in the Proposed Purchaser Notice. In exercising this discretion, the ACCC will consider, without limitation:

(a) the draft sale and purchase agreement attached to the Proposed Purchaser Notice;

(b) any draft transitional technical assistance agreement attached to the Proposed Purchaser Notice, in accordance with the criteria in clauses 5.9 and 5.10; and

(c) any draft transitional supply agreement attached to the Proposed Purchaser Notice, in accordance with the criteria in clauses 5.12 and 5.13.

6.5. Without limiting the ACCC's discretion, in making the decision pursuant to clause 6.4, the factors to which the ACCC may have regard include whether the:

(a) draft sale and purchase agreement is consistent with this Undertaking;

(b) Proposed Purchaser will complete the transaction as contemplated by the draft sale and purchase agreement;

(c) Proposed Purchaser is independent of Heidelberg Materials;

(d) Proposed Purchaser is of good financial standing;

(e) Proposed Purchaser has a history of competition law compliance;

(f) Proposed Purchaser has an intention to maintain and operate the Divestiture Business as a going concern;

(g) Proposed Purchaser is able to conduct the Divestiture Business effectively; and

(h) divestiture of the Divestiture Business to the Proposed Purchaser will address any competition concerns of the ACCC, including in relation to the likely long-term viability and competitiveness of the Divestiture Business under the ownership of the Proposed Purchaser.

6.6. The ACCC may revoke an Approved Purchaser's status as the Approved Purchaser if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading.

7. Divestiture Business Protection

Protection of the Divestiture Business

7.1. From the Commencement Date, Heidelberg Materials must not sell or transfer its interest, or any assets comprising part of, or used in, the Divestiture Business (other than the sale of goods and services in the ordinary course of business) or make any Material Change, except in accordance with this Undertaking or (subject to the other terms of this Undertaking) as necessary to allow completion of the Proposed Acquisition.

Heidelberg Materials' obligations in relation to the Divestiture Business prior to completion of divestiture

7.2. Without limiting this clause 7, Heidelberg Materials must, from the Commencement Date until completion of the divestiture of the Divestiture Business, take all steps available to it to:

(a) ensure that the Divestiture Business is managed and operated in the ordinary course of business as a fully operational, competitive going concern and in such a way that preserves the economic viability, marketability, competitiveness and goodwill of the Divestiture Business at the Commencement Date;

(b) continue to provide access to working capital and sources of credit for the Divestiture Business in a manner which is consistent with the financing of the Divestiture Business before the Commencement Date;

(c) continue to provide administrative and technical support for the Divestiture Business in a manner which is consistent with the operation of the Divestiture Business before the Commencement Date and in accordance with any plans established before the Commencement Date;

(d) continue existing Agreements relating to the Divestiture Business with customers, suppliers and/or other third parties that are in place at the Commencement Date;

(e) renew or replace upon expiry Material Contracts for the provision of goods or services to the Divestiture Business on commercial terms favourable to the Divestiture Business;

(f) maintain the supply of those goods and services that are part of the Divestiture Business to existing customers in a manner consistent with the supply of those goods and services as at the Commencement Date;

(g) maintain the standard of manufacture, distribution, promotion and sale of those products which form part of the Divestiture Business as at the Commencement Date;

(h) promote and market the products that form part of the Divestiture Business in accordance with any plans established before the Commencement Date; and

(i) carry out such other actions or plans that the Approved Independent Manager considers to be necessary or convenient to maintain the Divestiture Business as an effectively competitive going concern.

Personnel of Heidelberg Materials

7.3. From the Commencement Date until completion of the divestiture of the Divestiture Business, Heidelberg Materials must:

(a) in consultation with the Approved Independent Manager (if one has been appointed), replace any

(i) Transferred Personnel; or

(ii) if the Transferred Personnel have not yet been identified, any personnel necessary for the operation of the Divestiture Business;

who leave or will leave the Divestiture Business before divestiture;

(b) not terminate or vary the terms of employment or engagement (or agree to do any of those things) of any of the

(i) Transferred Personnel; or

(ii) if the Transferred Personnel have not yet been identified, any personnel necessary for the operation of the Divestiture Business; and

(c) not directly or indirectly procure, promote or encourage the redeployment of personnel necessary for the operation of the Divestiture Business as at the Commencement Date to any other business operated by Heidelberg Materials.

7.4. As soon as practicable after the Commencement Date, Heidelberg Materials must direct its personnel, including directors, contractors, managers, officers, employees and agents not to do anything inconsistent with Heidelberg Materials' obligations under this Undertaking.

Heidelberg Materials' ongoing obligations in relation to the Divestiture Business

7.5. To the extent Heidelberg Materials has obligations in relation to the provision of transitional technical assistance or continued supply pursuant to clauses 5.9 to 5.14 of this Undertaking in relation to the Divestiture Business, Heidelberg Materials must not sell, assign, transfer, and/or licence directly or indirectly any of the assets necessary to fulfil such obligations without the prior written consent of the ACCC.

Confidential Information

7.6. Subject to clause 7.7, Heidelberg Materials must not, at any time from the Commencement Date, use or disclose any confidential information about the Divestiture Business gained through:

(a) ownership and/or management of the Divestiture Business; or

(b) fulfilling any obligations pursuant to this Undertaking.

7.7. Clause 7.6 does not apply to information that Heidelberg Materials requires to:

(a) comply with legal and regulatory obligations including obligations relating to taxation, accounting, financial reporting or stock exchange disclosure requirements; or

(b) carry out its obligations pursuant to this Undertaking;

provided such information is only used for that purpose and is only disclosed to those officers, employees, contractors and advisers of Heidelberg Materials who need to know the information to carry out the permitted purpose.

8. Independent Management of the Divestiture Business

Obligation to appoint an Approved Independent Manager

8.1. Unless the sale of the Divestiture Business has been completed prior to the Control Date, Heidelberg Materials must appoint and maintain an Approved Independent Manager to manage the Divestiture Business, from the Control Date until the completion of the divestiture of the Divestiture Business in accordance with this Undertaking.

Process for approving a Proposed Independent Manager

8.2. Unless as at 15 Business Days before the Control Date, Heidelberg Materials has already completed the sale of the Divestiture Business, Heidelberg Materials must provide the ACCC with a notice for a Proposed Independent Manager in the form prescribed in Schedule 3 to this Undertaking (**Proposed Independent Manager Notice**), including a draft terms of appointment and a draft separation and management plan.

8.3. If clauses 8.12, 8.13 or 8.14 apply, Heidelberg Materials must provide the ACCC with a Proposed Independent Manager Notice within five Business Days after the relevant event occurs.

8.4. The ACCC shall have the discretion to approve or reject in writing the Proposed Independent Manager identified in the Proposed Independent Manager Notice.

8.5. Without limiting the ACCC's discretion, in deciding whether to approve a Proposed Independent Manager, the factors to which the ACCC may have regard include whether the:

(a) person named in the Proposed Independent Manager Notice or identified by the ACCC has the qualifications and experience necessary to manage the Divestiture Business;

(b) person named in the Proposed Independent Manager Notice or identified by the ACCC is sufficiently independent of Heidelberg Materials;

(c) draft terms of appointment and the draft separation and management plan are consistent with this Undertaking; and

(d) draft terms of appointment and the draft separation and management plan are otherwise acceptable to the ACCC.

Appointment of the Approved Independent Manager

8.6. After receiving a written notice from the ACCC of its approval of the Proposed Independent Manager, the draft terms of appointment and draft separation and management plan, Heidelberg Materials must by the Control Date:

(a) appoint the person approved by the ACCC as the Approved Independent Manager on the Approved Terms of Appointment; and

(b) forward to the ACCC a copy of the executed Approved Terms of Appointment.

Failure to appoint

8.7. If:

(a) the Approved Independent Manager has not been appointed by the Control Date;

(b) the Approved Independent Manager has not been appointed within 15 Business Days after the Approved Independent Manager resigns or otherwise ceases to act as the Approved Independent Manager pursuant to clause 8.12, 8.13 or 8.14; or

(c) the ACCC has not received a Proposed Independent Manager Notice pursuant to clause 8.2 or 8.3;

then clause 8.8 applies.

8.8. If clause 8.7 applies, the ACCC may, in its discretion:

(a) identify and approve a person as the Approved Independent Manager, including approving the draft terms of appointment of the Approved Independent Manager and the draft separation and management plan; and/or

(b) direct Heidelberg Materials to appoint a person who the ACCC has deemed is an Approved Independent Manager.

Obligations and powers of the Approved Independent Manager

8.9. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Independent Manager include obligations on the Approved Independent Manager to:

(a) maintain his or her independence from Heidelberg Materials, apart from appointment to the role of Approved Independent Manager, including not forming any relationship of the types described in paragraph 2.2(c) of Schedule 3 to this Undertaking with Heidelberg Materials for the period of his or her appointment;

(b) act in the best interests of the Divestiture Business at all times including ensuring that the Divestiture Business is managed and operated in the ordinary course of business as a fully operational, competitive going concern and in such a way that preserves the economic viability, marketability, competitiveness and goodwill of the Divestiture Business at the Control Date;

(c) not use any confidential information gained through the management of the Divestiture Business other than for performing his or her functions as Approved Independent Manager;

(d) make only those Material Changes to the Divestiture Business which the ACCC does not object to;

(e) operate and manage the Divestiture Business to the maximum extent practicable, in a manner which is financially and operationally separate from Heidelberg Materials;

(f) co-operate with the requests of any Approved Divestiture Agent or Approved Independent Auditor appointed pursuant to this Undertaking;

(g) provide the following reports directly to the ACCC:

(i) a monthly written report regarding the implementation of and any suggested changes to the Approved Separation and Management Plan; and

(ii) an immediate report of any issues that arise in relation to the implementation of the Approved Separation and Management Plan or Heidelberg Materials' compliance with this Undertaking; and

(h) follow any direction given to him or her by the ACCC in relation to the performance of his or her functions as Approved Independent Manager pursuant to this Undertaking.

8.10. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Independent Manager provide the Approved Independent Manager with the sole authority to:

(a) manage and operate the Divestiture Business according to the Approved Separation and Management Plan until the completion of the divestiture of the Divestiture Business;

(b) provide any information requested by Heidelberg Materials pursuant to the protocol in the Approved Separation and Management Plan;

(c) decide whether or not to provide access and the manner of such access to competitively sensitive information relating to the Divestiture Business requested by Heidelberg Materials which is not covered by the protocol in the Approved Separation and Management Plan;

(d) renew or replace upon expiry Material Contracts and enter into new contracts for the provision of goods or services to the Divestiture Business on commercial terms favourable to the Divestiture Business;

(e) engage, redeploy or make redundant personnel employed in the Divestiture Business as the Approved Independent Manager determines necessary; and

(f) engage any external expertise, assistance or advice required by the Approved Independent Manager to perform his or her functions as the Approved Independent Manager.

Heidelberg Materials' obligations in relation to the Approved Independent Manager

8.11. Without limiting its obligations in this Undertaking, Heidelberg Materials must:

(a) comply with and enforce the Approved Terms of Appointment of the Approved Independent Manager;

(b) maintain and fund the Approved Independent Manager to carry out his or her functions, including:

(i) indemnifying the Approved Independent Manager for any expenses, loss, claim or damage arising directly or indirectly from the performance by the Approved Independent Manager of his or her functions as the Approved Independent Manager except where such expenses, loss, claim or damage arises out of the gross negligence, fraud, misconduct or breach of duty by the Approved Independent Manager;

(ii) ensuring that the Approved Independent Manager is fully able to acquire and pay for sufficient and timely delivery of all goods and services (including from third parties) which the Approved Independent Manager considers are required by the Divestiture Business; and

(iii) providing and paying for any external expertise, assistance or advice required by the Approved Independent Manager to perform his or her functions as the Approved Independent Manager; and

(c) not interfere with the authority of, or otherwise hinder, the Approved Independent Manager's ability to carry out his or her obligations as the Approved Independent Manager, including:

(i) accepting (and directing its directors, contractors, managers, officers, employees and agents to accept) direction from the Approved Independent Manager as to the control, management, financing and operations of the Divestiture Business, and for the Divestiture Business to meet all legal, corporate, financial, accounting, taxation, audit and regulatory obligations;

(ii) providing access to the facilities, sites or operations of the Divestiture Business required by the Approved Independent Manager;

(iii) providing to the Approved Independent Manager any information or documents that they consider necessary for managing and operating the Divestiture Business or for reporting to or otherwise advising the ACCC;

(iv) not requesting information or reports regarding the Divestiture Business from the personnel of the Divestiture Business except through the Approved Independent Manager; and

(v) not appointing the Approved Independent Manager, or have any Agreements with the Approved Independent Manager, to utilise the Approved Independent Manager's services for anything other than compliance with this Undertaking until at least 12 months after the Approved Independent Manager ceases to act in the role of the Approved Independent Manager.

Resignation, revocation or termination of the Approved Independent Manager

8.12. Heidelberg Materials must immediately notify the ACCC in the event that the Approved Independent Manager resigns or otherwise stops acting as the Approved Independent Manager before the completion of the divestiture of the Divestiture Business.

8.13. The ACCC may revoke an Approved Independent Manager's status as the Approved Independent Manager if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading.

8.14. The ACCC may approve any proposal by, or alternatively may direct, Heidelberg Materials to terminate the appointment of the Approved Independent Manager if in the ACCC's view the Approved Independent Manager acts inconsistently with the provisions of this Undertaking or the Approved Terms of Appointment.

9. Independent Audit

Obligation to appoint an Approved Independent Auditor

9.1. Heidelberg Materials must appoint and maintain an Approved Independent Auditor to audit and report upon Heidelberg Materials' compliance with this Undertaking.

Process for approving a Proposed Independent Auditor

9.2. At least 15 Business Days before the Control Date, Heidelberg Materials must provide the ACCC with a notice for a Proposed Independent Auditor in the form prescribed in Schedule 3 to this Undertaking (**Proposed Independent Auditor Notice**), including draft terms of appointment and a draft audit plan.

9.3. The Approved Independent Auditor is to be appointed for a term of two years. Within 15 Business Days of the end of the Approved Independent Auditor's term, Heidelberg Materials must provide the ACCC with a new Proposed Independent Auditor Notice. A person who is, or who has been, the Independent Auditor is eligible for reappointment as the Independent Auditor.

9.4. If clauses 9.17, 9.18 or 9.19 apply, Heidelberg Materials must provide the ACCC with a Proposed Independent Auditor Notice within five Business Days after the relevant event occurs.

9.5. The ACCC shall have the discretion to approve or reject in writing the Proposed Independent Auditor identified in the Proposed Independent Auditor Notice.

9.6. Without limiting the ACCC's discretion, in deciding whether to approve a Proposed Independent Auditor, the factors to which the ACCC may have regard include whether the:

(a) person named in the Proposed Independent Auditor Notice or identified by the ACCC has the qualifications and experience necessary to carry out the functions of the Approved Independent Auditor;

(b) person named in the Proposed Independent Auditor Notice or identified by the ACCC is sufficiently independent of Heidelberg Materials;

(c) draft terms of appointment and the draft audit plan are consistent with this Undertaking; and

(d) draft terms of appointment and the draft audit plan are otherwise acceptable to the ACCC.

Appointment of the Approved Independent Auditor

9.7. After receiving a written notice from the ACCC of its approval of a Proposed Independent Auditor, the draft terms of appointment and draft audit plan, Heidelberg Materials must by the Control Date:

(a) appoint the person approved by the ACCC as the Approved Independent Auditor on the Approved Terms of Appointment; and

(b) forward to the ACCC a copy of the executed Approved Terms of Appointment.

Failure to appoint

9.8. If:

(a) the Approved Independent Auditor has not been appointed by the Control Date;

(b) the Approved Independent Auditor has not been appointed within 15 Business Days after the Approved Independent Auditor resigns or otherwise ceases to act as the Approved Independent Auditor pursuant to clause 9.17, 9.18, or 9.19; or

(c) the ACCC has not received a Proposed Independent Auditor Notice pursuant to clause 9.2 and 9.4;

then clause 9.9 applies.

9.9. If clause 9.8 applies, the ACCC at its absolute discretion may:

(a) identify and approve a person as the Approved Independent Auditor, including approving the draft terms of appointment and draft audit plan; and/or

(b) direct Heidelberg Materials to appoint a person who the ACCC has deemed is an Approved Independent Auditor.

Obligations and powers of the Approved Independent Auditor

9.10. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Independent Auditor include obligations on the Approved Independent Auditor to:

(a) maintain his or her independence from Heidelberg Materials, apart from appointment to the role of Approved Independent Auditor, including not forming any relationship of the types described in paragraph 1.1(c) of Schedule 3 to this Undertaking with Heidelberg Materials for the period of his or her appointment;

(b) conduct compliance auditing according to the Approved Audit Plan;

(c) where requested by the ACCC, assess the suitability of any Proposed Purchaser or potential purchaser of the Divestiture Business against the factors (as relevant) in clause 6.5;

(d) provide the following reports directly to the ACCC:

(i) a scheduled written Audit Report as described in clause 9.12;

(ii) an immediate report of any issues that arise in relation to the performance of his or her functions as Approved Independent Auditor or in relation to compliance with this Undertaking by any person named in this Undertaking; and

(iii) where requested by the ACCC, a report on the suitability of any Proposed Purchaser or potential purchaser of the Divestiture Business following an assessment under clause 9.10(c); and

(e) follow any direction given to him or her by the ACCC in relation to the performance of his or her functions as Approved Independent Auditor under this Undertaking.

9.11. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Independent Auditor provide the Approved Independent Auditor with the authority to:

(a) access the facilities, sites or operations of the Divestiture Business and Heidelberg Materials' other businesses as required by the Approved Independent Auditor;

(b) access any information or documents that the Approved Independent Auditor considers necessary for carrying out his or her functions as the Approved Independent Auditor or for reporting to or otherwise advising the ACCC; and

(c) engage any external expertise, assistance or advice required by the Approved Independent Auditor to perform his or her functions as the Approved Independent Auditor.

Compliance Audit

9.12. The Approved Independent Auditor must conduct an audit and prepare a detailed report (**Audit Report**) that includes:

(a) the Approved Independent Auditor's procedures in conducting the audit, or any change to audit procedures and processes since the previous Audit Report;

(b) a full audit of Heidelberg Materials' compliance with this Undertaking;

(c) identification of any areas of uncertainty or ambiguity in the Approved Independent Auditor's interpretation of any obligations contained in this Undertaking;

(d) all of the reasons for the conclusions reached in the Audit Report;

(e) any qualifications made by the Approved Independent Auditor in forming his or her views;

(f) any recommendations by the Approved Independent Auditor to improve:

(i) the Approved Audit Plan;

(ii) the integrity of the auditing process;

(iii) Heidelberg Materials' processes or reporting systems in relation to compliance with this Undertaking; and

(iv) Heidelberg Materials' compliance with this Undertaking; and

(g) the implementation and outcome of any prior recommendations by the Approved Independent Auditor.

9.13. The Approved Independent Auditor is to provide an Audit Report to the ACCC and Heidelberg Materials at the following times:

(a) within 20 Business Days after the Control Date, at which time the Audit Report is to include the results of the initial audit and any recommended changes to the Approved Audit Plan, including the Approved Independent Auditor's proposed procedures and processes for conducting the audit (**Establishment Audit**);

(b) every month from the date of the Establishment Audit until one month after the divestiture of the Divestiture Business is completed; and

(c) every three months after the date of provision of the last Audit Report pursuant to clause 9.13(b), until the ACCC confirms in writing to Heidelberg Materials that it is satisfied that Heidelberg Materials has fulfilled its obligations pursuant to this Undertaking.

9.14. Heidelberg Materials must implement any recommendations made by the Approved Independent Auditor in Audit Reports, and notify the ACCC of the implementation of the recommendations, within 10 Business Days after receiving the Audit Report or such other period as agreed in writing with the ACCC.

9.15. Heidelberg Materials must comply with any direction of the ACCC in relation to matters arising from the Audit Report within 10 Business Days after being so directed (or such other period as agreed in writing with the ACCC).

Heidelberg Materials' obligations in relation to the Approved Independent Auditor

9.16. Without limiting its obligations in this Undertaking, Heidelberg Materials must:

(a) comply with and enforce the Approved Terms of Appointment for the Approved Independent Auditor;

(b) maintain and fund the Approved Independent Auditor to carry out his or her functions including:

(i) indemnifying the Approved Independent Auditor for any expenses, loss, claim or damage arising directly or indirectly from the performance by the Approved Independent Auditor of his or her functions as the Approved Independent Auditor except where such expenses, loss, claim or damage arises out of the gross negligence, fraud, misconduct or breach of duty by the Approved Independent Auditor;

(ii) providing and paying for any external expertise, assistance or advice required by the Approved Independent Auditor to perform his or her functions as the Approved Independent Auditor; and

(c) not interfere with, or otherwise hinder, the Approved Independent Auditor's ability to carry out his or her functions as the Approved Independent Auditor, including:

(i) directing Heidelberg Materials personnel, including directors, contractors, managers, officers, employees and agents, to act in accordance with this clause 9;

(ii) providing access to the facilities, sites or operations of the Divestiture Business and Heidelberg Materials' other businesses as required by the Approved Independent Auditor;

(iii) providing to the Approved Independent Auditor any information or documents that they consider necessary for carrying out his or her functions as the Approved Independent Auditor or for reporting to or otherwise advising the ACCC;

(iv) not requesting any information relating to the compliance audit from the Approved Independent Auditor without such a request having been approved by the ACCC; and

(v) not appointing the Approved Independent Auditor, or have any Agreements with the Approved Independent Auditor, to utilise the Approved Independent Auditor's services for anything other than compliance with this Undertaking until at least 12 months after the Approved Independent Auditor ceases to act in the role of the Approved Independent Auditor.

Resignation, revocation or termination of the Approved Independent Auditor

9.17. Heidelberg Materials must immediately notify the ACCC in the event that the Approved Independent Auditor resigns or otherwise stops acting as the Approved Independent Auditor.

9.18. The ACCC may revoke an Approved Independent Auditor's status as the Approved Independent Auditor if the ACCC becomes aware that any information provided to it in connection with the appointment of the Approved Independent Auditor was incorrect, inaccurate or misleading.

9.19. The ACCC may approve, pursuant to clause 9.5, any proposal by, or alternatively may direct, Heidelberg Materials to terminate the appointment of the Approved Independent Auditor if in the ACCC's view the Approved Independent Auditor acts inconsistently with the provisions of this Undertaking and/or the Approved Terms of Appointment or the Approved Independent Auditor fails to perform their role to an adequate standard.

10. Failure to divest the Divestiture Business prior to the end of the Initial Sale Period

Divestiture of the Unsold Business

10.1. In the event that the divestiture of the Divestiture Business to an Approved Purchaser is not completed by the end of the Initial Sale Period, the Divestiture Business becomes an unsold business (**Unsold Business**) and the provisions of this clause 10 apply.

Obligation to appoint an Approved Divestiture Agent

10.2. From the end of the Initial Sale Period, Heidelberg Materials must appoint and maintain an Approved Divestiture Agent to effect the divestiture of the Unsold Business.

Process for approving a Proposed Divestiture Agent

10.3. At least 15 Business Days prior to the end of the Initial Sale Period, if the divestiture of the Divestiture Business has not been completed, Heidelberg Materials must provide the ACCC with a notice for a Proposed Divestiture Agent in the form of Schedule 3 to this Undertaking (**Proposed Divestiture Agent Notice**) including draft terms of appointment, a draft business sale agreement, and draft marketing and sale plan.

10.4. If clauses 10.14, 10.15 or 10.16 apply, Heidelberg Materials must provide the ACCC with a Proposed Divestiture Agent Notice within five Business Days after the relevant event occurs.

10.5. The ACCC shall have the discretion to approve or reject in writing the Proposed Divestiture Agent.

10.6. Without limiting the ACCC's discretion, in deciding whether to approve a Proposed Divestiture Agent, the factors to which the ACCC may have regard include whether the:

(a) person named in the Proposed Divestiture Agent Notice or identified by the ACCC has the qualifications and experience necessary to carry out the functions of the Approved Divestiture Agent;

(b) person named in the Proposed Divestiture Agent Notice or identified by the ACCC is sufficiently independent of Heidelberg Materials;

(c) draft terms of appointment, draft business sale agreement and draft marketing and sale plan are consistent with this Undertaking; and

(d) draft terms of appointment, draft business sale agreement and draft marketing and sale plan are otherwise acceptable to the ACCC.

Appointment of the Approved Divestiture Agent

10.7. After receiving written notice from the ACCC of its approval of the Proposed Divestiture Agent, the draft terms of appointment, draft business sale agreement and draft marketing and sale plan, Heidelberg Materials must within two Business Days:

(a) appoint the person approved by the ACCC as the Approved Divestiture Agent on the Approved Terms of Appointment; and

(b) forward to the ACCC a copy of the executed Approved Terms of Appointment.

Failure to appoint

10.8. If:

(a) the Approved Divestiture Agent has not been appointed within 10 Business Days after the Divestiture Business becomes an Unsold Business;

(b) the Approved Divestiture Agent has not been appointed within 15 Business Days after the Approved Divestiture Agent resigns or otherwise ceases to act pursuant to clauses 10.14, 10.15 or 10.16; or

(c) the ACCC has not received a Proposed Divestiture Agent Notice pursuant to clause 10.3 and 10.4;

then clause 10.9 applies.

10.9. If clause 10.8 applies, the ACCC may, at its absolute discretion:

(a) identify and approve a person as the Approved Divestiture Agent, including approving the draft terms of appointment of the Approved Divestiture Agent, draft business sale agreement and draft marketing and sale plan; and/or

(b) direct Heidelberg Materials to appoint a person who the ACCC has deemed is an Approved Divestiture Agent.

Obligations and powers of the Approved Divestiture Agent

10.10. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Divestiture Agent include obligations on the Approved Divestiture Agent to:

(a) divest the Unsold Business only to an Approved Purchaser, at no minimum price;

(b) maintain his or her independence from Heidelberg Materials, apart from appointment to the role of Approved Divestiture Agent, including not form any relationship of the types described in paragraph 2.2(c) of Schedule 3 to this Undertaking with Heidelberg Materials for the period of his or her appointment;

(c) not use any confidential information gained through the divestiture of the Unsold Business other than for performing his or her functions as Approved Divestiture Agent;

(d) follow the Approved Marketing and Sale Plan;

(e) use his or her best endeavours to enter into a binding agreement for the divestiture of the Unsold Business as quickly as possible using the Approved Business Sale Agreement;

(f) co-operate with the requests of any Approved Independent Manager or Approved Independent Auditor appointed pursuant to this Undertaking;

(g) every 30 Business Days following appointment of the Approved Divestiture Agent, provide written reports directly to the ACCC which include:

  (i) information regarding the implementation of the Approved Business Sale Agreement and the Approved Marketing and Sale Plan including any previous changes approved by the ACCC;

  (ii) information regarding any suggested changes to any Approved Marketing and Sale Plan including any previous changes approved by the ACCC;

  (iii) an account and explanation of all disbursements, fees and charges incurred by the Approved Divestiture Agent in undertaking his or her duties by month and to the date of the report;

  (iv) a schedule of agreed fees of the Approved Divestiture Agent (including the fees of any adviser appointed under clause 10.11(d));

  (v) the efforts made to sell the Unsold Business;

  (vi) the identity of any advisers engaged;

  (vii) the identity of any persons expressing interest in the Unsold Business; and

  (viii) any other information required by the ACCC.

(h) within 30 Business Days after the completion of the divestiture of the Unsold Business, provide a written report directly to the ACCC which includes a final accounting of:

  (i) any moneys derived from the divestiture of the Unsold Business;

  (ii) all disbursements, fees and charges incurred by the Approved Divestiture Agent in fulfilling his or her duties; and

  (iii) all agreed fees of the Approved Divestiture Agent (including the fees of any adviser appointed under clause 10.11(d);

(i) immediately inform the ACCC of:

  (i) any issues that arise in relation to the implementation of the Approved Business Sale Agreement and any Approved Marketing and Sale Plan;

  (ii) non-compliance with this Undertaking by any person named in this Undertaking;

  (iii) any offers for the Unsold Business;

(j) accept any offer for the Unsold Business upon instruction from Heidelberg Materials given in accordance with clause 10.13(d); and

(k) follow any direction given to him or her by the ACCC in relation to the performance of his or her functions as Approved Divestiture Agent pursuant to this Undertaking.

10.11. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Divestiture Agent contain an irrevocable grant of power of attorney conferring all necessary power and authority on the Approved Divestiture Agent to:

(a) negotiate with purchasers to divest the Unsold Business on terms considered by the Approved Divestiture Agent in his or her sole discretion to be consistent with this Undertaking and the Approved Marketing and Sale Plan;

(b) execute any agreements with the Approved Purchaser required pursuant to clause 6.4;

(c) upon instruction pursuant to clause 10.13(d), complete the divestiture of the Unsold Business to the Approved Purchaser in accordance with the Approved Business Sale Agreement; and

(d) engage any external expertise, assistance or advice required by the Approved Divestiture Agent to perform his or her functions as the Approved Divestiture Agent.

10.12. Any irrevocable power of attorney granted pursuant to clause 10.11 will end upon resignation or termination of the Approved Divestiture Agent in accordance with clauses 10.14, 10.15 and 10.16, or in the event that the Unsold Business is divested in accordance with this Undertaking.

Heidelberg Materials' obligations in relation to the Approved Divestiture Agent

10.13. Without limiting its obligations in this Undertaking, Heidelberg Materials must from the end of the Initial Sale Period:

(a) comply with and enforce the Approved Terms of Appointment for the Approved Divestiture Agent;

(b) maintain and fund the Approved Divestiture Agent to carry out his or her functions; including:

(i) indemnifying the Approved Divestiture Agent for any expenses, loss, claim or damage arising directly or indirectly from the performance by the Approved Divestiture Agent of his or her functions as the Approved Divestiture Agent except where such expenses, loss, claim or damage arises out of the gross negligence, fraud, misconduct or breach of duty by the Approved Divestiture Agent;

(ii) providing and paying for any external expertise, assistance or advice required by the Approved Divestiture Agent to perform his or her functions as the Approved Divestiture Agent;

(iii) paying such fees as are agreed between the Approved Divestiture Agent and Heidelberg Materials (but not fees contingent on the price to be obtained for the Unsold Business); and

(iv) if an agreement as to fees cannot be reached between the Approved Divestiture Agent and Heidelberg Materials within 15 Business Days after the end of the Initial Sale Period, Heidelberg Materials agrees to pay such fees as are directed by the ACCC;

(c) not interfere with, or otherwise hinder, the Approved Divestiture Agent's ability to carry out his or her functions as the Approved Divestiture Agent, including:

(i) directing its personnel, including directors, contractors, managers, officers, employees and agents, to act in accordance with this clause 10;

(ii) providing access to the facilities, sites or operations of the Unsold Business as required by the Approved Divestiture Agent; and

(iii) providing to the Approved Divestiture Agent any information, documents or other assistance that they consider necessary for carrying out his or her functions as the Approved Divestiture Agent or for reporting to or otherwise advising the ACCC;

(d) within three Business Days after receiving notice from the ACCC pursuant to clause 6.4, Heidelberg Materials must instruct the Approved Divestiture Agent to complete the divestiture of the Unsold Business to the Approved Purchaser in accordance with the documents approved by the ACCC pursuant to clause 6.4; and

(e) other than in accordance with clause 10.13(d) of this Undertaking, not instruct the Approved Divestiture Agent to divest the Unsold Business.

Resignation, revocation or termination of the Approved Divestiture Agent

10.14. Heidelberg Materials must immediately notify the ACCC in the event that an Approved Divestiture Agent resigns or otherwise stops acting as an Approved Divestiture Agent before the completion of the divestiture of the Unsold Business.

10.15. The ACCC may revoke an Approved Divestiture Agent's status as the Approved Divestiture Agent if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading.

10.16. The ACCC may approve any proposal by, or alternatively may direct, Heidelberg Materials to terminate an Approved Divestiture Agent if in the ACCC's view the Approved Divestiture Agent acts inconsistently with the provisions of this Undertaking or the Approved Terms of Appointment.

11. Notification of key dates and ACCC requests for information

11.1. Heidelberg Materials must notify the ACCC and each Undertaking Appointment in writing of:

(a) the anticipated date of the Control Date, at least five Business Days before that date;

(b) the anticipated date of the completion of the divestiture of the Divestiture Business or Unsold Business (as applicable), at least five Business Days before that date;

(c) the occurrence of the Control Date, within one Business Day of that date; and

(d) the occurrence of the completion of the divestiture of the Divestiture Business or Unsold Business (as applicable), within one Business Day of that date.

11.2. The ACCC may direct Heidelberg Materials in respect of its compliance with this Undertaking to, and Heidelberg Materials must:

(a) furnish information to the ACCC in the time and in the form requested by the ACCC;

(b) produce documents and materials to the ACCC within Heidelberg Materials' custody, power or control in the time and in the form requested by the ACCC; and/or

(c) attend the ACCC at a time and place appointed by the ACCC to answer any questions the ACCC (its Commissioners, its staff or its agents) may have.

11.3. Any direction made by the ACCC under clause 11.2 will be notified to Heidelberg Materials, in accordance with clause 18.2.

11.4. In respect of Heidelberg Materials' compliance with this Undertaking or an Undertaking Appointment’s compliance with its Approved Terms of Appointment, the ACCC may request any Undertaking Appointment to:

(a) furnish information to the ACCC in the time and in the form requested by the ACCC;

(b) produce documents and materials to the ACCC within the Undertaking Appointment's custody, power or control in the time and in the form requested by the ACCC; and/or

(c) attend the ACCC at a time and place appointed by the ACCC to answer any questions the ACCC (its Commissioners, its staff or its agents) may have.

11.5. Heidelberg Materials will use its best endeavours to ensure that an Undertaking Appointment complies with any request from the ACCC in accordance with clause 11.4.

11.6. Information furnished, documents and material produced or information given in response to any request or direction from the ACCC under this clause 11 may be used by the ACCC for any purpose consistent with the exercise of its statutory duties.

11.7. The ACCC may in its discretion:

(a) advise any Undertaking Appointment of any request made by it under this clause 11; and/or

(b) provide copies to any Undertaking Appointment of any information furnished, documents and material produced or information given to it under this clause 11.

11.8. Nothing in this clause 11 requires the provision of information or documents in respect of which Heidelberg Materials has a claim of legal professional or other privilege.

12. Disclosure of this Undertaking

12.1. Heidelberg Materials and the ACCC agree that Schedule 5 will remain confidential until after the completion of the divestiture of the Divestiture Business or Unsold Business.

12.2. Heidelberg Materials acknowledges that the ACCC may provide each Undertaking Appointment with a copy of this Undertaking which includes unredacted versions of Confidential Schedule 5.

12.3. Heidelberg Materials acknowledges that the ACCC may, subject to clause 12.1:

(a) make this Undertaking publicly available;

(b) publish this Undertaking on its Public Section 87B Undertakings Register and Public Mergers Register; and

(c) from time to time publicly refer to this Undertaking.

12.4. Nothing in clause 12.1 or the confidential parts of this Undertaking referred to in clause 12.1 prevents the ACCC from disclosing such information as is:

(a) required by law;

(b) permitted by section 155AAA of the Act;

(c) necessary for the purpose of enforcement action under section 87B of the Act; or

(d) necessary for the purpose of making such market inquiries as the ACCC thinks fit to assess the impact on competition arising in connection with this Undertaking.

12.5. Nothing in clause 12.1 or the confidential parts of this Undertaking referred to in clause 12.1 prevents the ACCC from using the information contained in this Undertaking for any purpose consistent with its statutory functions and powers.

13. Obligation to procure

13.1. Where the performance of an obligation under this Undertaking requires a Related Body Corporate of Heidelberg Materials to take or refrain from taking some action, Heidelberg Materials will procure that Related Body Corporate to take or refrain from taking that action.

14. No Derogation

14.1. This Undertaking does not prevent the ACCC from taking enforcement action at any time whether during or after the period of this Undertaking in respect of any breach by Heidelberg Materials of any term of this Undertaking.

14.2. Nothing in this Undertaking is intended to restrict the right of the ACCC to take action under the Act for penalties or other remedies in the event that Heidelberg Materials does not fully implement and/or perform its obligations under this Undertaking or in any other event where the ACCC decides to take action under the Act for penalties or other remedies.

15. Change of Control

15.1. In the event that a Change of Control is reasonably expected to occur, Heidelberg Materials must:

(a) notify the ACCC of this expectation as soon as practicable; and

(b) only implement a Change of Control to another person or entity if that person or entity has given a section 87B undertaking to the ACCC that requires it to comply with the same obligations as are imposed on Heidelberg Materials pursuant to this Undertaking, or on terms that are otherwise acceptable to the ACCC, unless the ACCC has notified Heidelberg Materials in writing that a section 87B undertaking under this clause is not required.

16. Costs

16.1. Heidelberg Materials must pay all of its own costs incurred in relation to this Undertaking.

17. Jurisdiction

17.1. Heidelberg Materials AG irrevocably submits to the jurisdiction of the Federal Court of Australia in relation to this Undertaking.

17.2. Unless and until notified in writing by Heidelberg Materials AG to the ACCC of the appointment of another person as agent within Australia, Heidelberg Materials AG appoints Heidelberg Materials Australia Holdings Pty Ltd ACN 611 565 649, as its agent for the purposes of service of process in relation to this Undertaking.

18. Notices

Giving Notices

18.1. Any notice or communication to the ACCC pursuant to this Undertaking must be sent to:

Email address:	mergers@accc.gov.au Attention: Executive General Manager Mergers and Exemptions Assessment Division
With a copy sent to:	mergersru@accc.gov.au Attention: Director, Remedies Unit

Merger Surveillance & Coordination Branch
Mergers and Exemptions Assessment Division

18.2. Any notice or communication to Heidelberg Materials pursuant to this Undertaking must be sent to:

Name:	Victoria Vincent
Address:	14/35 Clarence Street, Sydney NSW 2000
Email Address:	victoria.vincent@heidelbergmaterials.com
Fax number:	N/A
Attention:	N/A

With a copy sent to:

Name:	Lisa Huett
Address:	Level 27, 447 Collins Street, Melbourne VIC 3000
Email Address:	lisa.huett@mallesons.com
Fax number:	N/A
Attention:	N/A

and to:

Name:	Jennifer Barron
Address:	Governor Phillip Tower, Level 61, 1 Farrer Place, Sydney NSW 2000
Email Address:	jennifer.barron@mallesons.com
Fax number:	N/A
Attention:	N/A

18.3. If sent by post, notices are taken to be received three Business Days after posting (or seven Business Days after posting if sent to or from a place outside Australia).

18.4. If sent by email, notices are taken to be received at the time shown in the email as the time the email was sent.

Change of contact details

18.5. Heidelberg Materials must notify the ACCC of a change to its contact details within three Business Days.

18.6. Any notice or communication will be sent to the most recently advised contact details and subject to clauses 18.3 and 18.4, will be taken to be received.

19. Defined terms and interpretation

Definitions in the Dictionary

19.1. A term or expression starting with a capital letter:

(a) which is defined in the Dictionary in Part 1 of Schedule 1 (Dictionary), has the meaning given to it in the Dictionary; or

(b) which is defined in the Corporations Act, but is not defined in the Dictionary, has the meaning given to it in the Corporations Act.

Interpretation

19.2. Part 2 of Schedule 1 sets out rules of interpretation for this Undertaking.

Executed as an Undertaking

Executed by Heidelberg Materials Australia Holdings Pty Ltd ACN 611 565 649 pursuant to section 127(1) of the *Corporations Act 2001* by:

Signature of director		Signature of a director/company secretary
Name of director (print)		Name of director/company secretary (print)
Date		Date

EXECUTED by Heidelberg Materials AG by its authorised signatories:

Signature of witness		Signature of authorised signatory
Name of witness (print)		Name of authorised signatory
		Position of authorised signatory
Signature of witness		Signature of authorised signatory
Name of witness (print)		Name of authorised signatory
		Position of authorised signatory
Date		Date

Accepted by the Australian Competition and Consumer Commission pursuant to section 87B of the *Competition and Consumer Act 2010* (Cth) on:

Date

and signed on behalf of the Commission:

Chair

Date

Schedule 1 – Dictionary and interpretation

1. Dictionary

ACCC means the Australian Competition and Consumer Commission.

Act means the *Competition and Consumer Act 2010* (Cth).

Agreements means any contract, arrangement or understanding, including any contract, arrangement or understanding to renew, amend, vary or extend any contract, arrangement or understanding.

Approved Audit Plan means the plan approved by the ACCC in accordance with the terms of this Undertaking, by which the Approved Independent Auditor will audit and report upon compliance with this Undertaking.

Approved Business Sale Agreement means the standard form contract for the divestiture of the Unsold Business which has been approved by the ACCC in accordance with the terms of this Undertaking.

Approved Divestiture Agent means the person approved by the ACCC and appointed under clause 10 of this Undertaking.

Approved Independent Auditor means the person approved by the ACCC and appointed under clause 9 of this Undertaking.

Approved Independent Manager means the person approved by the ACCC and appointed under clause 8 of this Undertaking.

Approved Marketing and Sale Plan means the plan approved by the ACCC in accordance with the terms of this Undertaking, by which the Approved Divestiture Agent will market and effect the divestiture of the Unsold Business.

Approved Purchaser means the person approved by the ACCC under clause 6 of this Undertaking.

Approved Sale and Purchase Agreement means the contract approved by the ACCC in accordance with the terms of this Undertaking, by which the Heidelberg Materials will divest the Divestiture Business to the Approved Purchaser and Approved Purchaser will acquire the Divestiture Business from Heidelberg Materials.

Approved Separation and Management Plan means the plan approved by the ACCC in accordance with the terms of this Undertaking, by which the Approved Independent Manager will:

a) separate the Divestiture Business from any business to be retained by Heidelberg Materials; and

b) manage and operate the Divestiture Business independently of Heidelberg Materials and any retained business.

Approved Transitional Supply Agreement means any agreement, for the supply of goods or services (other than Technical Assistance) by Heidelberg Materials to the Approved Purchaser, approved by the ACCC in accordance with the terms of this Undertaking.

Approved Transitional Technical Assistance Agreement means any agreement, for the supply of Technical Assistance by Heidelberg Materials to the Approved Purchaser, approved by the ACCC in accordance with the terms of this Undertaking.

Approved Terms of Appointment means the terms of appointment for the Approved Independent Manager, Approved Independent Auditor or Approved Divestiture Agent, as applicable, as approved by the ACCC in accordance with the terms of this Undertaking.

Associated Entity has the meaning given by section 50AAA of the Corporations Act.

Audit Report has the meaning given to it in clause 9.12 of this Undertaking.

Business Day means a day other than a Saturday or Sunday on which banks are open for business generally in the Australian Capital Territory.

Change of Control means:

- the assignment or other transfer of the legal or beneficial ownership of some or all of the share capital of Heidelberg Materials to any other person or entity that may impact compliance with this Undertaking in its entirety; or
- the sale or transfer of any assets necessary, or which may be necessary, to enable Heidelberg Materials to continue to comply with this Undertaking in its entirety.

Commencement Date means the date described in clause 3.1 of this Undertaking.

Control Date means the date on which the Proposed Acquisition is completed.

Consents means any Government Consents or Third Party Consents.

Corporations Act means the *Corporations Act 2001* (Cth).

Divestiture Business means the items described in Schedule 4 to this Undertaking.

Entities Connected has the meaning given by section 64B of the Corporations Act.

Establishment Audit has the meaning given to it in clause 9.13(a) of this Undertaking.

Government Consents means any consents from any government agency required for the assignment, novation, sale, sub-licensing or transfer of any assets, licences, permits, approval or contracts required for the operation of the Divestiture Business.

Heidelberg Materials means Heidelberg Materials AG and Heidelberg Materials Australia Holdings Pty Ltd collectively.

Heidelberg Materials AG means Heidelberg Materials AG of Berliner Straße 6, 69120 Heidelberg, Germany.

Heidelberg Materials Australia Holdings Pty Ltd means Heidelberg Materials Australia Holdings Pty Ltd (ACN 611 565 649).

Heidelberg Materials Australia Pty Ltd means Heidelberg Materials Australia Pty Ltd (ACN 009 679 734).

HMA means the Heidelberg Materials Australia group (including Heidelberg Materials Australia Pty Ltd and Heidelberg Materials Australia Holdings Pty Ltd).

Holding Company has the meaning given by section 9 of the Corporations Act.

Initial Sale Period is defined in clause 1 of Confidential Schedule 5 to this Undertaking.

MAAS means Maas Group Holdings Limited (ACN 632 994 542).

Material Change means any change to the structure, attributes, extent or operations of the Divestiture Business or product or service sold by a Divestiture Business that may affect, or impact on, the competitiveness of the Divestiture Business.

Material Contract means any Agreement that is necessary for the operation of the Divestiture Business.

Proposed Acquisition is defined in clause 2 of this Undertaking.

Proposed Divestiture Agent means a person named in a Proposed Divestiture Notice.

Proposed Divestiture Agent Notice has the meaning given to it in clause 10.3 of this Undertaking.

Proposed Independent Auditor means a person named in a Proposed Independent Auditor Notice.

Proposed Independent Auditor Notice has the meaning given to it in clause 9.2 of this Undertaking.

Proposed Independent Manager means a person named in a Proposed Independent Manager Notice.

Proposed Independent Manager Notice has the meaning given to it in clause 8.2 of this Undertaking.

Proposed Purchaser means a person named in a Proposed Purchaser Notice.

Proposed Purchaser Notice has the meaning given to it in clause 6.2 of this Undertaking.

Proposed Undertaking Appointment means a Proposed Independent Manager, Proposed Independent Auditor or Proposed Divestiture Agent.

Public Mergers Register means the ACCC's public register of merger clearances, available at www.accc.gov.au.

Public Section 87B Undertakings Register means the ACCC's public register of section 87B undertakings, available at www.accc.gov.au.

Related Bodies Corporate has the meaning given to it by section 50 of the Corporations Act.

Related Entities has the meaning given to it by section 9 of the Corporations Act.

Related Parties has the meaning given to it by section 228 of the Corporations Act.

Subsidiary has the meaning given by section 9 of the Corporations Act.

Technical Assistance includes advising on technical knowledge documentation, supporting the Approved Purchaser on acquiring specific assets necessary for the ongoing conduct of the Divestiture Business, providing staff with suitable experience and skills to assist and/or advice on technical issues, assisting in training for the Approved Purchaser's staff, and providing guidance on regulatory and legal aspects relating to the transfer of or application for licences.

Third Party Consents means any Consent from any entity that is not a government agency required for the assignment, novation, sale, sub-licensing or transfer of any assets, licences, permits, approval or contracts required for the operation of the Divestiture Business.

Transferred Personnel has the meaning given to it in clause 5.7 of this Undertaking.

Undertaking is a reference to all provisions of this document, including its schedules and as varied from time to time under section 87B of the Act.

Undertaking Appointment means the Approved Independent Manager, the Approved Independent Auditor or the Approved Divestiture Agent, as applicable.

Unsold Business has the meaning given to it in clause 10.1 of this Undertaking.

2. Interpretation

2.1 In the interpretation of this Undertaking, the following provisions apply unless the context otherwise requires:

(a) a reference to this Undertaking includes all of the provisions of this document including its schedules;

(b) headings are inserted for convenience only and do not affect the interpretation of this Undertaking;

(c) if the day on which any act, matter or thing is to be done under this Undertaking is not a Business Day, the act, matter or thing must be done on the next Business Day;

(d) a reference in this Undertaking to any law, legislation or legislative provision includes any statutory modification, amendment or re-enactment, and any subordinate legislation or regulations issued under that legislation or legislative provision;

(e) a reference in this Undertaking to any company includes its Related Bodies Corporate;

(f) a reference in this Undertaking to any agreement or document is to that agreement or document as amended, novated, supplemented or replaced;

(g) a reference to a clause, part, schedule or attachment is a reference to a clause, part, schedule or attachment of or to this Undertaking;

(h) an expression importing a natural person includes any company, trust, partnership, joint venture, association, body corporate or governmental agency;

(i) where a word or phrase is given a defined meaning, another part of speech or other grammatical form in respect of that word or phrase has a corresponding meaning;

(j) a word which denotes the singular also denotes the plural, a word which denotes the plural also denotes the singular.

(k) a reference to the words 'such as', 'including', 'particularly' and similar expressions is to be construed without limitation;

(l) a construction that would promote the purpose - or object - underlying the Undertaking (whether expressly stated or not) will be preferred to a construction that would not promote that purpose or object;

(m) material not forming part of this Undertaking may be considered to:

  (i) confirm the meaning of a clause is the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the competition concerns intended to be addressed by the Undertaking and the clause in question; or

  (ii) determine the meaning of the clause when the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the purpose or object underlying the Undertaking, leads to a result that does not promote the purpose or object underlying the Undertaking;

(n) in determining whether consideration should be given to any material in accordance with paragraph (m), or in considering any weight to be given to any such material, regard must be had, in addition to any other relevant matters, to the:

  (i) effect that reliance on the ordinary meaning conveyed by the text of the clause would, have (taking into account its context in the Undertaking and whether that meaning promotes the purpose or object of the Undertaking); and

  (ii) need to ensure that the result of the Undertaking is to completely address any ACCC competition concerns;

(o) the ACCC may authorise the ACCC Mergers Review Committee, a member of the ACCC or a member of the ACCC staff, to exercise a decision making function under this Undertaking on its behalf and that authorisation may be subject to any conditions which the ACCC may impose;

(p) in performing its obligations under this Undertaking, Heidelberg Materials will do everything reasonably within its power to ensure that its performance of those obligations is done in a manner which is consistent with promoting the purpose and object of this Undertaking;

(q) a reference to:

  (i) a thing (including, but not limited to, a chose in action or other right) includes a part of that thing;

  (ii) a party includes its successors and permitted assigns; and

  (iii) a monetary amount is in Australian dollars.

Schedule 2 – Proposed Purchaser Notice Form

This form sets out the information required by the ACCC in relation to a Proposed Purchaser.

Please note that it is an offence under section 137.1 of the Criminal Code Act 1995 (Cth) to give information to a Commonwealth entity knowing that the information is false or misleading or omits any matter or thing without which the information is misleading.

1. Method of Delivery to the ACCC

The completed form with requested documents attached should be provided to the ACCC using the following method:

Email

Subject line: Proposed Purchaser Notice – HMA / MAAS

Address: mergers@accc.gov.au

Attention: Executive General Manager – Mergers and Exemptions Assessment Division

With an email copy sent to:

Address: mergersru@accc.gov.au

Attention: Director, Remedies Unit – Merger Surveillance & Coordination Branch, Mergers and Exemptions Assessment Division

2. Information Required

The ACCC requires the following information in order to assess a Proposed Purchaser.

2.1 Proposed Purchaser details:

(a) Name of the Proposed Purchaser;

(b) Address;

(c) Contact name;

(d) Telephone number;

(e) Other contact details.

2.2 A submission containing the following information:

(a) a description of the business carried on by the Proposed Purchaser including the locations in which the Proposed Purchaser carries on its business;

(b) details of the Proposed Purchaser's experience in the relevant market(s);

(c) the names of the owner(s) and the director(s) of the Proposed Purchaser;

(d) details of any of the following types of relationships between Heidelberg Materials and the Proposed Purchaser or confirmation that no such relationship exists whether within Australia or outside of Australia:

(i) Heidelberg Materials and the Proposed Purchaser are Associated Entities;

(ii) Heidelberg Materials is an Entity Connected with the Proposed Purchaser;

(iii) the Proposed Purchaser is an Entity Connected with Heidelberg Materials;

(iv) Heidelberg Materials and the Proposed Purchaser are Related Entities;

(v) Heidelberg Materials and the Proposed Purchaser are Related Parties;

(vi) any Related Party, Related Entity or Entity Connected with Heidelberg Materials is a Related Party, Related Entity or Entity Connected with the Proposed Purchaser;

(vii) Heidelberg Materials and the Proposed Purchaser have a contractual relationship or had one within the past three years, other than those attached to this form;

(viii) the Proposed Purchaser is a supplier of Heidelberg Materials or has been in the past three years;

(ix) Heidelberg Materials is a supplier of the Proposed Purchaser or has been in the past three years; and

(x) any other relationship between Heidelberg Materials and the Proposed Purchaser that allows one to affect the business decisions of the other;

(e) a section addressing the following factors, including any information adverse to the Proposed Purchaser, in the power, possession or control of Heidelberg Materials:

(i) whether the draft sale and purchase agreement is consistent with this Undertaking;

(i) whether the Proposed Purchaser will complete the transaction as contemplated by the draft sale and purchase agreement;

(ii) whether the Proposed Purchaser is of good financial standing;

(iii) whether the Proposed Purchaser has an intention to maintain and operate the Divestiture Business as a going concern;

(iv) whether the Proposed Purchaser is able to conduct the Divestiture Business effectively;

(v) whether the divestiture of the Divestiture Business to the Proposed Purchaser will address any competition concerns of the ACCC, including any relationships (including but not limited to shareholding interests, other proprietary interests, contracts, arrangements or understandings) between the Proposed Purchaser and other entities in a relevant market, and the likely long-term viability and competitiveness of the Divestiture Business under the ownership of the Proposed Purchaser; and

(vi) any other matters that may affect the Proposed Purchaser's capacity or ability to acquire or operate the Divestiture Business, such as outstanding legal action or disputes.

2.3 Please also attach to this form:

(a) the finalised draft of the sale and purchase agreement for approval by the ACCC in accordance with this Undertaking.

(b) the finalised draft of any transitional technical assistance agreement for approval by the ACCC in accordance with this Undertaking.

(c) the finalised draft of any transitional supply agreement for approval by the ACCC in accordance with this Undertaking.

(d) any documents required to support the information provided by Heidelberg Materials pursuant to this form.

Schedule 3 – Proposed Undertaking Appointment Form

This form sets out the information required by the ACCC in relation to proposed appointment of the following positions under the Undertaking:

- Proposed Independent Manager;
- Proposed Independent Auditor; or
- Proposed Divestiture Agent

(the **Undertaking Appointment).**

This form is to be used for each of the above appointments.

Please note that it is an offence under section 137.1 of the Criminal Code Act 1995 (Cth) to give information to a Commonwealth entity knowing that the information is false or misleading or omits any matter or thing without which the information is misleading.

1. Method of Delivery to the ACCC

The completed form with requested documents attached may be provided to the ACCC using the following method:

Email

Subject line:	Proposed [only include relevant Undertaking Appointment i.e. Independent Manager/Independent Auditor/Divestiture Agent] Notice – HMA / MAAS
Address:	mergers@accc.gov.au
Attention:	Executive General Manager – Mergers and Exemptions Assessment Division

With an email copy sent to:

Address:	mergersru@accc.gov.au
Attention:	Director, Remedies Unit – Merger Surveillance & Coordination Branch, Mergers and Exemptions Assessment Division

2. Information Required

The ACCC requires the following information in order to assess a proposed Independent Manager, Independent Auditor or Divestiture Agent (i.e. the relevant Undertaking Appointment).

2.1 Proposed Undertaking Appointment details:

(a) the name of the Proposed Undertaking Appointment; and

(b) the name of the proposed Undertaking Appointment's employer and contact details including:

(i) Address;

(ii) Contact name;

(iii) Telephone number;

(iv) Other contact details.

2.2 A submission containing the following information:

(a) details of the Undertaking Appointment's qualifications and experience relevant to his or her proposed role pursuant to the Undertaking;

(b) the names of the owner(s) and the director(s) of the Undertaking Appointment's employer;

(c) details of any of the following types of relationships between Heidelberg Materials and the Undertaking Appointment or the Undertaking Appointment's employer or confirmation that no such relationship exists whether within Australia or outside of Australia:

(i) Heidelberg Materials and the Undertaking Appointment's employer are Associated Entities;

(ii) Heidelberg Materials is an Entity Connected with the Undertaking Appointment's employer;

(iii) The Undertaking Appointment's employer is an Entity Connected with Heidelberg Materials;

(iv) Heidelberg Materials and the Undertaking Appointment's employer are Related Entities;

(v) Heidelberg Materials and the Undertaking Appointment's employer are Related Parties;

(vi) any Related Party, Related Entity or Entity Connected with Heidelberg Materials is a Related Party, Related Entity or Entity Connected with the Undertaking Appointment;

(vii) Heidelberg Materials and the Undertaking Appointment or the Undertaking Appointment's employer have a contractual relationship or had one within the past three years, other than those attached to this form;

(viii) the Undertaking Appointment's employer is a supplier of Heidelberg Materials or has been in the past three years;

(ix) Heidelberg Materials is a supplier of the Undertaking Appointment's employer or has been in the past three years; and

(x) any other relationship between Heidelberg Materials and the Undertaking Appointment or the Undertaking Appointment's employer that allows one to affect the business decisions of the other;

(d) details of any existing or past contractual relationships between the Undertaking Appointment or the Undertaking Appointment's employer and the ACCC within the past three years.

2.3 A document outlining the terms of appointment for the proposed Undertaking Appointment. This should identify the basis on which fees will be paid, including disclosure of any proposed performance-based fees.

3. Specific Information required for Proposed Undertaking Appointments

The ACCC requires the below information in relation to the relevant Undertaking Appointment.

Proposed Independent Auditor

3.1 A finalised draft audit plan for the Divestiture Business, in an editable format, drafted by the Proposed Independent Auditor and outlining (to the extent possible) the Proposed Independent Auditor’s plans regarding the Establishment Audit and the Audit Report.

Proposed Divestiture Agent

3.2 The finalised draft business sale agreement drafted by the Proposed Divestiture Agent in consultation with Heidelberg Materials, in an editable format. The draft business sale agreement is to provide for the divestiture of the Unsold Business.

3.3 The Proposed Divestiture Agent’s draft marketing and sale plan for the Unsold Business, in an editable format.

Proposed Independent Manager

3.4 The finalised draft separation and management plan for the Divestiture Business, in an editable format, detailing the measures and timing to be implemented by Heidelberg Materials and the Approved Independent Manager in order to fulfil Heidelberg Materials’ and the Approved Independent Manager’s obligations pursuant to this Undertaking. This plan is to be drafted by the Proposed Independent Manager in consultation with Heidelberg Materials to achieve the objectives of the Undertaking including:

(a) the intended mode of operation of the Divestiture Business until completion of its divestiture;

(b) separation measures to ensure the Divestiture Business is operated in a manner which is financially and operationally separate from Heidelberg Materials, including the;

(i) separation of the books and records of the Divestiture Business from those of Heidelberg Materials;

(ii) severance of the Divestiture Business’ participation in any private shared information technology networks, to the extent possible without compromising the viability of the Divestiture Business;

(iii) implementation of specific electronic, information and physical security measures to maintain the confidentiality of any competitively sensitive information of the Divestiture Business; and

(iv) severance of arrangements to share personnel and plant between the Divestiture Business and any businesses to be retained by Heidelberg Materials, to the extent possible without compromising the viability of the Divestiture Business;

(c) details of contracts for the provision of goods or services to the Divestiture Business which will expire after the completion of the divestiture of the Divestiture Business to the Approved Purchaser and the actions which will be taken to ensure they are replaced, renewed and/or renegotiated on commercial terms favourable to the Divestiture Business;

(d) personnel planning to maintain appropriate personnel levels and ensure that the Divestiture Business has access to all personnel necessary to operate the Divestiture Business;

(e) any Material Changes to the Divestiture Business required in order to fulfil Heidelberg Materials' and the Approved Independent Manager's obligations pursuant to the Undertaking;

(f) the cooperation required from the Approved Independent Manager with Heidelberg Materials in relation to the divestiture of the Divestiture Business, including:

(i) the activities to be conducted by the Approved Independent Manager that are necessary for the effective operation of the Divestiture Business, having regard to the nature of the Divestiture Business (including the extent to which the Divestiture Business already has a management structure in place prior to the proposed acquisition that will be retained during the hold separate period);

(ii) the method by which due diligence information, site visits and personnel interviews by and to prospective purchasers of the Divestiture Business will be managed;

(iii) the method by which the Approved Independent Manager and Heidelberg Materials will preserve the confidentiality of the Divestiture Business' competitively sensitive information from Heidelberg Materials and its advisers throughout this process; and

(iv) a protocol whereby the Approved Independent Manager can provide any information requested by Heidelberg Materials without disclosing the details of the Divestiture Business' competitively sensitive information to Heidelberg Materials.

Schedule 4 – Divestiture Business

Each of the following is a Divestiture Business:

1. All of the assets used in and comprising the HMA North Wollongong RMX business located at 63 Montague Street, North Wollongong NSW 2500, including (unless excluded at the Approved Purchaser's election):
    - the freehold interest in the land on which the business is located, being 59 and 63 Montague Street, North Wollongong NSW 2500 (Lots 18 and 19 on Deposited Plan 219589);
    - the plant and equipment of the business, which include:
        - (**civil works**) yard paving, settlement pits, washout pits, material storage bins, fencing, a batch/manager office and lunchroom;
        - (**fixed plant**) silos including foundations, aggregate weigh bin, loading conveyor, loading bay, electrical switchboard, air compressor, water tanks, pipes, pumps and connections;
        - (**mobile plant**) 5 concrete agitators based at the site (plus the contracts for 4 contracted lorry operator drivers), front end loader for batching and yard maintenance;
        - (**IT**) Command Batch batching system (including existing concrete mix designs pre-loaded on the system); and
        - (**inventory**) an amount of stock that will enable the continuation of commercial operation.

2. All of the assets used in and comprising the HMA Bass Point RMX business located at Bass Point Quarry Road, Shell Cove NSW 2529, including (unless excluded at the Approved Purchaser's election):
    - a right to occupy the parcel of land where the business is located (which would be effected through the creation of a license granting such a right to the Approved Purchaser);
    - the plant and equipment of the business, which include:
        - (**civil works**) yard paving, settlement pits, washout pits, material storage bins, fencing, a batch/manager office and lunchroom;
        - (**fixed plant**) silos including foundations, aggregate weigh bin, loading conveyor, loading bay, electrical switchboard, air compressor, water tanks, pipes, pumps and connections;
        - (**mobile plant**) 9 concrete agitators based at the site, front end loader for batching and yard maintenance;
        - (**IT**) Command Batch batching system (including existing concrete mix designs pre-loaded on the system); and
        - (**inventory**) an amount of stock that will enable the continuation of commercial operation.

Confidential Schedule 5

1. **[Redacted – Confidential]**

Attachment B – s87B undertaking

Undertaking to the Australian Competition and Consumer Commission

Given under section 87B of the *Competition and Consumer Act 2010* (Cth) by Heidelberg Materials AG and Heidelberg Materials Australia Holdings Pty Ltd (ACN 611 565 649)

Contents

1. Person giving the Undertaking

1.1. This Undertaking is given to the Australian Competition and Consumer Commission (**ACCC**) by Heidelberg Materials AG and its subsidiary Heidelberg Materials Australia Holdings Pty Ltd (ACN 611 565 649) (together referred to as **Heidelberg Materials** in this Undertaking).

2. Background

The parties to the proposed acquisition

2.1. Heidelberg Materials Australia Holdings Pty Ltd ACN 611 565 649.

2.2. Maas Group Holdings Limited ACN 632 994 542.

The Proposed Acquisition

2.3. On 5 February 2026, HMA entered into a share sale deed to acquire the construction materials business of MAAS (the **Proposed Acquisition**).

The Notification

2.4. On 26 May 2026, HMA lodged a notification in respect of the Proposed Acquisition with the ACCC (the **Notification**).

2.5. The objective of this Undertaking is to address the concerns about the Proposed Acquisition set out in the ACCC's determination and statement of reasons in respect of the Notification.

3. Commencement of this Undertaking

3.1. This Undertaking comes into effect when:

(a) this Undertaking is executed by Heidelberg Materials; and

(b) this Undertaking so executed is accepted by the ACCC

(the **Commencement Date**).

4. Cessation of Ongoing Obligations

Revocation

4.1. The ACCC may, at any time, revoke its acceptance of this Undertaking if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading. Such a revocation must be express and in writing.

Withdrawal

4.2. Heidelberg Materials may request withdrawal of this Undertaking pursuant to section 87B of the Act at any time. This Undertaking is taken to be withdrawn on the date the ACCC consents in writing to that withdrawal.

Waiver

4.3. The ACCC may, at any time, waive any of the obligations contained in this Undertaking. Such a waiver must be express and in writing.

Extension

4.4. The ACCC may, at any time, extend the date by which any of the obligations in this Undertaking is to be satisfied. Such an extension must be express and in writing.

Survival

4.5. Unless and until this Undertaking is withdrawn in accordance with section 87B(2) of the Act, clauses 1, 2, 3, 4, 9, 11, 12, 13, 14, 15, 16 and 17 survive completion of the obligations in clauses 5, 6, 7, 8, 10, Schedule 4 and Confidential Schedule 5.

5. Divestiture of the Divestiture Business

Divestiture

5.1. Heidelberg Materials must, in accordance with this Undertaking, divest, or cause the divestiture of, the Divestiture Business only to an Approved Purchaser.

5.2. In the event that clause 10 applies, Heidelberg Materials must not authorise the Approved Divestiture Agent to divest the Unsold Business to a purchaser other than an Approved Purchaser.

5.3. Heidelberg Materials must divest, or cause the divestiture of, the Divestiture Business by:

(a) the sale, assignment, transfer and/or licence of all of the assets in Schedule 4 to the Approved Purchaser, pursuant to the Approved Sale and Purchase Agreement and prior to the end of the Initial Sale Period, otherwise clause 10 applies;

(b) the transfer or grant to the Approved Purchaser of all Consents pursuant to clauses 5.4 to 5.5;

(c) the transfer of any Transferred Personnel required pursuant to clauses 5.7 to 5.8;

(d) compliance with any Approved Transitional Technical Assistance Agreement required pursuant to clauses 5.9 to 5.11; and

(e) compliance with any Approved Transitional Supply Agreement required pursuant to clauses 5.12 to 5.14.

Consents

5.4. Heidelberg Materials must:

(a) obtain or assist the Approved Purchaser to obtain as expeditiously as possible, all Consents as required before completion of the divestiture of the Divestiture Business;

(b) comply with all requirements necessary to obtain any Consents, including by promptly providing all information necessary for the Consents to be given;

(c) act in good faith in its negotiations with the Approved Purchaser in relation to obtaining any Consents;

(d) promptly pay the costs and expenses of any third party reasonably incurred in providing the Consents; and

(e) enter an agreement with the Approved Purchaser and approved by the ACCC, or vary any existing Approved Transitional Supply Agreement as required by the Approved Purchaser, in relation to any goods or services that are required for the operation of the Divestiture Business which may be affected by any failure to gain a Consent.

5.5. If, seven Business Days before completion of the divestiture of the Divestiture Business, the Approved Purchaser does not or is otherwise unable to obtain one or more Consents, then Heidelberg Materials must:

(a) immediately provide to the ACCC in writing details of the:

(i) Consents that have not been obtained;

(ii) reasons why the Consents have not been obtained; and

(iii) information or material required to obtain the Consents.

(b) continue to do everything in its power to satisfy clause 5.4 as soon as possible after the completion of the divestiture of the Divestiture Business (and until such time as clause 5.4 is satisfied).

5.6. Even if Heidelberg Materials has complied with clause 5.4 to 5.5, it will be in breach of this Undertaking if it is unable to effect the divestiture of the Divestiture Business by reason that one or more Consents are not obtained.

Transferred Personnel

5.7. At the option of the Approved Purchaser, Heidelberg Materials must transfer to the Approved Purchaser:

(a) all employees; and

(b) all service providers under a contract for service;

who are, in the view of the Approved Purchaser, required for the Approved Purchaser to maintain, operate or conduct effectively the Divestiture Business and who consent to the transfer of their employment or contract for service to the Approved Purchaser (**Transferred Personnel**).

5.8. When fulfilling its obligations under clause 5.7, Heidelberg Materials must:

(a) encourage all Transferred Personnel to remain with the Divestiture Business, including offering incentives based on industry practice;

(b) not directly or indirectly discourage any Transferred Personnel from any obligations to provide services to the Divestiture Business;

(c) effective on the date of the divestiture of the Divestiture Business, release the Transferred Personnel from any obligations to provide services to Heidelberg Materials;

(d) effective on the date of the divestiture of the Divestiture Business, release the Transferred Personnel from any non-compete or similar restraint of trade obligation, to the extent that such an obligation would otherwise prevent the person from performing his or her contemplated role in relation to the Divestiture Business or Unsold Business; and

(e) not procure, promote or encourage the transfer of any of the Transferred Personnel from the Approved Purchaser to Heidelberg Materials for a period of 12 months after the completion of the divestiture of the Divestiture Business.

Technical Assistance

5.9. At the option of the Approved Purchaser, Heidelberg Materials must supply to the Approved Purchaser, under an Approved Transitional Technical Assistance Agreement, any Technical Assistance that is required by the Approved Purchaser in order to operate the Divestiture Business.

5.10. Heidelberg Materials must ensure that any Approved Transitional Technical Assistance Agreement, and any renewal or extension of an Approved Transitional Technical Assistance Agreement, provides for the supply of Technical Assistance:

(a) on a transitional basis for a period that is nominated by the Approved Purchaser and approved in writing by the ACCC; and

(b) at cost price and otherwise on arm’s length terms.

5.11. To avoid doubt, Heidelberg Materials must seek prior written approval from the ACCC of any renewal or extension of an Approved Transitional Technical Assistance Agreement. Without limiting the ACCC’s discretion in making a decision on whether to approve a renewal or extension of an Approved Transitional Technical Assistance Agreement, the ACCC will have regard to the criteria set out in clauses 5.9 and 5.10.

Transitional Supply Agreements

5.12. At the option of the Approved Purchaser, Heidelberg Materials must ensure the continued supply by Heidelberg Materials to the Approved Purchaser, under an Approved Transitional Supply Agreement, of any goods or services that are required by the Approved Purchaser in order for the Approved Purchaser to be established as a viable, effective, stand-alone, independent and long-term competitor in the supply of RMX in Blackwater.

5.13. Heidelberg Materials must ensure that any Approved Transitional Supply Agreement and any renewal or extension of an Approved Transitional Supply Agreement:

(a) is for a reasonable transitional period, to be nominated by the Approved Purchaser and approved in writing by the ACCC;

(b) provides for the supply of the included goods and services at cost price; and

(c) is on such terms other than price which are no less favourable to the Approved Purchaser than arm's length terms.

5.14. To avoid doubt, Heidelberg Materials must seek prior written approval from the ACCC of any renewal or extension of an Approved Transitional Supply Agreement. Without limiting the ACCC's discretion in making a decision on whether to approve a renewal or extension of an Approved Transitional Supply Agreement, the ACCC will have regard to the criteria set out in clauses 5.12 and 5.13.

6. Process for approving a proposed purchaser

Potential purchasers

6.1. Heidelberg Materials must provide the ACCC and Approved Independent Auditor with:

(a) the identity of any person who expresses an interest in acquiring the Divestiture Business;

(b) the status of negotiations with each person; and

(c) a copy of each person's offer to acquire the Divestiture Business, where relevant;

at the following times:

(d) as soon as possible following the Commencement Date for those persons who express interest before the Commencement Date;

(e) after the Commencement Date, within 10 Business Days of each person expressing the interest and/or providing an offer;

regardless of whether the person subsequently withdraws or is declined.

Provision of a notice for a Proposed Purchaser

6.2. To seek ACCC approval for a Proposed Purchaser, Heidelberg Materials or the Approved Divestiture Agent must provide the ACCC with a notice in the form prescribed in Schedule 2 to this Undertaking (**Proposed Purchaser Notice**), including a draft sale and purchase agreement, a draft transitional technical assistance agreement (where required by the Proposed Purchaser), and a draft transitional supply agreement (where required by the Proposed Purchaser).

6.3. The Proposed Purchaser Notice must be provided to the ACCC at least 20 Business Days prior to the end of the Initial Sale Period.

Purchaser approved at the time the Undertaking was accepted

6.4. At the time this Undertaking was accepted, the ACCC also considered information of the type required in a Proposed Purchaser Notice and approved Corbet Property Pty Ltd (ACN 162 344 916) as trustee for the Corbet Property Trust (**Corbet's**) as the Approved Purchaser of the Divestiture Business, subject to clause 6.8.

6.5. ACCC approval of Corbet's as the Approved Purchaser of the Divestiture Business included approval of the Asset Sale Agreement for the Blackwater RMX plant dated 8 June 2026 (as subsequently amended on 17 July 2026) as the Approved Sale and Purchase Agreement.

Approval of a Proposed Purchaser after the Commencement Date

6.6. The ACCC may, in its discretion, approve or reject in writing the Proposed Purchaser identified in the Proposed Purchaser Notice. In exercising this discretion, the ACCC will consider, without limitation:

(a) the draft sale and purchase agreement attached to the Proposed Purchaser Notice;

(b) any draft transitional technical assistance agreement attached to the Proposed Purchaser Notice, in accordance with the criteria in clauses 5.9 and 5.10; and

(c) any draft transitional supply agreement attached to the Proposed Purchaser Notice, in accordance with the criteria in clauses 5.12 and 5.13.

6.7. Without limiting the ACCC's discretion, in making the decision pursuant to clause 6.6, the factors to which the ACCC may have regard include whether the:

(a) draft sale and purchase agreement is consistent with this Undertaking;

(b) Proposed Purchaser will complete the transaction as contemplated by the draft sale and purchase agreement;

(c) Proposed Purchaser is independent of Heidelberg Materials;

(d) Proposed Purchaser is of good financial standing;

(e) Proposed Purchaser has a history of competition law compliance;

(f) Proposed Purchaser has an intention to maintain and operate the Divestiture Business as a going concern;

(g) Proposed Purchaser is able to conduct the Divestiture Business effectively; and

(h) divestiture of the Divestiture Business to the Proposed Purchaser will address any competition concerns of the ACCC, including in relation to the likely long-term viability and competitiveness of the Divestiture Business under the ownership of the Proposed Purchaser.

6.8. The ACCC may revoke an Approved Purchaser's status as the Approved Purchaser if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading.

7. Divestiture Business Protection

Protection of the Divestiture Business

7.1. From the Commencement Date, Heidelberg Materials must not sell or transfer its interest, or any assets comprising part of, or used in, the Divestiture Business (other than the sale of goods and services in the ordinary course of business) or make any Material Change, except in accordance with this Undertaking or (subject to the other terms of this Undertaking) as necessary to allow completion of the Proposed Acquisition.

Heidelberg Materials' obligations in relation to the Divestiture Business prior to completion of divestiture

7.2. Without limiting this clause 7, Heidelberg Materials must, from the Commencement Date until completion of the divestiture of the Divestiture Business, take all steps available to it to:

(a) ensure that the Divestiture Business is managed and operated in the ordinary course of business as a fully operational, competitive going concern and in such a way that preserves the economic viability, marketability, competitiveness and goodwill of the Divestiture Business at the Commencement Date;

(b) continue to provide access to working capital and sources of credit for the Divestiture Business in a manner which is consistent with the financing of the Divestiture Business before the Commencement Date;

(c) continue to provide administrative and technical support for the Divestiture Business in a manner which is consistent with the operation of the Divestiture Business before the Commencement Date and in accordance with any plans established before the Commencement Date;

(d) continue existing Agreements relating to the Divestiture Business with customers, suppliers and/or other third parties that are in place at the Commencement Date;

(e) renew or replace upon expiry Material Contracts for the provision of goods or services to the Divestiture Business on commercial terms favourable to the Divestiture Business;

(f) maintain the supply of those goods and services that are part of the Divestiture Business to existing customers in a manner consistent with the supply of those goods and services as at the Commencement Date;

(g) maintain the standard of manufacture, distribution, promotion and sale of those products which form part of the Divestiture Business as at the Commencement Date;

(h) promote and market the products that form part of the Divestiture Business in accordance with any plans established before the Commencement Date; and

(i) carry out such other actions or plans that the Approved Independent Manager considers to be necessary or convenient to maintain the Divestiture Business as an effectively competitive going concern.

Personnel of Heidelberg Materials

7.3. From the Commencement Date until completion of the divestiture of the Divestiture Business, Heidelberg Materials must:

(a) in consultation with the Approved Independent Manager (if one has been appointed), replace any

(i) Transferred Personnel; or

(ii) if the Transferred Personnel have not yet been identified, any personnel necessary for the operation of the Divestiture Business;

who leave or will leave the Divestiture Business before divestiture;

(b) not terminate or vary the terms of employment or engagement (or agree to do any of those things) of any of the

(i) Transferred Personnel; or

(ii) if the Transferred Personnel have not yet been identified, any personnel necessary for the operation of the Divestiture Business; and

(c) not directly or indirectly procure, promote or encourage the redeployment of personnel necessary for the operation of the Divestiture Business as at the Commencement Date to any other business operated by Heidelberg Materials.

7.4. As soon as practicable after the Commencement Date, Heidelberg Materials must direct its personnel, including directors, contractors, managers, officers, employees and agents not to do anything inconsistent with Heidelberg Materials' obligations under this Undertaking.

Heidelberg Materials' ongoing obligations in relation to the Divestiture Business

7.5. To the extent Heidelberg Materials has obligations in relation to the provision of transitional technical assistance or continued supply pursuant to clauses 5.9 to 5.14 of this Undertaking in relation to the Divestiture Business, Heidelberg Materials must not sell, assign, transfer, and/or licence directly or indirectly any of the assets necessary to fulfil such obligations without the prior written consent of the ACCC.

Confidential Information

7.6. Subject to clause 7.7, Heidelberg Materials must not, at any time from the Commencement Date, use or disclose any confidential information about the Divestiture Business gained through:

(a) ownership and/or management of the Divestiture Business; or

(b) fulfilling any obligations pursuant to this Undertaking.

7.7. Clause 7.6 does not apply to information that Heidelberg Materials requires to:

(a) comply with legal and regulatory obligations including obligations relating to taxation, accounting, financial reporting or stock exchange disclosure requirements; or

(b) carry out its obligations pursuant to this Undertaking;

provided such information is only used for that purpose and is only disclosed to those officers, employees, contractors and advisers of Heidelberg Materials who need to know the information to carry out the permitted purpose.

8. Independent Management of the Divestiture Business

Obligation to appoint an Approved Independent Manager

8.1. Unless the sale of the Divestiture Business has been completed prior to the Control Date, Heidelberg Materials must appoint and maintain an Approved Independent Manager to manage the Divestiture Business, from the Control Date until the completion of the divestiture of the Divestiture Business in accordance with this Undertaking.

Process for approving a Proposed Independent Manager

8.2. Unless as at 15 Business Days before the Control Date, Heidelberg Materials has already completed the sale of the Divestiture Business, Heidelberg Materials must provide the ACCC with a notice for a Proposed Independent Manager in the form prescribed in Schedule 3 to this Undertaking (**Proposed Independent Manager Notice**), including a draft terms of appointment and a draft separation and management plan.

8.3. If clauses 8.12, 8.13 or 8.14 apply, Heidelberg Materials must provide the ACCC with a Proposed Independent Manager Notice within five Business Days after the relevant event occurs.

8.4. The ACCC shall have the discretion to approve or reject in writing the Proposed Independent Manager identified in the Proposed Independent Manager Notice.

8.5. Without limiting the ACCC's discretion, in deciding whether to approve a Proposed Independent Manager, the factors to which the ACCC may have regard include whether the:

(a) person named in the Proposed Independent Manager Notice or identified by the ACCC has the qualifications and experience necessary to manage the Divestiture Business;

(b) person named in the Proposed Independent Manager Notice or identified by the ACCC is sufficiently independent of Heidelberg Materials;

(c) draft terms of appointment and the draft separation and management plan are consistent with this Undertaking; and

(d) draft terms of appointment and the draft separation and management plan are otherwise acceptable to the ACCC.

Appointment of the Approved Independent Manager

8.6. After receiving a written notice from the ACCC of its approval of the Proposed Independent Manager, the draft terms of appointment and draft separation and management plan, Heidelberg Materials must by the Control Date:

(a) appoint the person approved by the ACCC as the Approved Independent Manager on the Approved Terms of Appointment; and

(b) forward to the ACCC a copy of the executed Approved Terms of Appointment.

Failure to appoint

8.7. If:

(a) the Approved Independent Manager has not been appointed by the Control Date;

(b) the Approved Independent Manager has not been appointed within 15 Business Days after the Approved Independent Manager resigns or otherwise ceases to act as the Approved Independent Manager pursuant to clause 8.12, 8.13 or 8.14; or

(c) the ACCC has not received a Proposed Independent Manager Notice pursuant to clause 8.2 or 8.3;

then clause 8.8 applies.

8.8. If clause 8.7 applies, the ACCC may, in its discretion:

(a) identify and approve a person as the Approved Independent Manager, including approving the draft terms of appointment of the Approved Independent Manager and the draft separation and management plan; and/or

(b) direct Heidelberg Materials to appoint a person who the ACCC has deemed is an Approved Independent Manager.

Obligations and powers of the Approved Independent Manager

8.9. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Independent Manager include obligations on the Approved Independent Manager to:

(a) maintain his or her independence from Heidelberg Materials, apart from appointment to the role of Approved Independent Manager, including not forming any relationship of the types described in paragraph 2.2(c) of Schedule 3 to this Undertaking with Heidelberg Materials for the period of his or her appointment;

(b) act in the best interests of the Divestiture Business at all times including ensuring that the Divestiture Business is managed and operated in the ordinary course of business as a fully operational, competitive going concern and in such a way that preserves the economic viability, marketability, competitiveness and goodwill of the Divestiture Business at the Control Date;

(c) not use any confidential information gained through the management of the Divestiture Business other than for performing his or her functions as Approved Independent Manager;

(d) make only those Material Changes to the Divestiture Business which the ACCC does not object to;

(e) operate and manage the Divestiture Business to the maximum extent practicable, in a manner which is financially and operationally separate from Heidelberg Materials;

(f) co-operate with the requests of any Approved Divestiture Agent or Approved Independent Auditor appointed pursuant to this Undertaking;

(g) provide the following reports directly to the ACCC:

(i) a monthly written report regarding the implementation of and any suggested changes to the Approved Separation and Management Plan; and

(ii) an immediate report of any issues that arise in relation to the implementation of the Approved Separation and Management Plan or Heidelberg Materials' compliance with this Undertaking; and

(h) follow any direction given to him or her by the ACCC in relation to the performance of his or her functions as Approved Independent Manager pursuant to this Undertaking.

8.10. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Independent Manager provide the Approved Independent Manager with the sole authority to:

(a) manage and operate the Divestiture Business according to the Approved Separation and Management Plan until the completion of the divestiture of the Divestiture Business;

(b) provide any information requested by Heidelberg Materials pursuant to the protocol in the Approved Separation and Management Plan;

(c) decide whether or not to provide access and the manner of such access to competitively sensitive information relating to the Divestiture Business requested by Heidelberg Materials which is not covered by the protocol in the Approved Separation and Management Plan;

(d) renew or replace upon expiry Material Contracts and enter into new contracts for the provision of goods or services to the Divestiture Business on commercial terms favourable to the Divestiture Business;

(e) engage, redeploy or make redundant personnel employed in the Divestiture Business as the Approved Independent Manager determines necessary; and

(f) engage any external expertise, assistance or advice required by the Approved Independent Manager to perform his or her functions as the Approved Independent Manager.

Heidelberg Materials' obligations in relation to the Approved Independent Manager

8.11. Without limiting its obligations in this Undertaking, Heidelberg Materials must:

(a) comply with and enforce the Approved Terms of Appointment of the Approved Independent Manager;

(b) maintain and fund the Approved Independent Manager to carry out his or her functions, including:

(i) indemnifying the Approved Independent Manager for any expenses, loss, claim or damage arising directly or indirectly from the performance by the Approved Independent Manager of his or her functions as the Approved Independent Manager except where such expenses, loss, claim or damage arises out of the gross negligence, fraud, misconduct or breach of duty by the Approved Independent Manager;

(ii) ensuring that the Approved Independent Manager is fully able to acquire and pay for sufficient and timely delivery of all goods and services (including from third parties) which the Approved Independent Manager considers are required by the Divestiture Business; and

(iii) providing and paying for any external expertise, assistance or advice required by the Approved Independent Manager to perform his or her functions as the Approved Independent Manager; and

(c) not interfere with the authority of, or otherwise hinder, the Approved Independent Manager's ability to carry out his or her obligations as the Approved Independent Manager, including:

(i) accepting (and directing its directors, contractors, managers, officers, employees and agents to accept) direction from the Approved Independent Manager as to the control, management, financing and operations of the Divestiture Business, and for the Divestiture Business to meet all legal, corporate, financial, accounting, taxation, audit and regulatory obligations;

(ii) providing access to the facilities, sites or operations of the Divestiture Business required by the Approved Independent Manager;

(iii) providing to the Approved Independent Manager any information or documents that they consider necessary for managing and operating the Divestiture Business or for reporting to or otherwise advising the ACCC;

(iv) not requesting information or reports regarding the Divestiture Business from the personnel of the Divestiture Business except through the Approved Independent Manager; and

(v) not appointing the Approved Independent Manager, or have any Agreements with the Approved Independent Manager, to utilise the Approved Independent Manager's services for anything other than compliance with this Undertaking until at least 12 months after the Approved Independent Manager ceases to act in the role of the Approved Independent Manager.

Resignation, revocation or termination of the Approved Independent Manager

8.12. Heidelberg Materials must immediately notify the ACCC in the event that the Approved Independent Manager resigns or otherwise stops acting as the Approved Independent Manager before the completion of the divestiture of the Divestiture Business.

8.13. The ACCC may revoke an Approved Independent Manager's status as the Approved Independent Manager if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading.

8.14. The ACCC may approve any proposal by, or alternatively may direct, Heidelberg Materials to terminate the appointment of the Approved Independent Manager if in the ACCC's view the Approved Independent Manager acts inconsistently with the provisions of this Undertaking or the Approved Terms of Appointment.

9. Independent Audit

Obligation to appoint an Approved Independent Auditor

9.1. Unless the sale of the Divestiture Business has been completed prior to the Control Date, Heidelberg Materials must appoint and maintain an Approved Independent Auditor to audit and report upon Heidelberg Materials' compliance with this Undertaking.

Process for approving a Proposed Independent Auditor

9.2. At least 15 Business Days before the Control Date, Heidelberg Materials must either:

(a) provide the ACCC with written confirmation that the sale of the Divestiture Business has completed; or

(b) provide the ACCC with a notice for a Proposed Independent Auditor in the form prescribed in Schedule 3 to this Undertaking (**Proposed Independent Auditor Notice**), including draft terms of appointment and a draft audit plan.

9.3. The Approved Independent Auditor is to be appointed for a term of two years. Within 15 Business Days of the end of the Approved Independent Auditor's term, Heidelberg Materials must provide the ACCC with a new Proposed Independent Auditor Notice. A person who is, or who has been, the Independent Auditor is eligible for reappointment as the Independent Auditor.

9.4. If clauses 9.17, 9.18 or 9.19 apply, Heidelberg Materials must provide the ACCC with a Proposed Independent Auditor Notice within five Business Days after the relevant event occurs.

9.5. The ACCC shall have the discretion to approve or reject in writing the Proposed Independent Auditor identified in the Proposed Independent Auditor Notice.

9.6. Without limiting the ACCC's discretion, in deciding whether to approve a Proposed Independent Auditor, the factors to which the ACCC may have regard include whether the:

(a) person named in the Proposed Independent Auditor Notice or identified by the ACCC has the qualifications and experience necessary to carry out the functions of the Approved Independent Auditor;

(b) person named in the Proposed Independent Auditor Notice or identified by the ACCC is sufficiently independent of Heidelberg Materials;

(c) draft terms of appointment and the draft audit plan are consistent with this Undertaking; and

(d) draft terms of appointment and the draft audit plan are otherwise acceptable to the ACCC.

Appointment of the Approved Independent Auditor

9.7. After receiving a written notice from the ACCC of its approval of a Proposed Independent Auditor, the draft terms of appointment and draft audit plan, Heidelberg Materials must by the Control Date:

(a) appoint the person approved by the ACCC as the Approved Independent Auditor on the Approved Terms of Appointment; and

(b) forward to the ACCC a copy of the executed Approved Terms of Appointment.

Failure to appoint

9.8. If:

(a) the Approved Independent Auditor has not been appointed by the Control Date;

(b) the Approved Independent Auditor has not been appointed within 15 Business Days after the Approved Independent Auditor resigns or otherwise ceases to act as the Approved Independent Auditor pursuant to clause 9.17, 9.18, or 9.19; or

(c) subject to clause 9.2(a), the ACCC has not received a Proposed Independent Auditor Notice pursuant to clause 9.2 and 9.4;

then clause 9.9 applies.

9.9. If clause 9.8 applies, the ACCC at its absolute discretion may:

(a) identify and approve a person as the Approved Independent Auditor, including approving the draft terms of appointment and draft audit plan; and/or

(b) direct Heidelberg Materials to appoint a person who the ACCC has deemed is an Approved Independent Auditor.

Obligations and powers of the Approved Independent Auditor

9.10. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Independent Auditor include obligations on the Approved Independent Auditor to:

(a) maintain his or her independence from Heidelberg Materials, apart from appointment to the role of Approved Independent Auditor, including not forming any relationship of the types described in paragraph 1.1(c) of Schedule 3 to this Undertaking with Heidelberg Materials for the period of his or her appointment;

(b) conduct compliance auditing according to the Approved Audit Plan;

(c) where requested by the ACCC, assess the suitability of any Proposed Purchaser or potential purchaser of the Divestiture Business against the factors (as relevant) in clause 6.7;

(d) provide the following reports directly to the ACCC:

(i) a scheduled written Audit Report as described in clause 9.12;

(ii) an immediate report of any issues that arise in relation to the performance of his or her functions as Approved Independent Auditor or in relation to compliance with this Undertaking by any person named in this Undertaking; and

(iii) where requested by the ACCC, a report on the suitability of any Proposed Purchaser or potential purchaser of the Divestiture Business following an assessment under clause 9.10(c); and

(e) follow any direction given to him or her by the ACCC in relation to the performance of his or her functions as Approved Independent Auditor under this Undertaking.

9.11. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Independent Auditor provide the Approved Independent Auditor with the authority to:

(a) access the facilities, sites or operations of the Divestiture Business and Heidelberg Materials' other businesses as required by the Approved Independent Auditor;

(b) access any information or documents that the Approved Independent Auditor considers necessary for carrying out his or her functions as the Approved Independent Auditor or for reporting to or otherwise advising the ACCC; and

(c) engage any external expertise, assistance or advice required by the Approved Independent Auditor to perform his or her functions as the Approved Independent Auditor.

Compliance Audit

9.12. The Approved Independent Auditor must conduct an audit and prepare a detailed report (**Audit Report**) that includes:

(a) the Approved Independent Auditor's procedures in conducting the audit, or any change to audit procedures and processes since the previous Audit Report;

(b) a full audit of Heidelberg Materials' compliance with this Undertaking;

(c) identification of any areas of uncertainty or ambiguity in the Approved Independent Auditor's interpretation of any obligations contained in this Undertaking;

(d) all of the reasons for the conclusions reached in the Audit Report;

(e) any qualifications made by the Approved Independent Auditor in forming his or her views;

(f) any recommendations by the Approved Independent Auditor to improve:

(i) the Approved Audit Plan;

(ii) the integrity of the auditing process;

(iii) Heidelberg Materials' processes or reporting systems in relation to compliance with this Undertaking; and

(iv) Heidelberg Materials' compliance with this Undertaking; and

(g) the implementation and outcome of any prior recommendations by the Approved Independent Auditor.

9.13. The Approved Independent Auditor is to provide an Audit Report to the ACCC and Heidelberg Materials at the following times:

(a) within 20 Business Days after the Control Date, at which time the Audit Report is to include the results of the initial audit and any recommended changes to the Approved Audit Plan, including the Approved Independent Auditor's proposed procedures and processes for conducting the audit (**Establishment Audit**);

(b) every month from the date of the Establishment Audit until one month after the divestiture of the Divestiture Business is completed; and

(c) every three months after the date of provision of the last Audit Report pursuant to clause 9.13(b), until the ACCC confirms in writing to Heidelberg Materials that it is satisfied that Heidelberg Materials has fulfilled its obligations pursuant to this Undertaking.

9.14. Heidelberg Materials must implement any recommendations made by the Approved Independent Auditor in Audit Reports, and notify the ACCC of the implementation of the recommendations, within 10 Business Days after receiving the Audit Report or such other period as agreed in writing with the ACCC.

9.15. Heidelberg Materials must comply with any direction of the ACCC in relation to matters arising from the Audit Report within 10 Business Days after being so directed (or such other period as agreed in writing with the ACCC).

Heidelberg Materials' obligations in relation to the Approved Independent Auditor

9.16. Without limiting its obligations in this Undertaking, Heidelberg Materials must:

(a) comply with and enforce the Approved Terms of Appointment for the Approved Independent Auditor;

(b) maintain and fund the Approved Independent Auditor to carry out his or her functions including:

   (i) indemnifying the Approved Independent Auditor for any expenses, loss, claim or damage arising directly or indirectly from the performance by the Approved Independent Auditor of his or her functions as the Approved Independent Auditor except where such expenses, loss, claim or damage arises out of the gross negligence, fraud, misconduct or breach of duty by the Approved Independent Auditor;

   (ii) providing and paying for any external expertise, assistance or advice required by the Approved Independent Auditor to perform his or her functions as the Approved Independent Auditor; and

(c) not interfere with, or otherwise hinder, the Approved Independent Auditor's ability to carry out his or her functions as the Approved Independent Auditor, including:

   (i) directing Heidelberg Materials personnel, including directors, contractors, managers, officers, employees and agents, to act in accordance with this clause 9;

   (ii) providing access to the facilities, sites or operations of the Divestiture Business and Heidelberg Materials' other businesses as required by the Approved Independent Auditor;

   (iii) providing to the Approved Independent Auditor any information or documents that they consider necessary for carrying out his or her functions as the Approved Independent Auditor or for reporting to or otherwise advising the ACCC;

   (iv) not requesting any information relating to the compliance audit from the Approved Independent Auditor without such a request having been approved by the ACCC; and

   (v) not appointing the Approved Independent Auditor, or have any Agreements with the Approved Independent Auditor, to utilise the Approved Independent Auditor's services for anything other than compliance with this Undertaking until at least 12 months after the Approved Independent Auditor ceases to act in the role of the Approved Independent Auditor.

Resignation, revocation or termination of the Approved Independent Auditor

9.17. Heidelberg Materials must immediately notify the ACCC in the event that the Approved Independent Auditor resigns or otherwise stops acting as the Approved Independent Auditor.

9.18. The ACCC may revoke an Approved Independent Auditor's status as the Approved Independent Auditor if the ACCC becomes aware that any information provided to it in connection with the appointment of the Approved Independent Auditor was incorrect, inaccurate or misleading.

9.19. The ACCC may approve, pursuant to clause 9.5, any proposal by, or alternatively may direct, Heidelberg Materials to terminate the appointment of the Approved Independent Auditor if in the ACCC's view the Approved Independent Auditor acts inconsistently with the provisions of this Undertaking and/or the Approved Terms of Appointment or the Approved Independent Auditor fails to perform their role to an adequate standard.

10. Failure to divest the Divestiture Business prior to the end of the Initial Sale Period

Divestiture of the Unsold Business

10.1. In the event that the divestiture of the Divestiture Business to an Approved Purchaser is not completed by the end of the Initial Sale Period, the Divestiture Business becomes an unsold business (**Unsold Business**) and the provisions of this clause 10 apply.

Obligation to appoint an Approved Divestiture Agent

10.2. From the end of the Initial Sale Period, Heidelberg Materials must appoint and maintain an Approved Divestiture Agent to effect the divestiture of the Unsold Business.

Process for approving a Proposed Divestiture Agent

10.3. At least 15 Business Days prior to the end of the Initial Sale Period, if the divestiture of the Divestiture Business has not been completed, Heidelberg Materials must provide the ACCC with a notice for a Proposed Divestiture Agent in the form of Schedule 3 to this Undertaking (**Proposed Divestiture Agent Notice**) including draft terms of appointment, a draft business sale agreement, and draft marketing and sale plan.

10.4. If clauses 10.14, 10.15 or 10.16 apply, Heidelberg Materials must provide the ACCC with a Proposed Divestiture Agent Notice within five Business Days after the relevant event occurs.

10.5. The ACCC shall have the discretion to approve or reject in writing the Proposed Divestiture Agent.

10.6. Without limiting the ACCC's discretion, in deciding whether to approve a Proposed Divestiture Agent, the factors to which the ACCC may have regard include whether the:

(a) person named in the Proposed Divestiture Agent Notice or identified by the ACCC has the qualifications and experience necessary to carry out the functions of the Approved Divestiture Agent;

(b) person named in the Proposed Divestiture Agent Notice or identified by the ACCC is sufficiently independent of Heidelberg Materials;

(c) draft terms of appointment, draft business sale agreement and draft marketing and sale plan are consistent with this Undertaking; and

(d) draft terms of appointment, draft business sale agreement and draft marketing and sale plan are otherwise acceptable to the ACCC.

Appointment of the Approved Divestiture Agent

10.7. After receiving written notice from the ACCC of its approval of the Proposed Divestiture Agent, the draft terms of appointment, draft business sale agreement and draft marketing and sale plan, Heidelberg Materials must within two Business Days:

(a) appoint the person approved by the ACCC as the Approved Divestiture Agent on the Approved Terms of Appointment; and

(b) forward to the ACCC a copy of the executed Approved Terms of Appointment.

Failure to appoint

10.8. If:

(a) the Approved Divestiture Agent has not been appointed within 10 Business Days after the Divestiture Business becomes an Unsold Business;

(b) the Approved Divestiture Agent has not been appointed within 15 Business Days after the Approved Divestiture Agent resigns or otherwise ceases to act pursuant to clauses 10.14, 10.15 or 10.16; or

(c) the ACCC has not received a Proposed Divestiture Agent Notice pursuant to clause 10.3 and 10.4;

then clause 10.9 applies.

10.9. If clause 10.8 applies, the ACCC may, at its absolute discretion:

(a) identify and approve a person as the Approved Divestiture Agent, including approving the draft terms of appointment of the Approved Divestiture Agent, draft business sale agreement and draft marketing and sale plan; and/or

(b) direct Heidelberg Materials to appoint a person who the ACCC has deemed is an Approved Divestiture Agent.

Obligations and powers of the Approved Divestiture Agent

10.10. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Divestiture Agent include obligations on the Approved Divestiture Agent to:

(a) divest the Unsold Business only to an Approved Purchaser, at no minimum price;

(b) maintain his or her independence from Heidelberg Materials, apart from appointment to the role of Approved Divestiture Agent, including not form any relationship of the types described in paragraph 2.2(c) of Schedule 3 to this Undertaking with Heidelberg Materials for the period of his or her appointment;

(c) not use any confidential information gained through the divestiture of the Unsold Business other than for performing his or her functions as Approved Divestiture Agent;

(d) follow the Approved Marketing and Sale Plan;

(e) use his or her best endeavours to enter into a binding agreement for the divestiture of the Unsold Business as quickly as possible using the Approved Business Sale Agreement;

(f) co-operate with the requests of any Approved Independent Manager or Approved Independent Auditor appointed pursuant to this Undertaking;

(g) every 30 Business Days following appointment of the Approved Divestiture Agent, provide written reports directly to the ACCC which include:

  (i) information regarding the implementation of the Approved Business Sale Agreement and the Approved Marketing and Sale Plan including any previous changes approved by the ACCC;

  (ii) information regarding any suggested changes to any Approved Marketing and Sale Plan including any previous changes approved by the ACCC;

  (iii) an account and explanation of all disbursements, fees and charges incurred by the Approved Divestiture Agent in undertaking his or her duties by month and to the date of the report;

  (iv) a schedule of agreed fees of the Approved Divestiture Agent (including the fees of any adviser appointed under clause 10.11(d));

  (v) the efforts made to sell the Unsold Business;

  (vi) the identity of any advisers engaged;

  (vii) the identity of any persons expressing interest in the Unsold Business; and

  (viii) any other information required by the ACCC.

(h) within 30 Business Days after the completion of the divestiture of the Unsold Business, provide a written report directly to the ACCC which includes a final accounting of:

  (i) any moneys derived from the divestiture of the Unsold Business;

  (ii) all disbursements, fees and charges incurred by the Approved Divestiture Agent in fulfilling his or her duties; and

  (iii) all agreed fees of the Approved Divestiture Agent (including the fees of any adviser appointed under clause 10.11(d);

(i) immediately inform the ACCC of:

  (i) any issues that arise in relation to the implementation of the Approved Business Sale Agreement and any Approved Marketing and Sale Plan;

  (ii) non-compliance with this Undertaking by any person named in this Undertaking;

(iii) any offers for the Unsold Business;

(j) accept any offer for the Unsold Business upon instruction from Heidelberg Materials given in accordance with clause 10.13(d); and

(k) follow any direction given to him or her by the ACCC in relation to the performance of his or her functions as Approved Divestiture Agent pursuant to this Undertaking.

10.11. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Divestiture Agent contain an irrevocable grant of power of attorney conferring all necessary power and authority on the Approved Divestiture Agent to:

(a) negotiate with purchasers to divest the Unsold Business on terms considered by the Approved Divestiture Agent in his or her sole discretion to be consistent with this Undertaking and the Approved Marketing and Sale Plan;

(b) execute any agreements with the Approved Purchaser required pursuant to clause 6.6;

(c) upon instruction pursuant to clause 10.13(d), complete the divestiture of the Unsold Business to the Approved Purchaser in accordance with the Approved Business Sale Agreement; and

(d) engage any external expertise, assistance or advice required by the Approved Divestiture Agent to perform his or her functions as the Approved Divestiture Agent.

10.12. Any irrevocable power of attorney granted pursuant to clause 10.11 will end upon resignation or termination of the Approved Divestiture Agent in accordance with clauses 10.14, 10.15 and 10.16, or in the event that the Unsold Business is divested in accordance with this Undertaking.

Heidelberg Materials' obligations in relation to the Approved Divestiture Agent

10.13. Without limiting its obligations in this Undertaking, Heidelberg Materials must from the end of the Initial Sale Period:

(a) comply with and enforce the Approved Terms of Appointment for the Approved Divestiture Agent;

(b) maintain and fund the Approved Divestiture Agent to carry out his or her functions; including:

(i) indemnifying the Approved Divestiture Agent for any expenses, loss, claim or damage arising directly or indirectly from the performance by the Approved Divestiture Agent of his or her functions as the Approved Divestiture Agent except where such expenses, loss, claim or damage arises out of the gross negligence, fraud, misconduct or breach of duty by the Approved Divestiture Agent;

(ii) providing and paying for any external expertise, assistance or advice required by the Approved Divestiture Agent to perform his or her functions as the Approved Divestiture Agent;

(iii) paying such fees as are agreed between the Approved Divestiture Agent and Heidelberg Materials (but not fees contingent on the price to be obtained for the Unsold Business); and

(iv) if an agreement as to fees cannot be reached between the Approved Divestiture Agent and Heidelberg Materials within 15 Business Days after the end of the Initial Sale Period, Heidelberg Materials agrees to pay such fees as are directed by the ACCC;

(c) not interfere with, or otherwise hinder, the Approved Divestiture Agent's ability to carry out his or her functions as the Approved Divestiture Agent, including:

(i) directing its personnel, including directors, contractors, managers, officers, employees and agents, to act in accordance with this clause 10;

(ii) providing access to the facilities, sites or operations of the Unsold Business as required by the Approved Divestiture Agent; and

(iii) providing to the Approved Divestiture Agent any information, documents or other assistance that they consider necessary for carrying out his or her functions as the Approved Divestiture Agent or for reporting to or otherwise advising the ACCC;

(d) within three Business Days after receiving notice from the ACCC pursuant to clause 6.6, Heidelberg Materials must instruct the Approved Divestiture Agent to complete the divestiture of the Unsold Business to the Approved Purchaser in accordance with the documents approved by the ACCC pursuant to clause 6.6; and

(e) other than in accordance with clause 10.13(d) of this Undertaking, not instruct the Approved Divestiture Agent to divest the Unsold Business.

Resignation, revocation or termination of the Approved Divestiture Agent

10.14. Heidelberg Materials must immediately notify the ACCC in the event that an Approved Divestiture Agent resigns or otherwise stops acting as an Approved Divestiture Agent before the completion of the divestiture of the Unsold Business.

10.15. The ACCC may revoke an Approved Divestiture Agent's status as the Approved Divestiture Agent if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading.

10.16. The ACCC may approve any proposal by, or alternatively may direct, Heidelberg Materials to terminate an Approved Divestiture Agent if in the ACCC's view the Approved Divestiture Agent acts inconsistently with the provisions of this Undertaking or the Approved Terms of Appointment.

11. Notification of key dates and ACCC requests for information

11.1. Heidelberg Materials must notify the ACCC and each Undertaking Appointment in writing of:

(a) the anticipated date of the Control Date, at least five Business Days before that date;

(b) the anticipated date of the completion of the divestiture of the Divestiture Business or Unsold Business (as applicable), at least five Business Days before that date;

(c) the occurrence of the Control Date, within one Business Day of that date; and

(d) the occurrence of the completion of the divestiture of the Divestiture Business or Unsold Business (as applicable), within one Business Day of that date.

11.2. The ACCC may direct Heidelberg Materials in respect of its compliance with this Undertaking to, and Heidelberg Materials must:

(a) furnish information to the ACCC in the time and in the form requested by the ACCC;

(b) produce documents and materials to the ACCC within Heidelberg Materials' custody, power or control in the time and in the form requested by the ACCC; and/or

(c) attend the ACCC at a time and place appointed by the ACCC to answer any questions the ACCC (its Commissioners, its staff or its agents) may have.

11.3. Any direction made by the ACCC under clause 11.2 will be notified to Heidelberg Materials, in accordance with clause 18.2.

11.4. In respect of Heidelberg Materials' compliance with this Undertaking or an Undertaking Appointment’s compliance with its Approved Terms of Appointment, the ACCC may request any Undertaking Appointment to:

(a) furnish information to the ACCC in the time and in the form requested by the ACCC;

(b) produce documents and materials to the ACCC within the Undertaking Appointment's custody, power or control in the time and in the form requested by the ACCC; and/or

(c) attend the ACCC at a time and place appointed by the ACCC to answer any questions the ACCC (its Commissioners, its staff or its agents) may have.

11.5. Heidelberg Materials will use its best endeavours to ensure that an Undertaking Appointment complies with any request from the ACCC in accordance with clause 11.4.

11.6. Information furnished, documents and material produced or information given in response to any request or direction from the ACCC under this clause 11 may be used by the ACCC for any purpose consistent with the exercise of its statutory duties.

11.7. The ACCC may in its discretion:

(a) advise any Undertaking Appointment of any request made by it under this clause 11; and/or

(b) provide copies to any Undertaking Appointment of any information furnished, documents and material produced or information given to it under this clause 11.

11.8. Nothing in this clause 11 requires the provision of information or documents in respect of which Heidelberg Materials has a claim of legal professional or other privilege.

12. Disclosure of this Undertaking

12.1. Heidelberg Materials and the ACCC agree that Schedule 5 will remain confidential until after the completion of the divestiture of the Divestiture Business or Unsold Business.

12.2. Heidelberg Materials acknowledges that the ACCC may provide each Undertaking Appointment with a copy of this Undertaking which includes unredacted versions of Confidential Schedule 5.

12.3. Heidelberg Materials acknowledges that the ACCC may, subject to clause 12.1:

(a) make this Undertaking publicly available;

(b) publish this Undertaking on its Public Section 87B Undertakings Register and Public Mergers Register; and

(c) from time to time publicly refer to this Undertaking.

12.4. Nothing in clause 12.1 or the confidential parts of this Undertaking referred to in clause 12.1 prevents the ACCC from disclosing such information as is:

(a) required by law;

(b) permitted by section 155AAA of the Act;

(c) necessary for the purpose of enforcement action under section 87B of the Act; or

(d) necessary for the purpose of making such market inquiries as the ACCC thinks fit to assess the impact on competition arising in connection with this Undertaking.

12.5. Nothing in clause 12.1 or the confidential parts of this Undertaking referred to in clause 12.1 prevents the ACCC from using the information contained in this Undertaking for any purpose consistent with its statutory functions and powers.

13. Obligation to procure

13.1. Where the performance of an obligation under this Undertaking requires a Related Body Corporate of Heidelberg Materials to take or refrain from taking some action, Heidelberg Materials will procure that Related Body Corporate to take or refrain from taking that action.

14. No Derogation

14.1. This Undertaking does not prevent the ACCC from taking enforcement action at any time whether during or after the period of this Undertaking in respect of any breach by Heidelberg Materials of any term of this Undertaking.

14.2. Nothing in this Undertaking is intended to restrict the right of the ACCC to take action under the Act for penalties or other remedies in the event that Heidelberg Materials does not fully implement and/or perform its obligations under this Undertaking or in any other event where the ACCC decides to take action under the Act for penalties or other remedies.

15. Change of Control

15.1. In the event that a Change of Control is reasonably expected to occur, Heidelberg Materials must:

(a) notify the ACCC of this expectation as soon as practicable; and

(b) only implement a Change of Control to another person or entity if that person or entity has given a section 87B undertaking to the ACCC that requires it to comply with the same obligations as are imposed on Heidelberg Materials pursuant to this Undertaking, or on terms that are otherwise acceptable to the ACCC, unless the ACCC has notified Heidelberg Materials in writing that a section 87B undertaking under this clause is not required.

16. Costs

16.1. Heidelberg Materials must pay all of its own costs incurred in relation to this Undertaking.

17. Jurisdiction

17.1. Heidelberg Materials AG irrevocably submits to the jurisdiction of the Federal Court of Australia in relation to this Undertaking.

17.2. Unless and until notified in writing by Heidelberg Materials AG to the ACCC of the appointment of another person as agent within Australia, Heidelberg Materials AG appoints Heidelberg Materials Australia Holdings Pty Ltd ACN 611 565 649, as its agent for the purposes of service of process in relation to this Undertaking.

18. Notices

Giving Notices

18.1. Any notice or communication to the ACCC pursuant to this Undertaking must be sent to:

Email address: mergers@accc.gov.au
Attention: Executive General Manager
Mergers and Exemptions Assessment Division

With a copy sent to: mergersru@accc.gov.au
Attention: Director, Remedies Unit
Merger Surveillance & Coordination Branch
Mergers and Exemptions Assessment Division

18.2. Any notice or communication to Heidelberg Materials pursuant to this Undertaking must be sent to:

Name: Victoria Vincent

Address: 14/35 Clarence Street, Sydney NSW 2000

Email Address: victoria.vincent@heidelbergmaterials.com

Fax number: N/A

Attention: N/A

With a copy sent to:

Name: Lisa Huett

Address: Level 27, 447 Collins Street, Melbourne VIC 3000

Email Address: lisa.huett@mallesons.com

Fax number: N/A

Attention: N/A

and to:

Name: Jennifer Barron

Address: Governor Phillip Tower, Level 61, 1 Farrer Place, Sydney NSW 2000

Email Address: jennifer.barron@mallesons.com

Fax number: N/A

Attention: N/A

18.3. If sent by post, notices are taken to be received three Business Days after posting (or seven Business Days after posting if sent to or from a place outside Australia).

18.4. If sent by email, notices are taken to be received at the time shown in the email as the time the email was sent.

Change of contact details

18.5. Heidelberg Materials must notify the ACCC of a change to its contact details within three Business Days.

18.6. Any notice or communication will be sent to the most recently advised contact details and subject to clauses 18.3 and 18.4, will be taken to be received.

19. Defined terms and interpretation

Definitions in the Dictionary

19.1. A term or expression starting with a capital letter:

(a) which is defined in the Dictionary in Part 1 of Schedule 1 (Dictionary), has the meaning given to it in the Dictionary; or

(b) which is defined in the Corporations Act, but is not defined in the Dictionary, has the meaning given to it in the Corporations Act.

Interpretation

19.2. Part 2 of Schedule 1 sets out rules of interpretation for this Undertaking.

Executed as an Undertaking

Executed by Heidelberg Materials Australia Holdings Pty Ltd ACN 611 565 649 pursuant to section 127(1) of the *Corporations Act 2001* by:

Signature of director		Signature of a director/company secretary
Name of director (print)		Name of director/company secretary (print)
Date		Date

EXECUTED by Heidelberg Materials AG by its authorised signatories:

Signature of witness		Signature of authorised signatory
Name of witness (print)		Name of authorised signatory
		Position of authorised signatory
Signature of witness		Signature of authorised signatory
Name of witness (print)		Name of authorised signatory
		Position of authorised signatory
Date		Date

Accepted by the Australian Competition and Consumer Commission pursuant to section 87B of the *Competition and Consumer Act 2010* (Cth) on:

Date

and signed on behalf of the Commission:

Chair

Date

Schedule 1 – Dictionary and interpretation

1. Dictionary

ACCC means the Australian Competition and Consumer Commission.

Act means the *Competition and Consumer Act 2010* (Cth).

Agreements means any contract, arrangement or understanding, including any contract, arrangement or understanding to renew, amend, vary or extend any contract, arrangement or understanding.

Approved Audit Plan means the plan approved by the ACCC in accordance with the terms of this Undertaking, by which the Approved Independent Auditor will audit and report upon compliance with this Undertaking.

Approved Business Sale Agreement means the standard form contract for the divestiture of the Unsold Business which has been approved by the ACCC in accordance with the terms of this Undertaking.

Approved Divestiture Agent means the person approved by the ACCC and appointed under clause 10 of this Undertaking.

Approved Independent Auditor means the person approved by the ACCC and appointed under clause 9 of this Undertaking.

Approved Independent Manager means the person approved by the ACCC and appointed under clause 8 of this Undertaking.

Approved Marketing and Sale Plan means the plan approved by the ACCC in accordance with the terms of this Undertaking, by which the Approved Divestiture Agent will market and effect the divestiture of the Unsold Business.

Approved Purchaser means the person approved by the ACCC under clause 6 of this Undertaking.

Approved Sale and Purchase Agreement means the contract approved by the ACCC in accordance with the terms of this Undertaking, by which the Heidelberg Materials will divest the Divestiture Business to the Approved Purchaser and Approved Purchaser will acquire the Divestiture Business from Heidelberg Materials.

Approved Separation and Management Plan means the plan approved by the ACCC in accordance with the terms of this Undertaking, by which the Approved Independent Manager will:

a) separate the Divestiture Business from any business to be retained by Heidelberg Materials; and

b) manage and operate the Divestiture Business independently of Heidelberg Materials and any retained business.

Approved Transitional Supply Agreement means any agreement, for the supply of goods or services (other than Technical Assistance) by Heidelberg Materials to the Approved Purchaser, approved by the ACCC in accordance with the terms of this Undertaking.

Approved Transitional Technical Assistance Agreement means any agreement, for the supply of Technical Assistance by Heidelberg Materials to the Approved Purchaser, approved by the ACCC in accordance with the terms of this Undertaking.

Approved Terms of Appointment means the terms of appointment for the Approved Independent Manager, Approved Independent Auditor or Approved Divestiture Agent, as applicable, as approved by the ACCC in accordance with the terms of this Undertaking.

Asset Sale Agreement means the sale agreement for the Blackwater Concrete Plant, Blackwater QLD dated 8 June 2026 (as subsequently amended on 17 July 2026), provided to the ACCC on 20 July 2026.

Associated Entity has the meaning given by section 50AAA of the Corporations Act.

Audit Report has the meaning given to it in clause 9.12 of this Undertaking.

Business Day means a day other than a Saturday or Sunday on which banks are open for business generally in the Australian Capital Territory.

Change of Control means:

- the assignment or other transfer of the legal or beneficial ownership of some or all of the share capital of Heidelberg Materials to any other person or entity that may impact compliance with this Undertaking in its entirety; or
- the sale or transfer of any assets necessary, or which may be necessary, to enable Heidelberg Materials to continue to comply with this Undertaking in its entirety.

Commencement Date means the date described in clause 3.1 of this Undertaking.

Control Date means the date on which the Proposed Acquisition is completed.

Consents means any Government Consents or Third Party Consents.

Corbet's means Corbet Property Pty Ltd (ACN 162 344 916) as trustee for the Corbet Property Trust.

Corporations Act means the *Corporations Act 2001* (Cth).

Divestiture Business means the items described in Schedule 4 to this Undertaking.

Entities Connected has the meaning given by section 64B of the Corporations Act.

Establishment Audit has the meaning given to it in clause 9.13(a) of this Undertaking.

Government Consents means any consents from any government agency required for the assignment, novation, sale, sub-licensing or transfer of any assets, licences, permits, approval or contracts required for the operation of the Divestiture Business.

Heidelberg Materials means Heidelberg Materials AG and Heidelberg Materials Australia Holdings Pty Ltd collectively.

Heidelberg Materials AG means Heidelberg Materials AG of Berliner Straße 6, 69120 Heidelberg, Germany.

Heidelberg Materials Australia Holdings Pty Ltd means Heidelberg Materials Australia Holdings Pty Ltd (ACN 611 565 649).

Heidelberg Materials Australia Pty Ltd means Heidelberg Materials Australia Pty Ltd (ACN 009 679 734).

HMA means the Heidelberg Materials Australia group (including Heidelberg Materials Australia Pty Ltd and Heidelberg Materials Australia Holdings Pty Ltd).

Holding Company has the meaning given by section 9 of the Corporations Act.

Initial Sale Period is defined in clause 1 of Confidential Schedule 5 to this Undertaking.

MAAS means Maas Group Holdings Limited (ACN 632 994 542).

Material Change means any change to the structure, attributes, extent or operations of the Divestiture Business or product or service sold by a Divestiture Business that may affect, or impact on, the competitiveness of the Divestiture Business.

Material Contract means any Agreement that is necessary for the operation of the Divestiture Business.

Proposed Acquisition is defined in clause 2 of this Undertaking.

Proposed Divestiture Agent means a person named in a Proposed Divestiture Notice.

Proposed Divestiture Agent Notice has the meaning given to it in clause 10.3 of this Undertaking.

Proposed Independent Auditor means a person named in a Proposed Independent Auditor Notice.

Proposed Independent Auditor Notice has the meaning given to it in clause 9.2 of this Undertaking.

Proposed Independent Manager means a person named in a Proposed Independent Manager Notice.

Proposed Independent Manager Notice has the meaning given to it in clause 8.2 of this Undertaking.

Proposed Purchaser means a person named in a Proposed Purchaser Notice.

Proposed Purchaser Notice has the meaning given to it in clause 6.2 of this Undertaking.

Proposed Undertaking Appointment means a Proposed Independent Manager, Proposed Independent Auditor or Proposed Divestiture Agent.

Public Mergers Register means the ACCC's public register of merger clearances, available at www.accc.gov.au.

Public Section 87B Undertakings Register means the ACCC's public register of section 87B undertakings, available at www.accc.gov.au.

Related Bodies Corporate has the meaning given to it by section 50 of the Corporations Act.

Related Entities has the meaning given to it by section 9 of the Corporations Act.

Related Parties has the meaning given to it by section 228 of the Corporations Act.

Subsidiary has the meaning given by section 9 of the Corporations Act.

Technical Assistance includes advising on technical knowledge documentation, supporting the Approved Purchaser on acquiring specific assets necessary for the ongoing conduct of the Divestiture Business, providing staff with suitable experience and skills to assist and/or advice on technical issues, assisting in training for the Approved Purchaser's staff, and providing guidance on regulatory and legal aspects relating to the transfer of or application for licences.

Third Party Consents means any Consent from any entity that is not a government agency required for the assignment, novation, sale, sub-licensing or transfer of any assets, licences, permits, approval or contracts required for the operation of the Divestiture Business.

Transferred Personnel has the meaning given to it in clause 5.7 of this Undertaking.

Undertaking is a reference to all provisions of this document, including its schedules and as varied from time to time under section 87B of the Act.

Undertaking Appointment means the Approved Independent Manager, the Approved Independent Auditor or the Approved Divestiture Agent, as applicable.

Unsold Business has the meaning given to it in clause 10.1 of this Undertaking.

2. Interpretation

2.1 In the interpretation of this Undertaking, the following provisions apply unless the context otherwise requires:

(a) a reference to this Undertaking includes all of the provisions of this document including its schedules;

(b) headings are inserted for convenience only and do not affect the interpretation of this Undertaking;

(c) if the day on which any act, matter or thing is to be done under this Undertaking is not a Business Day, the act, matter or thing must be done on the next Business Day;

(d) a reference in this Undertaking to any law, legislation or legislative provision includes any statutory modification, amendment or re-enactment, and any subordinate legislation or regulations issued under that legislation or legislative provision;

(e) a reference in this Undertaking to any company includes its Related Bodies Corporate;

(f) a reference in this Undertaking to any agreement or document is to that agreement or document as amended, novated, supplemented or replaced;

(g) a reference to a clause, part, schedule or attachment is a reference to a clause, part, schedule or attachment of or to this Undertaking;

(h) an expression importing a natural person includes any company, trust, partnership, joint venture, association, body corporate or governmental agency;

(i) where a word or phrase is given a defined meaning, another part of speech or other grammatical form in respect of that word or phrase has a corresponding meaning;

(j) a word which denotes the singular also denotes the plural, a word which denotes the plural also denotes the singular;

(k) a reference to the words 'such as', 'including', 'particularly' and similar expressions is to be construed without limitation;

(l) a construction that would promote the purpose - or object - underlying the Undertaking (whether expressly stated or not) will be preferred to a construction that would not promote that purpose or object;

(m) material not forming part of this Undertaking may be considered to:

  (i) confirm the meaning of a clause is the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the competition concerns intended to be addressed by the Undertaking and the clause in question; or

  (ii) determine the meaning of the clause when the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the purpose or object underlying the Undertaking, leads to a result that does not promote the purpose or object underlying the Undertaking;

(n) in determining whether consideration should be given to any material in accordance with paragraph (m), or in considering any weight to be given to any such material, regard must be had, in addition to any other relevant matters, to the:

  (i) effect that reliance on the ordinary meaning conveyed by the text of the clause would, have (taking into account its context in the Undertaking and whether that meaning promotes the purpose or object of the Undertaking); and

  (ii) need to ensure that the result of the Undertaking is to completely address any ACCC competition concerns;

(o) the ACCC may authorise the ACCC Mergers Review Committee, a member of the ACCC or a member of the ACCC staff, to exercise a decision making function under this Undertaking on its behalf and that authorisation may be subject to any conditions which the ACCC may impose;

(p) in performing its obligations under this Undertaking, Heidelberg Materials will do everything reasonably within its power to ensure that its performance of those obligations is done in a manner which is consistent with promoting the purpose and object of this Undertaking;

(q) a reference to:

(i) a thing (including, but not limited to, a chose in action or other right) includes a part of that thing;

(ii) a party includes its successors and permitted assigns; and

(iii) a monetary amount is in Australian dollars.

Schedule 2 – Proposed Purchaser Notice Form

This form sets out the information required by the ACCC in relation to a Proposed Purchaser.

Please note that it is an offence under section 137.1 of the *Criminal Code Act 1995* (Cth) to give information to a Commonwealth entity knowing that the information is false or misleading or omits any matter or thing without which the information is misleading.

1. Method of Delivery to the ACCC

The completed form with requested documents attached should be provided to the ACCC using the following method:

Email

Subject line: Proposed Purchaser Notice – HMA / MAAS

Address: mergers@accc.gov.au

Attention: Executive General Manager – Mergers and Exemptions Assessment Division

With an email copy sent to:

Address: mergersru@accc.gov.au

Attention: Director, Remedies Unit – Merger Surveillance & Coordination Branch, Mergers and Exemptions Assessment Division

2. Information Required

The ACCC requires the following information in order to assess a Proposed Purchaser.

2.1 Proposed Purchaser details:

(a) Name of the Proposed Purchaser;

(b) Address;

(c) Contact name;

(d) Telephone number;

(e) Other contact details.

2.2 A submission containing the following information:

(a) a description of the business carried on by the Proposed Purchaser including the locations in which the Proposed Purchaser carries on its business;

(b) details of the Proposed Purchaser’s experience in the relevant market(s);

(c) the names of the owner(s) and the director(s) of the Proposed Purchaser;

(d) details of any of the following types of relationships between Heidelberg Materials and the Proposed Purchaser or confirmation that no such relationship exists whether within Australia or outside of Australia:

(i) Heidelberg Materials and the Proposed Purchaser are Associated Entities;

(ii) Heidelberg Materials is an Entity Connected with the Proposed Purchaser;

(iii) the Proposed Purchaser is an Entity Connected with Heidelberg Materials;

(iv) Heidelberg Materials and the Proposed Purchaser are Related Entities;

(v) Heidelberg Materials and the Proposed Purchaser are Related Parties;

(vi) any Related Party, Related Entity or Entity Connected with Heidelberg Materials is a Related Party, Related Entity or Entity Connected with the Proposed Purchaser;

(vii) Heidelberg Materials and the Proposed Purchaser have a contractual relationship or had one within the past three years, other than those attached to this form;

(viii) the Proposed Purchaser is a supplier of Heidelberg Materials or has been in the past three years;

(ix) Heidelberg Materials is a supplier of the Proposed Purchaser or has been in the past three years; and

(x) any other relationship between Heidelberg Materials and the Proposed Purchaser that allows one to affect the business decisions of the other;

(e) a section addressing the following factors, including any information adverse to the Proposed Purchaser, in the power, possession or control of Heidelberg Materials:

(i) whether the draft sale and purchase agreement is consistent with this Undertaking;

(i) whether the Proposed Purchaser will complete the transaction as contemplated by the draft sale and purchase agreement;

(ii) whether the Proposed Purchaser is of good financial standing;

(iii) whether the Proposed Purchaser has an intention to maintain and operate the Divestiture Business as a going concern;

(iv) whether the Proposed Purchaser is able to conduct the Divestiture Business effectively;

(v) whether the divestiture of the Divestiture Business to the Proposed Purchaser will address any competition concerns of the ACCC, including any relationships (including but not limited to shareholding interests, other proprietary interests, contracts, arrangements or understandings) between the Proposed Purchaser and other entities in a relevant market, and the likely long-term viability and competitiveness of the Divestiture Business under the ownership of the Proposed Purchaser; and

(vi) any other matters that may affect the Proposed Purchaser’s capacity or ability to acquire or operate the Divestiture Business, such as outstanding legal action or disputes.

2.3 Please also attach to this form:

(a) the finalised draft of the sale and purchase agreement for approval by the ACCC in accordance with this Undertaking.

(b) the finalised draft of any transitional technical assistance agreement for approval by the ACCC in accordance with this Undertaking.

(c) the finalised draft of any transitional supply agreement for approval by the ACCC in accordance with this Undertaking.

(d) any documents required to support the information provided by Heidelberg Materials pursuant to this form.

Schedule 3 – Proposed Undertaking Appointment Form

This form sets out the information required by the ACCC in relation to proposed appointment of the following positions under the Undertaking:

- Proposed Independent Manager;
- Proposed Independent Auditor; or
- Proposed Divestiture Agent

(the **Undertaking Appointment).**

This form is to be used for each of the above appointments.

<u>Please note that it is an offence under section 137.1 of the *Criminal Code Act 1995* (Cth) to give information to a Commonwealth entity knowing that the information is false or misleading or omits any matter or thing without which the information is misleading.</u>

1. Method of Delivery to the ACCC

The completed form with requested documents attached may be provided to the ACCC using the following method:

Email

Subject line: Proposed [only include relevant Undertaking Appointment i.e. Independent Manager/Independent Auditor/Divestiture Agent] Notice – HMA / MAAS

Address: mergers@accc.gov.au

Attention: Executive General Manager – Mergers and Exemptions Assessment Division

With an email copy sent to:

Address: mergersru@accc.gov.au

Attention: Director, Remedies Unit – Merger Surveillance & Coordination Branch, Mergers and Exemptions Assessment Division

2. Information Required

The ACCC requires the following information in order to assess a proposed Independent Manager, Independent Auditor or Divestiture Agent (i.e. the relevant Undertaking Appointment).

2.1 Proposed Undertaking Appointment details:

(a) the name of the Proposed Undertaking Appointment; and

(b) the name of the proposed Undertaking Appointment's employer and contact details including:

(i) Address;

(ii) Contact name;

(iii) Telephone number;

(iv) Other contact details.

2.2 A submission containing the following information:

(a) details of the Undertaking Appointment's qualifications and experience relevant to his or her proposed role pursuant to the Undertaking;

(b) the names of the owner(s) and the director(s) of the Undertaking Appointment's employer;

(c) details of any of the following types of relationships between Heidelberg Materials and the Undertaking Appointment or the Undertaking Appointment's employer or confirmation that no such relationship exists whether within Australia or outside of Australia:

(i) Heidelberg Materials and the Undertaking Appointment's employer are Associated Entities;

(ii) Heidelberg Materials is an Entity Connected with the Undertaking Appointment's employer;

(iii) The Undertaking Appointment's employer is an Entity Connected with Heidelberg Materials;

(iv) Heidelberg Materials and the Undertaking Appointment's employer are Related Entities;

(v) Heidelberg Materials and the Undertaking Appointment's employer are Related Parties;

(vi) any Related Party, Related Entity or Entity Connected with Heidelberg Materials is a Related Party, Related Entity or Entity Connected with the Undertaking Appointment;

(vii) Heidelberg Materials and the Undertaking Appointment or the Undertaking Appointment's employer have a contractual relationship or had one within the past three years, other than those attached to this form;

(viii) the Undertaking Appointment's employer is a supplier of Heidelberg Materials or has been in the past three years;

(ix) Heidelberg Materials is a supplier of the Undertaking Appointment's employer or has been in the past three years; and

(x) any other relationship between Heidelberg Materials and the Undertaking Appointment or the Undertaking Appointment's employer that allows one to affect the business decisions of the other;

(d) details of any existing or past contractual relationships between the Undertaking Appointment or the Undertaking Appointment's employer and the ACCC within the past three years.

2.3 A document outlining the terms of appointment for the proposed Undertaking Appointment. This should identify the basis on which fees will be paid, including disclosure of any proposed performance-based fees.

3. Specific Information required for Proposed Undertaking Appointments

The ACCC requires the below information in relation to the relevant Undertaking Appointment.

Proposed Independent Auditor

3.1 A finalised draft audit plan for the Divestiture Business, in an editable format, drafted by the Proposed Independent Auditor and outlining (to the extent possible) the Proposed Independent Auditor's plans regarding the Establishment Audit and the Audit Report.

Proposed Divestiture Agent

3.2 The finalised draft business sale agreement drafted by the Proposed Divestiture Agent in consultation with Heidelberg Materials, in an editable format. The draft business sale agreement is to provide for the divestiture of the Unsold Business.

3.3 The Proposed Divestiture Agent's draft marketing and sale plan for the Unsold Business, in an editable format.

Proposed Independent Manager

3.4 The finalised draft separation and management plan for the Divestiture Business, in an editable format, detailing the measures and timing to be implemented by Heidelberg Materials and the Approved Independent Manager in order to fulfil Heidelberg Materials' and the Approved Independent Manager's obligations pursuant to this Undertaking. This plan is to be drafted by the Proposed Independent Manager in consultation with Heidelberg Materials to achieve the objectives of the Undertaking including:

(a) the intended mode of operation of the Divestiture Business until completion of its divestiture;

(b) separation measures to ensure the Divestiture Business is operated in a manner which is financially and operationally separate from Heidelberg Materials, including the;

(i) separation of the books and records of the Divestiture Business from those of Heidelberg Materials;

(ii) severance of the Divestiture Business' participation in any private shared information technology networks, to the extent possible without compromising the viability of the Divestiture Business;

(iii) implementation of specific electronic, information and physical security measures to maintain the confidentiality of any competitively sensitive information of the Divestiture Business; and

(iv) severance of arrangements to share personnel and plant between the Divestiture Business and any businesses to be retained by Heidelberg Materials, to the extent possible without compromising the viability of the Divestiture Business;

(c) details of contracts for the provision of goods or services to the Divestiture Business which will expire after the completion of the divestiture of the Divestiture Business to the Approved Purchaser and the actions which will be taken to ensure they are replaced, renewed and/or renegotiated on commercial terms favourable to the Divestiture Business;

(d) personnel planning to maintain appropriate personnel levels and ensure that the Divestiture Business has access to all personnel necessary to operate the Divestiture Business;

(e) any Material Changes to the Divestiture Business required in order to fulfil Heidelberg Materials' and the Approved Independent Manager's obligations pursuant to the Undertaking;

(f) the cooperation required from the Approved Independent Manager with Heidelberg Materials in relation to the divestiture of the Divestiture Business, including:

(i) the activities to be conducted by the Approved Independent Manager that are necessary for the effective operation of the Divestiture Business, having regard to the nature of the Divestiture Business (including the extent to which the Divestiture Business already has a management structure in place prior to the proposed acquisition that will be retained during the hold separate period);

(ii) the method by which due diligence information, site visits and personnel interviews by and to prospective purchasers of the Divestiture Business will be managed;

(iii) the method by which the Approved Independent Manager and Heidelberg Materials will preserve the confidentiality of the Divestiture Business' competitively sensitive information from Heidelberg Materials and its advisers throughout this process; and

(iv) a protocol whereby the Approved Independent Manager can provide any information requested by Heidelberg Materials without disclosing the details of the Divestiture Business' competitively sensitive information to Heidelberg Materials.

Schedule 4 – Divestiture Business

The Divestiture Business consists of all assets used in and comprising the Blackwater RMX business located at Railway Street, Blackwater QLD 4717, including (unless excluded at the Approved Purchaser's election):

- the lease registered with dealing no. 723848005 of part of Lot 25 SP132330 from Aurizon Property Pty Ltd ACN 145 991 724 to Heidelberg Materials Australia Pty Ltd dated 9 January 2025 (a copy of which is enclosed at Schedule 2 of the Approved Sale and Purchase Agreement);
- **the plant and equipment** of the business**, which includes:**
    - (**civil works**) yard paving, settlement pits, washout pits, material storage bins, fencing, a batch/manager office and lunchroom;
    - (**fixed plant**) silos including foundations, aggregate weigh bin, loading conveyor, loading bay, electrical switchboard, air compressor, water tanks, pipes, pumps and connections;
    - (**mobile plant**) 2 concrete agitators based at the site, front end loader for batching and yard maintenance;
    - (**IT**) Command Batch batching system; and
    - (**inventory**) an amount of stock that will enable the continuation of commercial operation.

Confidential Schedule 5

1. **[Redacted – Confidential]**

Attachment C – s87B undertaking

Undertaking to the Australian Competition and Consumer Commission

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Given under section 87B of the *Competition and Consumer Act 2010* (Cth) by Heidelberg Materials AG and Heidelberg Materials Australia Holdings Pty Ltd (ACN 611 565 649)

Contents

1. Person giving the Undertaking

1.1. This Undertaking is given to the Australian Competition and Consumer Commission (**ACCC**) by Heidelberg Materials AG and its subsidiary Heidelberg Materials Australia Holdings Pty Ltd (ACN 611 565 649) (together referred to as **Heidelberg Materials** in this Undertaking).

2. Background

The parties to the proposed acquisition

2.1. Heidelberg Materials Australia Holdings Pty Ltd ACN 611 565 649.

2.2. Maas Group Holdings Limited ACN 632 994 542.

The Proposed Acquisition

2.3. On 5 February 2026, HMA entered into a share sale deed to acquire the construction materials business of MAAS (the **Proposed Acquisition**).

The Notification

2.4. On 26 May 2026, HMA lodged a notification in respect of the Proposed Acquisition with the ACCC (the **Notification**).

2.5. The objective of this Undertaking is to address the concerns about the Proposed Acquisition set out in the ACCC's determination and statement of reasons in respect of the Notification.

3. Commencement of this Undertaking

3.1. This Undertaking comes into effect when:

(a) this Undertaking is executed by Heidelberg Materials; and

(b) this Undertaking so executed is accepted by the ACCC

(the **Commencement Date**).

4. Cessation of Ongoing Obligations

Revocation

4.1. The ACCC may, at any time, revoke its acceptance of this Undertaking if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading. Such a revocation must be express and in writing.

Withdrawal

4.2. Heidelberg Materials may request withdrawal of this Undertaking pursuant to section 87B of the Act at any time. This Undertaking is taken to be withdrawn on the date the ACCC consents in writing to that withdrawal.

Waiver

4.3. The ACCC may, at any time, waive any of the obligations contained in this Undertaking. Such a waiver must be express and in writing.

Extension

4.4. The ACCC may, at any time, extend the date by which any of the obligations in this Undertaking is to be satisfied. Such an extension must be express and in writing.

Survival

4.5. Unless and until this Undertaking is withdrawn in accordance with section 87B(2) of the Act, clauses 1, 2, 3, 4, 9, 11, 12, 13, 14, 15, 16 and 17 survive completion of the obligations in clauses 5, 6, 7, 8, 10,Schedule 4 and Confidential Schedule 5.

5. Divestiture of the Divestiture Business

Divestiture

5.1. Heidelberg Materials must, in accordance with this Undertaking, divest, or cause the divestiture of, the Divestiture Business only to an Approved Purchaser.

5.2. In the event that clause 10 applies, Heidelberg Materials must not authorise the Approved Divestiture Agent to divest the Unsold Business to a purchaser other than an Approved Purchaser.

5.3. Heidelberg Materials must divest, or cause the divestiture of, the Divestiture Business by:

(a) the sale, assignment, transfer and/or licence of all of the assets in Schedule 4 to the Approved Purchaser, pursuant to the Approved Sale and Purchase Agreement and prior to the end of the Initial Sale Period, otherwise clause 10 applies;

(b) the transfer or grant to the Approved Purchaser of all Consents pursuant to clauses 5.4 to 5.5;

(c) the transfer of any Transferred Personnel required pursuant to clauses 5.7 to 5.8;

(d) compliance with any Approved Transitional Technical Assistance Agreement required pursuant to clauses 5.9 to 5.11; and

(e) compliance with any Approved Transitional Supply Agreement required pursuant to clauses 5.12 to 5.14.

Consents

5.4. Heidelberg Materials must:

(a) obtain or assist the Approved Purchaser to obtain as expeditiously as possible, all Consents as required before completion of the divestiture of the Divestiture Business;

(b) comply with all requirements necessary to obtain any Consents, including by promptly providing all information necessary for the Consents to be given;

(c) act in good faith in its negotiations with the Approved Purchaser in relation to obtaining any Consents;

(d) promptly pay the costs and expenses of any third party reasonably incurred in providing the Consents; and

(e) enter an agreement with the Approved Purchaser and approved by the ACCC, or vary any existing Approved Transitional Supply Agreement as required by the Approved Purchaser, in relation to any goods or services that are required for the operation of the Divestiture Business which may be affected by any failure to gain a Consent.

5.5. If, seven Business Days before completion of the divestiture of the Divestiture Business, the Approved Purchaser does not or is otherwise unable to obtain one or more Consents, then Heidelberg Materials must:

(a) immediately provide to the ACCC in writing details of the:

(i) Consents that have not been obtained;

(ii) reasons why the Consents have not been obtained; and

(iii) information or material required to obtain the Consents.

(b) continue to do everything in its power to satisfy clause 5.4 as soon as possible after the completion of the divestiture of the Divestiture Business (and until such time as clause 5.4 is satisfied).

5.6. Even if Heidelberg Materials has complied with clause 5.4 to 5.5, it will be in breach of this Undertaking if it is unable to effect the divestiture of the Divestiture Business by reason that one or more Consents are not obtained.

Transferred Personnel

5.7. At the option of the Approved Purchaser, Heidelberg Materials must transfer to the Approved Purchaser:

(a) all employees; and

(b) all service providers under a contract for service;

who are, in the view of the Approved Purchaser, required for the Approved Purchaser to maintain, operate or conduct effectively the Divestiture Business and who consent to the transfer of their employment or contract for service to the Approved Purchaser (**Transferred Personnel**).

5.8. When fulfilling its obligations under clause 5.7, Heidelberg Materials must:

(a) encourage all Transferred Personnel to remain with the Divestiture Business, including offering incentives based on industry practice;

(b) not directly or indirectly discourage any Transferred Personnel from any obligations to provide services to the Divestiture Business;

(c) effective on the date of the divestiture of the Divestiture Business, release the Transferred Personnel from any obligations to provide services to Heidelberg Materials;

(d) effective on the date of the divestiture of the Divestiture Business, release the Transferred Personnel from any non-compete or similar restraint of trade obligation, to the extent that such an obligation would otherwise prevent the person from performing his or her contemplated role in relation to the Divestiture Business or Unsold Business; and

(e) not procure, promote or encourage the transfer of any of the Transferred Personnel from the Approved Purchaser to Heidelberg Materials for a period of 12 months after the completion of the divestiture of the Divestiture Business.

Technical Assistance

5.9. At the option of the Approved Purchaser, Heidelberg Materials must supply to the Approved Purchaser, under an Approved Transitional Technical Assistance Agreement, any Technical Assistance that is required by the Approved Purchaser in order to operate the Divestiture Business.

5.10. Heidelberg Materials must ensure that any Approved Transitional Technical Assistance Agreement, and any renewal or extension of an Approved Transitional Technical Assistance Agreement, provides for the supply of Technical Assistance:

(a) on a transitional basis for a period that is nominated by the Approved Purchaser and approved in writing by the ACCC; and

(b) at cost price and otherwise on arm’s length terms.

5.11. To avoid doubt, Heidelberg Materials must seek prior written approval from the ACCC of any renewal or extension of an Approved Transitional Technical Assistance Agreement. Without limiting the ACCC’s discretion in making a decision on whether to approve a renewal or extension of an Approved Transitional Technical Assistance Agreement, the ACCC will have regard to the criteria set out in clauses 5.9 and 5.10.

Transitional Supply Agreements

5.12. At the option of the Approved Purchaser, Heidelberg Materials must ensure the continued supply by Heidelberg Materials to the Approved Purchaser, under an Approved Transitional Supply Agreement, of any goods or services that are required by the Approved Purchaser in order for the Approved Purchaser to be established as a viable, effective, stand-alone, independent and long-term competitor in the supply of coarse aggregates in Central Queensland.

5.13. Heidelberg Materials must ensure that any Approved Transitional Supply Agreement and any renewal or extension of an Approved Transitional Supply Agreement:

(a) is for a reasonable transitional period, to be nominated by the Approved Purchaser and approved in writing by the ACCC;

(b) provides for the supply of the included goods and services at cost price; and

(c) is on such terms other than price which are no less favourable to the Approved Purchaser than arm's length terms.

5.14. To avoid doubt, Heidelberg Materials must seek prior written approval from the ACCC of any renewal or extension of an Approved Transitional Supply Agreement. Without limiting the ACCC's discretion in making a decision on whether to approve a renewal or extension of an Approved Transitional Supply Agreement, the ACCC will have regard to the criteria set out in clauses 5.12 and 5.13.

6. Process for approving a proposed purchaser

Potential purchasers

6.1. Heidelberg Materials must provide the ACCC and Approved Independent Auditor with:

(a) the identity of any person who expresses an interest in acquiring the Divestiture Business;

(b) the status of negotiations with each person; and

(c) a copy of each person's offer to acquire the Divestiture Business, where relevant;

at the following times:

(d) as soon as possible following the Commencement Date for those persons who express interest before the Commencement Date;

(e) after the Commencement Date, within 10 Business Days of each person expressing the interest and/or providing an offer;

regardless of whether the person subsequently withdraws or is declined.

Provision of a notice for a Proposed Purchaser

6.2. To seek ACCC approval for a Proposed Purchaser, Heidelberg Materials or the Approved Divestiture Agent must provide the ACCC with a notice in the form prescribed in Schedule 2 to this Undertaking (**Proposed Purchaser Notice**), including a draft sale and purchase agreement, a draft transitional technical assistance agreement (where required by the Proposed Purchaser), and a draft transitional supply agreement (where required by the Proposed Purchaser).

6.3. The Proposed Purchaser Notice must be provided to the ACCC at least 20 Business Days prior to the end of the Initial Sale Period.

Purchaser approved at the time the Undertaking was accepted

6.4. At the time this Undertaking was accepted, the ACCC considered information of the type required in a Proposed Purchaser Notice and approved Corbet Quarries and Concrete Pty Ltd ACN 614 710 360 (**Corbet's**) as the Approved Purchaser of the Divestiture Business, subject to clause 6.8.

6.5. ACCC approval of Corbet's as the Approved Purchaser of the Divestiture Business included approval of the Asset Sale Agreement for the Yalkara Quarry, Biloela QLD dated 8 June 2026 (as subsequently amended on 17 July 2026) as the Approved Sale and Purchase Agreement.

Approval of a Proposed Purchaser after the Commencement Date

6.6. The ACCC may, in its discretion, approve or reject in writing the Proposed Purchaser identified in the Proposed Purchaser Notice. In exercising this discretion, the ACCC will consider, without limitation:

(a) the draft sale and purchase agreement attached to the Proposed Purchaser Notice;

(b) any draft transitional technical assistance agreement attached to the Proposed Purchaser Notice, in accordance with the criteria in clauses 5.9 and 5.10; and

(c) any draft transitional supply agreement attached to the Proposed Purchaser Notice, in accordance with the criteria in clauses 5.12 and 5.13.

6.7. Without limiting the ACCC's discretion, in making the decision pursuant to clause 6.6, the factors to which the ACCC may have regard include whether the:

(a) draft sale and purchase agreement is consistent with this Undertaking;

(b) Proposed Purchaser will complete the transaction as contemplated by the draft sale and purchase agreement;

(c) Proposed Purchaser is independent of Heidelberg Materials;

(d) Proposed Purchaser is of good financial standing;

(e) Proposed Purchaser has a history of competition law compliance;

(f) Proposed Purchaser has an intention to maintain and operate the Divestiture Business as a going concern;

(g) Proposed Purchaser is able to conduct the Divestiture Business effectively; and

(h) divestiture of the Divestiture Business to the Proposed Purchaser will address any competition concerns of the ACCC, including in relation to the likely long-term viability and competitiveness of the Divestiture Business under the ownership of the Proposed Purchaser.

6.8. The ACCC may revoke an Approved Purchaser's status as the Approved Purchaser if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading.

7. Divestiture Business Protection

Protection of the Divestiture Business

7.1. From the Commencement Date, Heidelberg Materials must not sell or transfer its interest, or any assets comprising part of, or used in, the Divestiture Business (other than the sale of goods and services in the ordinary course of business) or make any Material Change, except in accordance with this Undertaking or (subject to the other terms of this Undertaking) as necessary to allow completion of the Proposed Acquisition.

Heidelberg Materials' obligations in relation to the Divestiture Business prior to completion of divestiture

7.2. Without limiting this clause 7, Heidelberg Materials must, from the Commencement Date until completion of the divestiture of the Divestiture Business, take all steps available to it to:

(a) ensure that the Divestiture Business is managed and operated in the ordinary course of business as a fully operational, competitive going concern and in such a way that preserves the economic viability, marketability, competitiveness and goodwill of the Divestiture Business at the Commencement Date;

(b) continue to provide access to working capital and sources of credit for the Divestiture Business in a manner which is consistent with the financing of the Divestiture Business before the Commencement Date;

(c) continue to provide administrative and technical support for the Divestiture Business in a manner which is consistent with the operation of the Divestiture Business before the Commencement Date and in accordance with any plans established before the Commencement Date;

(d) continue existing Agreements relating to the Divestiture Business with customers, suppliers and/or other third parties that are in place at the Commencement Date;

(e) renew or replace upon expiry Material Contracts for the provision of goods or services to the Divestiture Business on commercial terms favourable to the Divestiture Business;

(f) maintain the supply of those goods and services that are part of the Divestiture Business to existing customers in a manner consistent with the supply of those goods and services as at the Commencement Date;

(g) maintain the standard of manufacture, distribution, promotion and sale of those products which form part of the Divestiture Business as at the Commencement Date;

(h) promote and market the products that form part of the Divestiture Business in accordance with any plans established before the Commencement Date; and

(i) carry out such other actions or plans that the Approved Independent Manager considers to be necessary or convenient to maintain the Divestiture Business as an effectively competitive going concern.

Personnel of Heidelberg Materials

7.3. From the Commencement Date until completion of the divestiture of the Divestiture Business, Heidelberg Materials must:

(a) in consultation with the Approved Independent Manager (if one has been appointed), replace any

(i) Transferred Personnel; or

(ii) if the Transferred Personnel have not yet been identified, any personnel necessary for the operation of the Divestiture Business;

who leave or will leave the Divestiture Business before divestiture;

(b) not terminate or vary the terms of employment or engagement (or agree to do any of those things) of any of the

(i) Transferred Personnel; or

(ii) if the Transferred Personnel have not yet been identified, any personnel necessary for the operation of the Divestiture Business; and

(c) not directly or indirectly procure, promote or encourage the redeployment of personnel necessary for the operation of the Divestiture Business as at the Commencement Date to any other business operated by Heidelberg Materials.

7.4. As soon as practicable after the Commencement Date, Heidelberg Materials must direct its personnel, including directors, contractors, managers, officers, employees and agents not to do anything inconsistent with Heidelberg Materials' obligations under this Undertaking.

Heidelberg Materials' ongoing obligations in relation to the Divestiture Business

7.5. To the extent Heidelberg Materials has obligations in relation to the provision of transitional technical assistance or continued supply pursuant to clauses 5.9 to 5.14 of this Undertaking in relation to the Divestiture Business, Heidelberg Materials must not sell, assign, transfer, and/or licence directly or indirectly any of the assets necessary to fulfil such obligations without the prior written consent of the ACCC.

Confidential Information

7.6. Subject to clause 7.7, Heidelberg Materials must not, at any time from the Commencement Date, use or disclose any confidential information about the Divestiture Business gained through:

(a) ownership and/or management of the Divestiture Business; or

(b) fulfilling any obligations pursuant to this Undertaking.

7.7. Clause 7.6 does not apply to information that Heidelberg Materials requires to:

(a) comply with legal and regulatory obligations including obligations relating to taxation, accounting, financial reporting or stock exchange disclosure requirements; or

(b) carry out its obligations pursuant to this Undertaking;

provided such information is only used for that purpose and is only disclosed to those officers, employees, contractors and advisers of Heidelberg Materials who need to know the information to carry out the permitted purpose.

8. Independent Management of the Divestiture Business

Obligation to appoint an Approved Independent Manager

8.1. Unless the sale of the Divestiture Business has been completed prior to the Control Date, Heidelberg Materials must appoint and maintain an Approved Independent Manager to manage the Divestiture Business, from the Control Date until the completion of the divestiture of the Divestiture Business in accordance with this Undertaking.

Process for approving a Proposed Independent Manager

8.2. Unless as at 15 Business Days before the Control Date, Heidelberg Materials has already completed the sale of the Divestiture Business, Heidelberg Materials must provide the ACCC with a notice for a Proposed Independent Manager in the form prescribed in Schedule 3 to this Undertaking (**Proposed Independent Manager Notice**), including a draft terms of appointment and a draft separation and management plan.

8.3. If clauses 8.12, 8.13 or 8.14 apply, Heidelberg Materials must provide the ACCC with a Proposed Independent Manager Notice within five Business Days after the relevant event occurs.

8.4. The ACCC shall have the discretion to approve or reject in writing the Proposed Independent Manager identified in the Proposed Independent Manager Notice.

8.5. Without limiting the ACCC's discretion, in deciding whether to approve a Proposed Independent Manager, the factors to which the ACCC may have regard include whether the:

(a) person named in the Proposed Independent Manager Notice or identified by the ACCC has the qualifications and experience necessary to manage the Divestiture Business;

(b) person named in the Proposed Independent Manager Notice or identified by the ACCC is sufficiently independent of Heidelberg Materials;

(c) draft terms of appointment and the draft separation and management plan are consistent with this Undertaking; and

(d) draft terms of appointment and the draft separation and management plan are otherwise acceptable to the ACCC.

Appointment of the Approved Independent Manager

8.6. After receiving a written notice from the ACCC of its approval of the Proposed Independent Manager, the draft terms of appointment and draft separation and management plan, Heidelberg Materials must by the Control Date:

(a) appoint the person approved by the ACCC as the Approved Independent Manager on the Approved Terms of Appointment; and

(b) forward to the ACCC a copy of the executed Approved Terms of Appointment.

Failure to appoint

8.7. If:

(a) the Approved Independent Manager has not been appointed by the Control Date;

(b) the Approved Independent Manager has not been appointed within 15 Business Days after the Approved Independent Manager resigns or otherwise ceases to act as the Approved Independent Manager pursuant to clause 8.12, 8.13 or 8.14; or

(c) the ACCC has not received a Proposed Independent Manager Notice pursuant to clause 8.2 or 8.3;

then clause 8.8 applies.

8.8. If clause 8.7 applies, the ACCC may, in its discretion:

(a) identify and approve a person as the Approved Independent Manager, including approving the draft terms of appointment of the Approved Independent Manager and the draft separation and management plan; and/or

(b) direct Heidelberg Materials to appoint a person who the ACCC has deemed is an Approved Independent Manager.

Obligations and powers of the Approved Independent Manager

8.9. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Independent Manager include obligations on the Approved Independent Manager to:

(a) maintain his or her independence from Heidelberg Materials, apart from appointment to the role of Approved Independent Manager, including not forming any relationship of the types described in paragraph 2.2(c) of Schedule 3 to this Undertaking with Heidelberg Materials for the period of his or her appointment;

(b) act in the best interests of the Divestiture Business at all times including ensuring that the Divestiture Business is managed and operated in the ordinary course of business as a fully operational, competitive going concern and in such a way that preserves the economic viability, marketability, competitiveness and goodwill of the Divestiture Business at the Control Date;

(c) not use any confidential information gained through the management of the Divestiture Business other than for performing his or her functions as Approved Independent Manager;

(d) make only those Material Changes to the Divestiture Business which the ACCC does not object to;

(e) operate and manage the Divestiture Business to the maximum extent practicable, in a manner which is financially and operationally separate from Heidelberg Materials;

(f) co-operate with the requests of any Approved Divestiture Agent or Approved Independent Auditor appointed pursuant to this Undertaking;

(g) provide the following reports directly to the ACCC:

(i) a monthly written report regarding the implementation of and any suggested changes to the Approved Separation and Management Plan; and

(ii) an immediate report of any issues that arise in relation to the implementation of the Approved Separation and Management Plan or Heidelberg Materials' compliance with this Undertaking; and

(h) follow any direction given to him or her by the ACCC in relation to the performance of his or her functions as Approved Independent Manager pursuant to this Undertaking.

8.10. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Independent Manager provide the Approved Independent Manager with the sole authority to:

(a) manage and operate the Divestiture Business according to the Approved Separation and Management Plan until the completion of the divestiture of the Divestiture Business;

(b) provide any information requested by Heidelberg Materials pursuant to the protocol in the Approved Separation and Management Plan;

(c) decide whether or not to provide access and the manner of such access to competitively sensitive information relating to the Divestiture Business requested by Heidelberg Materials which is not covered by the protocol in the Approved Separation and Management Plan;

(d) renew or replace upon expiry Material Contracts and enter into new contracts for the provision of goods or services to the Divestiture Business on commercial terms favourable to the Divestiture Business;

(e) engage, redeploy or make redundant personnel employed in the Divestiture Business as the Approved Independent Manager determines necessary; and

(f) engage any external expertise, assistance or advice required by the Approved Independent Manager to perform his or her functions as the Approved Independent Manager.

Heidelberg Materials' obligations in relation to the Approved Independent Manager

8.11. Without limiting its obligations in this Undertaking, Heidelberg Materials must:

(a) comply with and enforce the Approved Terms of Appointment of the Approved Independent Manager;

(b) maintain and fund the Approved Independent Manager to carry out his or her functions, including:

(i) indemnifying the Approved Independent Manager for any expenses, loss, claim or damage arising directly or indirectly from the performance by the Approved Independent Manager of his or her functions as the Approved Independent Manager except where such expenses, loss, claim or damage arises out of the gross negligence, fraud, misconduct or breach of duty by the Approved Independent Manager;

(ii) ensuring that the Approved Independent Manager is fully able to acquire and pay for sufficient and timely delivery of all goods and services (including from third parties) which the Approved Independent Manager considers are required by the Divestiture Business; and

(iii) providing and paying for any external expertise, assistance or advice required by the Approved Independent Manager to perform his or her functions as the Approved Independent Manager; and

(c) not interfere with the authority of, or otherwise hinder, the Approved Independent Manager's ability to carry out his or her obligations as the Approved Independent Manager, including:

(i) accepting (and directing its directors, contractors, managers, officers, employees and agents to accept) direction from the Approved Independent Manager as to the control, management, financing and operations of the Divestiture Business, and for the Divestiture Business to meet all legal, corporate, financial, accounting, taxation, audit and regulatory obligations;

(ii) providing access to the facilities, sites or operations of the Divestiture Business required by the Approved Independent Manager;

(iii) providing to the Approved Independent Manager any information or documents that they consider necessary for managing and operating the Divestiture Business or for reporting to or otherwise advising the ACCC;

(iv) not requesting information or reports regarding the Divestiture Business from the personnel of the Divestiture Business except through the Approved Independent Manager; and

(v) not appointing the Approved Independent Manager, or have any Agreements with the Approved Independent Manager, to utilise the Approved Independent Manager's services for anything other than compliance with this Undertaking until at least 12 months after the Approved Independent Manager ceases to act in the role of the Approved Independent Manager.

Resignation, revocation or termination of the Approved Independent Manager

8.12. Heidelberg Materials must immediately notify the ACCC in the event that the Approved Independent Manager resigns or otherwise stops acting as the Approved Independent Manager before the completion of the divestiture of the Divestiture Business.

8.13. The ACCC may revoke an Approved Independent Manager's status as the Approved Independent Manager if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading.

8.14. The ACCC may approve any proposal by, or alternatively may direct, Heidelberg Materials to terminate the appointment of the Approved Independent Manager if in the ACCC's view the Approved Independent Manager acts inconsistently with the provisions of this Undertaking or the Approved Terms of Appointment.

9. Independent Audit

Obligation to appoint an Approved Independent Auditor

9.1. Unless the sale of the Divestiture Business has been completed prior to the Control Date, Heidelberg Materials must appoint and maintain an Approved Independent Auditor to audit and report upon Heidelberg Materials' compliance with this Undertaking.

Process for approving a Proposed Independent Auditor

9.2. At least 15 Business Days before the Control Date, Heidelberg Materials must either:

(a) provide the ACCC with written confirmation that the sale of the Divestiture Business has completed; or

(b) provide the ACCC with a notice for a Proposed Independent Auditor in the form prescribed in Schedule 3 to this Undertaking (**Proposed Independent Auditor Notice**), including draft terms of appointment and a draft audit plan.

9.3. The Approved Independent Auditor is to be appointed for a term of two years. Within 15 Business Days of the end of the Approved Independent Auditor's term, Heidelberg Materials must provide the ACCC with a new Proposed Independent Auditor Notice. A person who is, or who has been, the Independent Auditor is eligible for reappointment as the Independent Auditor.

9.4. If clauses 9.17, 9.18 or 9.19 apply, Heidelberg Materials must provide the ACCC with a Proposed Independent Auditor Notice within five Business Days after the relevant event occurs.

9.5. The ACCC shall have the discretion to approve or reject in writing the Proposed Independent Auditor identified in the Proposed Independent Auditor Notice.

9.6. Without limiting the ACCC's discretion, in deciding whether to approve a Proposed Independent Auditor, the factors to which the ACCC may have regard include whether the:

(a) person named in the Proposed Independent Auditor Notice or identified by the ACCC has the qualifications and experience necessary to carry out the functions of the Approved Independent Auditor;

(b) person named in the Proposed Independent Auditor Notice or identified by the ACCC is sufficiently independent of Heidelberg Materials;

(c) draft terms of appointment and the draft audit plan are consistent with this Undertaking; and

(d) draft terms of appointment and the draft audit plan are otherwise acceptable to the ACCC.

Appointment of the Approved Independent Auditor

9.7. After receiving a written notice from the ACCC of its approval of a Proposed Independent Auditor, the draft terms of appointment and draft audit plan, Heidelberg Materials must by the Control Date:

(a) appoint the person approved by the ACCC as the Approved Independent Auditor on the Approved Terms of Appointment; and

(b) forward to the ACCC a copy of the executed Approved Terms of Appointment.

Failure to appoint

9.8. If:

(a) the Approved Independent Auditor has not been appointed by the Control Date;

(b) the Approved Independent Auditor has not been appointed within 15 Business Days after the Approved Independent Auditor resigns or otherwise ceases to act as the Approved Independent Auditor pursuant to clause 9.17, 9.18, or 9.19; or

(c) subject to clause 9.2(a), the ACCC has not received a Proposed Independent Auditor Notice pursuant to clause 9.2 and 9.4;

then clause 9.9 applies.

9.9. If clause 9.8 applies, the ACCC at its absolute discretion may:

(a) identify and approve a person as the Approved Independent Auditor, including approving the draft terms of appointment and draft audit plan; and/or

(b) direct Heidelberg Materials to appoint a person who the ACCC has deemed is an Approved Independent Auditor.

Obligations and powers of the Approved Independent Auditor

9.10. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Independent Auditor include obligations on the Approved Independent Auditor to:

(a) maintain his or her independence from Heidelberg Materials, apart from appointment to the role of Approved Independent Auditor, including not forming any relationship of the types described in paragraph 1.1(c) of Schedule 3 to this Undertaking with Heidelberg Materials for the period of his or her appointment;

(b) conduct compliance auditing according to the Approved Audit Plan;

(c) where requested by the ACCC, assess the suitability of any Proposed Purchaser or potential purchaser of the Divestiture Business against the factors (as relevant) in clause 6.7;

(d) provide the following reports directly to the ACCC:

(i) a scheduled written Audit Report as described in clause 9.12;

(ii) an immediate report of any issues that arise in relation to the performance of his or her functions as Approved Independent Auditor or in relation to compliance with this Undertaking by any person named in this Undertaking; and

(iii) where requested by the ACCC, a report on the suitability of any Proposed Purchaser or potential purchaser of the Divestiture Business following an assessment under clause 9.10(c); and

(e) follow any direction given to him or her by the ACCC in relation to the performance of his or her functions as Approved Independent Auditor under this Undertaking.

9.11. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Independent Auditor provide the Approved Independent Auditor with the authority to:

(a) access the facilities, sites or operations of the Divestiture Business and Heidelberg Materials' other businesses as required by the Approved Independent Auditor;

(b) access any information or documents that the Approved Independent Auditor considers necessary for carrying out his or her functions as the Approved Independent Auditor or for reporting to or otherwise advising the ACCC; and

(c) engage any external expertise, assistance or advice required by the Approved Independent Auditor to perform his or her functions as the Approved Independent Auditor.

Compliance Audit

9.12. The Approved Independent Auditor must conduct an audit and prepare a detailed report (**Audit Report**) that includes:

(a) the Approved Independent Auditor's procedures in conducting the audit, or any change to audit procedures and processes since the previous Audit Report;

(b) a full audit of Heidelberg Materials' compliance with this Undertaking;

(c) identification of any areas of uncertainty or ambiguity in the Approved Independent Auditor's interpretation of any obligations contained in this Undertaking;

(d) all of the reasons for the conclusions reached in the Audit Report;

(e) any qualifications made by the Approved Independent Auditor in forming his or her views;

(f) any recommendations by the Approved Independent Auditor to improve:

(i) the Approved Audit Plan;

(ii) the integrity of the auditing process;

(iii) Heidelberg Materials' processes or reporting systems in relation to compliance with this Undertaking; and

(iv) Heidelberg Materials' compliance with this Undertaking; and

(g) the implementation and outcome of any prior recommendations by the Approved Independent Auditor.

9.13. The Approved Independent Auditor is to provide an Audit Report to the ACCC and Heidelberg Materials at the following times:

(a) within 20 Business Days after the Control Date, at which time the Audit Report is to include the results of the initial audit and any recommended changes to the Approved Audit Plan, including the Approved Independent Auditor's proposed procedures and processes for conducting the audit (**Establishment Audit**);

(b) every month from the date of the Establishment Audit until one month after the divestiture of the Divestiture Business is completed; and

(c) every three months after the date of provision of the last Audit Report pursuant to clause 9.13(b), until the ACCC confirms in writing to Heidelberg Materials that it is satisfied that Heidelberg Materials has fulfilled its obligations pursuant to this Undertaking.

9.14. Heidelberg Materials must implement any recommendations made by the Approved Independent Auditor in Audit Reports, and notify the ACCC of the implementation of the recommendations, within 10 Business Days after receiving the Audit Report or such other period as agreed in writing with the ACCC.

9.15. Heidelberg Materials must comply with any direction of the ACCC in relation to matters arising from the Audit Report within 10 Business Days after being so directed (or such other period as agreed in writing with the ACCC).

Heidelberg Materials' obligations in relation to the Approved Independent Auditor

9.16. Without limiting its obligations in this Undertaking, Heidelberg Materials must:

(a) comply with and enforce the Approved Terms of Appointment for the Approved Independent Auditor;

(b) maintain and fund the Approved Independent Auditor to carry out his or her functions including:

   (i) indemnifying the Approved Independent Auditor for any expenses, loss, claim or damage arising directly or indirectly from the performance by the Approved Independent Auditor of his or her functions as the Approved Independent Auditor except where such expenses, loss, claim or damage arises out of the gross negligence, fraud, misconduct or breach of duty by the Approved Independent Auditor;

   (ii) providing and paying for any external expertise, assistance or advice required by the Approved Independent Auditor to perform his or her functions as the Approved Independent Auditor; and

(c) not interfere with, or otherwise hinder, the Approved Independent Auditor's ability to carry out his or her functions as the Approved Independent Auditor, including:

   (i) directing Heidelberg Materials personnel, including directors, contractors, managers, officers, employees and agents, to act in accordance with this clause 9;

   (ii) providing access to the facilities, sites or operations of the Divestiture Business and Heidelberg Materials' other businesses as required by the Approved Independent Auditor;

   (iii) providing to the Approved Independent Auditor any information or documents that they consider necessary for carrying out his or her functions as the Approved Independent Auditor or for reporting to or otherwise advising the ACCC;

   (iv) not requesting any information relating to the compliance audit from the Approved Independent Auditor without such a request having been approved by the ACCC; and

   (v) not appointing the Approved Independent Auditor, or have any Agreements with the Approved Independent Auditor, to utilise the Approved Independent Auditor's services for anything other than compliance with this Undertaking until at least 12 months after the Approved Independent Auditor ceases to act in the role of the Approved Independent Auditor.

Resignation, revocation or termination of the Approved Independent Auditor

9.17. Heidelberg Materials must immediately notify the ACCC in the event that the Approved Independent Auditor resigns or otherwise stops acting as the Approved Independent Auditor.

9.18. The ACCC may revoke an Approved Independent Auditor's status as the Approved Independent Auditor if the ACCC becomes aware that any information provided to it in connection with the appointment of the Approved Independent Auditor was incorrect, inaccurate or misleading.

9.19. The ACCC may approve, pursuant to clause 9.5, any proposal by, or alternatively may direct, Heidelberg Materials to terminate the appointment of the Approved Independent Auditor if in the ACCC's view the Approved Independent Auditor acts inconsistently with the provisions of this Undertaking and/or the Approved Terms of Appointment or the Approved Independent Auditor fails to perform their role to an adequate standard.

10. Failure to divest the Divestiture Business prior to the end of the Initial Sale Period

Divestiture of the Unsold Business

10.1. In the event that the divestiture of the Divestiture Business to an Approved Purchaser is not completed by the end of the Initial Sale Period, the Divestiture Business becomes an unsold business (**Unsold Business**) and the provisions of this clause 10 apply.

Obligation to appoint an Approved Divestiture Agent

10.2. From the end of the Initial Sale Period, Heidelberg Materials must appoint and maintain an Approved Divestiture Agent to effect the divestiture of the Unsold Business.

Process for approving a Proposed Divestiture Agent

10.3. At least 15 Business Days prior to the end of the Initial Sale Period, if the divestiture of the Divestiture Business has not been completed, Heidelberg Materials must provide the ACCC with a notice for a Proposed Divestiture Agent in the form of Schedule 3 to this Undertaking (**Proposed Divestiture Agent Notice**) including draft terms of appointment, a draft business sale agreement, and draft marketing and sale plan.

10.4. If clauses 10.14, 10.15 or 10.16 apply, Heidelberg Materials must provide the ACCC with a Proposed Divestiture Agent Notice within five Business Days after the relevant event occurs.

10.5. The ACCC shall have the discretion to approve or reject in writing the Proposed Divestiture Agent.

10.6. Without limiting the ACCC’s discretion, in deciding whether to approve a Proposed Divestiture Agent, the factors to which the ACCC may have regard include whether the:

(a) person named in the Proposed Divestiture Agent Notice or identified by the ACCC has the qualifications and experience necessary to carry out the functions of the Approved Divestiture Agent;

(b) person named in the Proposed Divestiture Agent Notice or identified by the ACCC is sufficiently independent of Heidelberg Materials;

(c) draft terms of appointment, draft business sale agreement and draft marketing and sale plan are consistent with this Undertaking; and

(d) draft terms of appointment, draft business sale agreement and draft marketing and sale plan are otherwise acceptable to the ACCC.

Appointment of the Approved Divestiture Agent

10.7. After receiving written notice from the ACCC of its approval of the Proposed Divestiture Agent, the draft terms of appointment, draft business sale agreement and draft marketing and sale plan, Heidelberg Materials must within two Business Days:

(a) appoint the person approved by the ACCC as the Approved Divestiture Agent on the Approved Terms of Appointment; and

(b) forward to the ACCC a copy of the executed Approved Terms of Appointment.

Failure to appoint

10.8. If:

(a) the Approved Divestiture Agent has not been appointed within 10 Business Days after the Divestiture Business becomes an Unsold Business;

(b) the Approved Divestiture Agent has not been appointed within 15 Business Days after the Approved Divestiture Agent resigns or otherwise ceases to act pursuant to clauses 10.14, 10.15 or 10.16; or

(c) the ACCC has not received a Proposed Divestiture Agent Notice pursuant to clause 10.3 and 10.4;

then clause 10.9 applies.

10.9. If clause 10.8 applies, the ACCC may, at its absolute discretion:

(a) identify and approve a person as the Approved Divestiture Agent, including approving the draft terms of appointment of the Approved Divestiture Agent, draft business sale agreement and draft marketing and sale plan; and/or

(b) direct Heidelberg Materials to appoint a person who the ACCC has deemed is an Approved Divestiture Agent.

Obligations and powers of the Approved Divestiture Agent

10.10. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Divestiture Agent include obligations on the Approved Divestiture Agent to:

(a) divest the Unsold Business only to an Approved Purchaser, at no minimum price;

(b) maintain his or her independence from Heidelberg Materials, apart from appointment to the role of Approved Divestiture Agent, including not form any relationship of the types described in paragraph 2.2(c) of Schedule 3 to this Undertaking with Heidelberg Materials for the period of his or her appointment;

(c) not use any confidential information gained through the divestiture of the Unsold Business other than for performing his or her functions as Approved Divestiture Agent;

(d) follow the Approved Marketing and Sale Plan;

(e) use his or her best endeavours to enter into a binding agreement for the divestiture of the Unsold Business as quickly as possible using the Approved Business Sale Agreement;

(f) co-operate with the requests of any Approved Independent Manager or Approved Independent Auditor appointed pursuant to this Undertaking;

(g) every 30 Business Days following appointment of the Approved Divestiture Agent, provide written reports directly to the ACCC which include:

  (i) information regarding the implementation of the Approved Business Sale Agreement and the Approved Marketing and Sale Plan including any previous changes approved by the ACCC;

  (ii) information regarding any suggested changes to any Approved Marketing and Sale Plan including any previous changes approved by the ACCC;

  (iii) an account and explanation of all disbursements, fees and charges incurred by the Approved Divestiture Agent in undertaking his or her duties by month and to the date of the report;

  (iv) a schedule of agreed fees of the Approved Divestiture Agent (including the fees of any adviser appointed under clause 10.11(d));

  (v) the efforts made to sell the Unsold Business;

  (vi) the identity of any advisers engaged;

  (vii) the identity of any persons expressing interest in the Unsold Business; and

  (viii) any other information required by the ACCC.

(h) within 30 Business Days after the completion of the divestiture of the Unsold Business, provide a written report directly to the ACCC which includes a final accounting of:

  (i) any moneys derived from the divestiture of the Unsold Business;

  (ii) all disbursements, fees and charges incurred by the Approved Divestiture Agent in fulfilling his or her duties; and

  (iii) all agreed fees of the Approved Divestiture Agent (including the fees of any adviser appointed under clause 10.11(d);

(i) immediately inform the ACCC of:

  (i) any issues that arise in relation to the implementation of the Approved Business Sale Agreement and any Approved Marketing and Sale Plan;

  (ii) non-compliance with this Undertaking by any person named in this Undertaking;

(iii) any offers for the Unsold Business;

(j) accept any offer for the Unsold Business upon instruction from Heidelberg Materials given in accordance with clause 10.13(d); and

(k) follow any direction given to him or her by the ACCC in relation to the performance of his or her functions as Approved Divestiture Agent pursuant to this Undertaking.

10.11. Heidelberg Materials must procure that any proposed terms of appointment for the Approved Divestiture Agent contain an irrevocable grant of power of attorney conferring all necessary power and authority on the Approved Divestiture Agent to:

(a) negotiate with purchasers to divest the Unsold Business on terms considered by the Approved Divestiture Agent in his or her sole discretion to be consistent with this Undertaking and the Approved Marketing and Sale Plan;

(b) execute any agreements with the Approved Purchaser required pursuant to clause 6.6;

(c) upon instruction pursuant to clause 10.13(d), complete the divestiture of the Unsold Business to the Approved Purchaser in accordance with the Approved Business Sale Agreement; and

(d) engage any external expertise, assistance or advice required by the Approved Divestiture Agent to perform his or her functions as the Approved Divestiture Agent.

10.12. Any irrevocable power of attorney granted pursuant to clause 10.11 will end upon resignation or termination of the Approved Divestiture Agent in accordance with clauses 10.14, 10.15 and 10.16, or in the event that the Unsold Business is divested in accordance with this Undertaking.

Heidelberg Materials' obligations in relation to the Approved Divestiture Agent

10.13. Without limiting its obligations in this Undertaking, Heidelberg Materials must from the end of the Initial Sale Period:

(a) comply with and enforce the Approved Terms of Appointment for the Approved Divestiture Agent;

(b) maintain and fund the Approved Divestiture Agent to carry out his or her functions; including:

(i) indemnifying the Approved Divestiture Agent for any expenses, loss, claim or damage arising directly or indirectly from the performance by the Approved Divestiture Agent of his or her functions as the Approved Divestiture Agent except where such expenses, loss, claim or damage arises out of the gross negligence, fraud, misconduct or breach of duty by the Approved Divestiture Agent;

(ii) providing and paying for any external expertise, assistance or advice required by the Approved Divestiture Agent to perform his or her functions as the Approved Divestiture Agent;

(iii) paying such fees as are agreed between the Approved Divestiture Agent and Heidelberg Materials (but not fees contingent on the price to be obtained for the Unsold Business); and

(iv) if an agreement as to fees cannot be reached between the Approved Divestiture Agent and Heidelberg Materials within 15 Business Days after the end of the Initial Sale Period, Heidelberg Materials agrees to pay such fees as are directed by the ACCC;

(c) not interfere with, or otherwise hinder, the Approved Divestiture Agent's ability to carry out his or her functions as the Approved Divestiture Agent, including:

(i) directing its personnel, including directors, contractors, managers, officers, employees and agents, to act in accordance with this clause 10;

(ii) providing access to the facilities, sites or operations of the Unsold Business as required by the Approved Divestiture Agent; and

(iii) providing to the Approved Divestiture Agent any information, documents or other assistance that they consider necessary for carrying out his or her functions as the Approved Divestiture Agent or for reporting to or otherwise advising the ACCC;

(d) within three Business Days after receiving notice from the ACCC pursuant to clause 6.6, Heidelberg Materials must instruct the Approved Divestiture Agent to complete the divestiture of the Unsold Business to the Approved Purchaser in accordance with the documents approved by the ACCC pursuant to clause 6.6; and

(e) other than in accordance with clause 10.13(d) of this Undertaking, not instruct the Approved Divestiture Agent to divest the Unsold Business.

Resignation, revocation or termination of the Approved Divestiture Agent

10.14. Heidelberg Materials must immediately notify the ACCC in the event that an Approved Divestiture Agent resigns or otherwise stops acting as an Approved Divestiture Agent before the completion of the divestiture of the Unsold Business.

10.15. The ACCC may revoke an Approved Divestiture Agent's status as the Approved Divestiture Agent if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading.

10.16. The ACCC may approve any proposal by, or alternatively may direct, Heidelberg Materials to terminate an Approved Divestiture Agent if in the ACCC's view the Approved Divestiture Agent acts inconsistently with the provisions of this Undertaking or the Approved Terms of Appointment.

11. Notification of key dates and ACCC requests for information

11.1. Heidelberg Materials must notify the ACCC and each Undertaking Appointment in writing of:

(a) the anticipated date of the Control Date, at least five Business Days before that date;

(b) the anticipated date of the completion of the divestiture of the Divestiture Business or Unsold Business (as applicable), at least five Business Days before that date;

(c) the occurrence of the Control Date, within one Business Day of that date; and

(d) the occurrence of the completion of the divestiture of the Divestiture Business or Unsold Business (as applicable), within one Business Day of that date.

11.2. The ACCC may direct Heidelberg Materials in respect of its compliance with this Undertaking to, and Heidelberg Materials must:

(a) furnish information to the ACCC in the time and in the form requested by the ACCC;

(b) produce documents and materials to the ACCC within Heidelberg Materials' custody, power or control in the time and in the form requested by the ACCC; and/or

(c) attend the ACCC at a time and place appointed by the ACCC to answer any questions the ACCC (its Commissioners, its staff or its agents) may have.

11.3. Any direction made by the ACCC under clause 11.2 will be notified to Heidelberg Materials, in accordance with clause 18.2.

11.4. In respect of Heidelberg Materials' compliance with this Undertaking or an Undertaking Appointment's compliance with its Approved Terms of Appointment, the ACCC may request any Undertaking Appointment to:

(a) furnish information to the ACCC in the time and in the form requested by the ACCC;

(b) produce documents and materials to the ACCC within the Undertaking Appointment's custody, power or control in the time and in the form requested by the ACCC; and/or

(c) attend the ACCC at a time and place appointed by the ACCC to answer any questions the ACCC (its Commissioners, its staff or its agents) may have.

11.5. Heidelberg Materials will use its best endeavours to ensure that an Undertaking Appointment complies with any request from the ACCC in accordance with clause 11.4.

11.6. Information furnished, documents and material produced or information given in response to any request or direction from the ACCC under this clause 11 may be used by the ACCC for any purpose consistent with the exercise of its statutory duties.

11.7. The ACCC may in its discretion:

(a) advise any Undertaking Appointment of any request made by it under this clause 11; and/or

(b) provide copies to any Undertaking Appointment of any information furnished, documents and material produced or information given to it under this clause 11.

11.8. Nothing in this clause 11 requires the provision of information or documents in respect of which Heidelberg Materials has a claim of legal professional or other privilege.

12. Disclosure of this Undertaking

12.1. Heidelberg Materials and the ACCC agree that Schedule 5 will remain confidential until after the completion of the divestiture of the Divestiture Business or Unsold Business.

12.2. Heidelberg Materials acknowledges that the ACCC may provide each Undertaking Appointment with a copy of this Undertaking which includes unredacted versions of Confidential Schedule 5.

12.3. Heidelberg Materials acknowledges that the ACCC may, subject to clause 12.1:

(a) make this Undertaking publicly available;

(b) publish this Undertaking on its Public Section 87B Undertakings Register and Public Mergers Register; and

(c) from time to time publicly refer to this Undertaking.

12.4. Nothing in clause 12.1 or the confidential parts of this Undertaking referred to in clause 12.1 prevents the ACCC from disclosing such information as is:

(a) required by law;

(b) permitted by section 155AAA of the Act;

(c) necessary for the purpose of enforcement action under section 87B of the Act; or

(d) necessary for the purpose of making such market inquiries as the ACCC thinks fit to assess the impact on competition arising in connection with this Undertaking.

12.5. Nothing in clause 12.1 or the confidential parts of this Undertaking referred to in clause 12.1 prevents the ACCC from using the information contained in this Undertaking for any purpose consistent with its statutory functions and powers.

13. Obligation to procure

13.1. Where the performance of an obligation under this Undertaking requires a Related Body Corporate of Heidelberg Materials to take or refrain from taking some action, Heidelberg Materials will procure that Related Body Corporate to take or refrain from taking that action.

14. No Derogation

14.1. This Undertaking does not prevent the ACCC from taking enforcement action at any time whether during or after the period of this Undertaking in respect of any breach by Heidelberg Materials of any term of this Undertaking.

14.2. Nothing in this Undertaking is intended to restrict the right of the ACCC to take action under the Act for penalties or other remedies in the event that Heidelberg Materials does not fully implement and/or perform its obligations under this Undertaking or in any other event where the ACCC decides to take action under the Act for penalties or other remedies.

15. Change of Control

15.1. In the event that a Change of Control is reasonably expected to occur, Heidelberg Materials must:

(a) notify the ACCC of this expectation as soon as practicable; and

(b) only implement a Change of Control to another person or entity if that person or entity has given a section 87B undertaking to the ACCC that requires it to comply with the same obligations as are imposed on Heidelberg Materials pursuant to this Undertaking, or on terms that are otherwise acceptable to the ACCC, unless the ACCC has notified Heidelberg Materials in writing that a section 87B undertaking under this clause is not required.

16. Costs

16.1. Heidelberg Materials must pay all of its own costs incurred in relation to this Undertaking.

17. Jurisdiction

17.1. Heidelberg Materials AG irrevocably submits to the jurisdiction of the Federal Court of Australia in relation to this Undertaking.

17.2. Unless and until notified in writing by Heidelberg Materials AG to the ACCC of the appointment of another person as agent within Australia, Heidelberg Materials AG appoints Heidelberg Materials Australia Holdings Pty Ltd ACN 611 565 649, as its agent for the purposes of service of process in relation to this Undertaking.

18. Notices

Giving Notices

18.1. Any notice or communication to the ACCC pursuant to this Undertaking must be sent to:

Email address: mergers@accc.gov.au
Attention: Executive General Manager
Mergers and Exemptions Assessment Division

With a copy sent to: mergersru@accc.gov.au
Attention: Director, Remedies Unit
Merger Surveillance & Coordination Branch
Mergers and Exemptions Assessment Division

18.2. Any notice or communication to Heidelberg Materials pursuant to this Undertaking must be sent to:

Name: Victoria Vincent

Address: 14/35 Clarence Street, Sydney NSW 2000

Email Address: victoria.vincent@heidelbergmaterials.com

Fax number: N/A

Attention: N/A

With a copy sent to:

Name: Lisa Huett

Address: Level 27, 447 Collins Street, Melbourne VIC 3000

Email Address: lisa.huett@mallesons.com

Fax number: N/A

Attention: N/A

and to:

Name: Jennifer Barron

Address: Governor Phillip Tower, Level 61, 1 Farrer Place, Sydney NSW 2000

Email Address: jennifer.barron@mallesons.com

Fax number: N/A

Attention: N/A

18.3. If sent by post, notices are taken to be received three Business Days after posting (or seven Business Days after posting if sent to or from a place outside Australia).

18.4. If sent by email, notices are taken to be received at the time shown in the email as the time the email was sent.

Change of contact details

18.5. Heidelberg Materials must notify the ACCC of a change to its contact details within three Business Days.

18.6. Any notice or communication will be sent to the most recently advised contact details and subject to clauses 18.3 and 18.4, will be taken to be received.

19. Defined terms and interpretation

Definitions in the Dictionary

19.1. A term or expression starting with a capital letter:

(a) which is defined in the Dictionary in Part 1 of Schedule 1 (Dictionary), has the meaning given to it in the Dictionary; or

(b) which is defined in the Corporations Act, but is not defined in the Dictionary, has the meaning given to it in the Corporations Act.

Interpretation

19.2. Part 2 of Schedule 1 sets out rules of interpretation for this Undertaking.

Executed as an Undertaking

Executed by Heidelberg Materials Australia Holdings Pty Ltd ACN 611 565 649 pursuant to section 127(1) of the *Corporations Act 2001* by:

Signature of director		Signature of a director/company secretary
Name of director (print)		Name of director/company secretary (print)
Date		Date

EXECUTED by Heidelberg Materials AG by its authorised signatories:

Signature of witness		Signature of authorised signatory
Name of witness (print)		Name of authorised signatory
		Position of authorised signatory
Signature of witness		Signature of authorised signatory
Name of witness (print)		Name of authorised signatory
		Position of authorised signatory
Date		Date

Accepted by the Australian Competition and Consumer Commission pursuant to section 87B of the *Competition and Consumer Act 2010* (Cth) on:

Date

and signed on behalf of the Commission:

Chair

Date

Schedule 1 – Dictionary and interpretation

1. Dictionary

ACCC means the Australian Competition and Consumer Commission.

Act means the *Competition and Consumer Act 2010* (Cth).

Agreements means any contract, arrangement or understanding, including any contract, arrangement or understanding to renew, amend, vary or extend any contract, arrangement or understanding.

Approved Audit Plan means the plan approved by the ACCC in accordance with the terms of this Undertaking, by which the Approved Independent Auditor will audit and report upon compliance with this Undertaking.

Approved Business Sale Agreement means the standard form contract for the divestiture of the Unsold Business which has been approved by the ACCC in accordance with the terms of this Undertaking.

Approved Divestiture Agent means the person approved by the ACCC and appointed under clause 10 of this Undertaking.

Approved Independent Auditor means the person approved by the ACCC and appointed under clause 9 of this Undertaking.

Approved Independent Manager means the person approved by the ACCC and appointed under clause 8 of this Undertaking.

Approved Marketing and Sale Plan means the plan approved by the ACCC in accordance with the terms of this Undertaking, by which the Approved Divestiture Agent will market and effect the divestiture of the Unsold Business.

Approved Purchaser means the person approved by the ACCC under clause 6 of this Undertaking.

Approved Sale and Purchase Agreement means the contract approved by the ACCC in accordance with the terms of this Undertaking, by which the Heidelberg Materials will divest the Divestiture Business to the Approved Purchaser and Approved Purchaser will acquire the Divestiture Business from Heidelberg Materials.

Approved Separation and Management Plan means the plan approved by the ACCC in accordance with the terms of this Undertaking, by which the Approved Independent Manager will:

a) separate the Divestiture Business from any business to be retained by Heidelberg Materials; and

b) manage and operate the Divestiture Business independently of Heidelberg Materials and any retained business.

Approved Transitional Supply Agreement means any agreement, for the supply of goods or services (other than Technical Assistance) by Heidelberg Materials to the Approved Purchaser, approved by the ACCC in accordance with the terms of this Undertaking.

Approved Transitional Technical Assistance Agreement means any agreement, for the supply of Technical Assistance by Heidelberg Materials to the Approved Purchaser, approved by the ACCC in accordance with the terms of this Undertaking.

Approved Terms of Appointment means the terms of appointment for the Approved Independent Manager, Approved Independent Auditor or Approved Divestiture Agent, as applicable, as approved by the ACCC in accordance with the terms of this Undertaking.

Asset Sale Agreement means the sale agreement for the Yalkara Quarry, Bioela QLD dated 8 June 2026 (as subsequently amended on 17 July 2026), provided to the ACCC on 20 July 2026.

Associated Entity has the meaning given by section 50AAA of the Corporations Act.

Audit Report has the meaning given to it in clause 9.12 of this Undertaking.

Business Day means a day other than a Saturday or Sunday on which banks are open for business generally in the Australian Capital Territory.

Change of Control means:

- the assignment or other transfer of the legal or beneficial ownership of some or all of the share capital of Heidelberg Materials to any other person or entity that may impact compliance with this Undertaking in its entirety; or
- the sale or transfer of any assets necessary, or which may be necessary, to enable Heidelberg Materials to continue to comply with this Undertaking in its entirety.

Commencement Date means the date described in clause 3.1 of this Undertaking.

Control Date means the date on which the Proposed Acquisition is completed.

Consents means any Government Consents or Third Party Consents.

Corbet's means Corbet Quarries and Concrete Pty Ltd (ACN 614 710 360)

Corporations Act means the *Corporations Act 2001* (Cth).

Divestiture Business means the items described in Schedule 4 to this Undertaking.

Entities Connected has the meaning given by section 64B of the Corporations Act.

Establishment Audit has the meaning given to it in clause 9.13(a) of this Undertaking.

Government Consents means any consents from any government agency required for the assignment, novation, sale, sub-licensing or transfer of any assets, licences, permits, approval or contracts required for the operation of the Divestiture Business.

Heidelberg Materials means Heidelberg Materials AG and Heidelberg Materials Australia Holdings Pty Ltd collectively.

Heidelberg Materials AG means Heidelberg Materials AG of Berliner Straße 6, 69120 Heidelberg, Germany.

Heidelberg Materials Australia Holdings Pty Ltd means Heidelberg Materials Australia Holdings Pty Ltd (ACN 611 565 649).

Heidelberg Materials Australia Pty Ltd means Heidelberg Materials Australia Pty Ltd (ACN 009 679 734).

HMA means the Heidelberg Materials Australia group (including Heidelberg Materials Australia Pty Ltd and Heidelberg Materials Australia Holdings Pty Ltd).

Holding Company has the meaning given by section 9 of the Corporations Act.

Initial Sale Period is defined in clause 1 of Confidential Schedule 5 to this Undertaking.

MAAS means Maas Group Holdings Limited (ACN 632 994 542).

Material Change means any change to the structure, attributes, extent or operations of the Divestiture Business or product or service sold by a Divestiture Business that may affect, or impact on, the competitiveness of the Divestiture Business.

Material Contract means any Agreement that is necessary for the operation of the Divestiture Business.

Proposed Acquisition is defined in clause 2 of this Undertaking.

Proposed Divestiture Agent means a person named in a Proposed Divestiture Notice.

Proposed Divestiture Agent Notice has the meaning given to it in clause 10.3 of this Undertaking.

Proposed Independent Auditor means a person named in a Proposed Independent Auditor Notice.

Proposed Independent Auditor Notice has the meaning given to it in clause 9.2 of this Undertaking.

Proposed Independent Manager means a person named in a Proposed Independent Manager Notice.

Proposed Independent Manager Notice has the meaning given to it in clause 8.2 of this Undertaking.

Proposed Purchaser means a person named in a Proposed Purchaser Notice.

Proposed Purchaser Notice has the meaning given to it in clause 6.2 of this Undertaking.

Proposed Undertaking Appointment means a Proposed Independent Manager, Proposed Independent Auditor or Proposed Divestiture Agent.

Public Mergers Register means the ACCC's public register of merger clearances, available at www.accc.gov.au.

Public Section 87B Undertakings Register means the ACCC's public register of section 87B undertakings, available at www.accc.gov.au.

Related Bodies Corporate has the meaning given to it by section 50 of the Corporations Act.

Related Entities has the meaning given to it by section 9 of the Corporations Act.

Related Parties has the meaning given to it by section 228 of the Corporations Act.

Subsidiary has the meaning given by section 9 of the Corporations Act.

Technical Assistance includes advising on technical knowledge documentation, supporting the Approved Purchaser on acquiring specific assets necessary for the ongoing conduct of the Divestiture Business, providing staff with suitable experience and skills to assist and/or advice on technical issues, assisting in training for the Approved Purchaser's staff, and providing guidance on regulatory and legal aspects relating to the transfer of or application for licences.

Third Party Consents means any Consent from any entity that is not a government agency required for the assignment, novation, sale, sub-licensing or transfer of any assets, licences, permits, approval or contracts required for the operation of the Divestiture Business.

Transferred Personnel has the meaning given to it in clause 5.7 of this Undertaking.

Undertaking is a reference to all provisions of this document, including its schedules and as varied from time to time under section 87B of the Act.

Undertaking Appointment means the Approved Independent Manager, the Approved Independent Auditor or the Approved Divestiture Agent, as applicable.

Unsold Business has the meaning given to it in clause 10.1 of this Undertaking.

2. Interpretation

2.1 In the interpretation of this Undertaking, the following provisions apply unless the context otherwise requires:

(a) a reference to this Undertaking includes all of the provisions of this document including its schedules;

(b) headings are inserted for convenience only and do not affect the interpretation of this Undertaking;

(c) if the day on which any act, matter or thing is to be done under this Undertaking is not a Business Day, the act, matter or thing must be done on the next Business Day;

(d) a reference in this Undertaking to any law, legislation or legislative provision includes any statutory modification, amendment or re-enactment, and any subordinate legislation or regulations issued under that legislation or legislative provision;

(e) a reference in this Undertaking to any company includes its Related Bodies Corporate;

(f) a reference in this Undertaking to any agreement or document is to that agreement or document as amended, novated, supplemented or replaced;

(g) a reference to a clause, part, schedule or attachment is a reference to a clause, part, schedule or attachment of or to this Undertaking;

(h) an expression importing a natural person includes any company, trust, partnership, joint venture, association, body corporate or governmental agency;

(i) where a word or phrase is given a defined meaning, another part of speech or other grammatical form in respect of that word or phrase has a corresponding meaning;

(j) a word which denotes the singular also denotes the plural, a word which denotes the plural also denotes the singular.

(k) a reference to the words 'such as', 'including', 'particularly' and similar expressions is to be construed without limitation;

(l) a construction that would promote the purpose - or object - underlying the Undertaking (whether expressly stated or not) will be preferred to a construction that would not promote that purpose or object;

(m) material not forming part of this Undertaking may be considered to:

   (i) confirm the meaning of a clause is the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the competition concerns intended to be addressed by the Undertaking and the clause in question; or

   (ii) determine the meaning of the clause when the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the purpose or object underlying the Undertaking, leads to a result that does not promote the purpose or object underlying the Undertaking;

(n) in determining whether consideration should be given to any material in accordance with paragraph (m), or in considering any weight to be given to any such material, regard must be had, in addition to any other relevant matters, to the:

   (i) effect that reliance on the ordinary meaning conveyed by the text of the clause would, have (taking into account its context in the Undertaking and whether that meaning promotes the purpose or object of the Undertaking); and

   (ii) need to ensure that the result of the Undertaking is to completely address any ACCC competition concerns;

(o) the ACCC may authorise the ACCC Mergers Review Committee, a member of the ACCC or a member of the ACCC staff, to exercise a decision making function under this Undertaking on its behalf and that authorisation may be subject to any conditions which the ACCC may impose;

(p) in performing its obligations under this Undertaking, Heidelberg Materials will do everything reasonably within its power to ensure that its performance of those obligations is done in a manner which is consistent with promoting the purpose and object of this Undertaking;

(q) a reference to:

(i) a thing (including, but not limited to, a chose in action or other right) includes a part of that thing;

(ii) a party includes its successors and permitted assigns; and

(iii) a monetary amount is in Australian dollars.

Schedule 2 – Proposed Purchaser Notice Form

This form sets out the information required by the ACCC in relation to a Proposed Purchaser.

Please note that it is an offence under section 137.1 of the Criminal Code Act 1995 (Cth) to give information to a Commonwealth entity knowing that the information is false or misleading or omits any matter or thing without which the information is misleading.

1. Method of Delivery to the ACCC

The completed form with requested documents attached should be provided to the ACCC using the following method:

Email

Subject line: Proposed Purchaser Notice – HMA / MAAS

Address: mergers@accc.gov.au

Attention: Executive General Manager – Mergers and Exemptions Assessment Division

With an email copy sent to:

Address: mergersru@accc.gov.au

Attention: Director, Remedies Unit – Merger Surveillance & Coordination Branch, Mergers and Exemptions Assessment Division

2. Information Required

The ACCC requires the following information in order to assess a Proposed Purchaser.

2.1 Proposed Purchaser details:

(a) Name of the Proposed Purchaser;

(b) Address;

(c) Contact name;

(d) Telephone number;

(e) Other contact details.

2.2 A submission containing the following information:

(a) a description of the business carried on by the Proposed Purchaser including the locations in which the Proposed Purchaser carries on its business;

(b) details of the Proposed Purchaser's experience in the relevant market(s);

(c) the names of the owner(s) and the director(s) of the Proposed Purchaser;

(d) details of any of the following types of relationships between Heidelberg Materials and the Proposed Purchaser or confirmation that no such relationship exists whether within Australia or outside of Australia:

(i) Heidelberg Materials and the Proposed Purchaser are Associated Entities;

(ii) Heidelberg Materials is an Entity Connected with the Proposed Purchaser;

(iii) the Proposed Purchaser is an Entity Connected with Heidelberg Materials;

(iv) Heidelberg Materials and the Proposed Purchaser are Related Entities;

(v) Heidelberg Materials and the Proposed Purchaser are Related Parties;

(vi) any Related Party, Related Entity or Entity Connected with Heidelberg Materials is a Related Party, Related Entity or Entity Connected with the Proposed Purchaser;

(vii) Heidelberg Materials and the Proposed Purchaser have a contractual relationship or had one within the past three years, other than those attached to this form;

(viii) the Proposed Purchaser is a supplier of Heidelberg Materials or has been in the past three years;

(ix) Heidelberg Materials is a supplier of the Proposed Purchaser or has been in the past three years; and

(x) any other relationship between Heidelberg Materials and the Proposed Purchaser that allows one to affect the business decisions of the other;

(e) a section addressing the following factors, including any information adverse to the Proposed Purchaser, in the power, possession or control of Heidelberg Materials:

(i) whether the draft sale and purchase agreement is consistent with this Undertaking;

(i) whether the Proposed Purchaser will complete the transaction as contemplated by the draft sale and purchase agreement;

(ii) whether the Proposed Purchaser is of good financial standing;

(iii) whether the Proposed Purchaser has an intention to maintain and operate the Divestiture Business as a going concern;

(iv) whether the Proposed Purchaser is able to conduct the Divestiture Business effectively;

(v) whether the divestiture of the Divestiture Business to the Proposed Purchaser will address any competition concerns of the ACCC, including any relationships (including but not limited to shareholding interests, other proprietary interests, contracts, arrangements or understandings) between the Proposed Purchaser and other entities in a relevant market, and the likely long-term viability and competitiveness of the Divestiture Business under the ownership of the Proposed Purchaser; and

(vi) any other matters that may affect the Proposed Purchaser's capacity or ability to acquire or operate the Divestiture Business, such as outstanding legal action or disputes.

2.3 Please also attach to this form:

(a) the finalised draft of the sale and purchase agreement for approval by the ACCC in accordance with this Undertaking.

(b) the finalised draft of any transitional technical assistance agreement for approval by the ACCC in accordance with this Undertaking.

(c) the finalised draft of any transitional supply agreement for approval by the ACCC in accordance with this Undertaking.

(d) any documents required to support the information provided by Heidelberg Materials pursuant to this form.

Schedule 3 – Proposed Undertaking Appointment Form

This form sets out the information required by the ACCC in relation to proposed appointment of the following positions under the Undertaking:

- Proposed Independent Manager;
- Proposed Independent Auditor; or
- Proposed Divestiture Agent

(the **Undertaking Appointment).**

This form is to be used for each of the above appointments.

Please note that it is an offence under section 137.1 of the Criminal Code Act 1995 (Cth) to give information to a Commonwealth entity knowing that the information is false or misleading or omits any matter or thing without which the information is misleading.

1. Method of Delivery to the ACCC

The completed form with requested documents attached may be provided to the ACCC using the following method:

Email

Subject line:	Proposed [only include relevant Undertaking Appointment i.e. Independent Manager/Independent Auditor/Divestiture Agent] Notice – HMA / MAAS
Address:	mergers@accc.gov.au
Attention:	Executive General Manager – Mergers and Exemptions Assessment Division

With an email copy sent to:

Address:	mergersru@accc.gov.au
Attention:	Director, Remedies Unit – Merger Surveillance & Coordination Branch, Mergers and Exemptions Assessment Division

2. Information Required

The ACCC requires the following information in order to assess a proposed Independent Manager, Independent Auditor or Divestiture Agent (i.e. the relevant Undertaking Appointment).

2.1 Proposed Undertaking Appointment details:

(a) the name of the Proposed Undertaking Appointment; and

(b) the name of the proposed Undertaking Appointment's employer and contact details including:

(i) Address;

(ii) Contact name;

(iii) Telephone number;

(iv) Other contact details.

2.2 A submission containing the following information:

(a) details of the Undertaking Appointment's qualifications and experience relevant to his or her proposed role pursuant to the Undertaking;

(b) the names of the owner(s) and the director(s) of the Undertaking Appointment's employer;

(c) details of any of the following types of relationships between Heidelberg Materials and the Undertaking Appointment or the Undertaking Appointment's employer or confirmation that no such relationship exists whether within Australia or outside of Australia:

(i) Heidelberg Materials and the Undertaking Appointment's employer are Associated Entities;

(ii) Heidelberg Materials is an Entity Connected with the Undertaking Appointment's employer;

(iii) The Undertaking Appointment's employer is an Entity Connected with Heidelberg Materials;

(iv) Heidelberg Materials and the Undertaking Appointment's employer are Related Entities;

(v) Heidelberg Materials and the Undertaking Appointment's employer are Related Parties;

(vi) any Related Party, Related Entity or Entity Connected with Heidelberg Materials is a Related Party, Related Entity or Entity Connected with the Undertaking Appointment;

(vii) Heidelberg Materials and the Undertaking Appointment or the Undertaking Appointment's employer have a contractual relationship or had one within the past three years, other than those attached to this form;

(viii) the Undertaking Appointment's employer is a supplier of Heidelberg Materials or has been in the past three years;

(ix) Heidelberg Materials is a supplier of the Undertaking Appointment's employer or has been in the past three years; and

(x) any other relationship between Heidelberg Materials and the Undertaking Appointment or the Undertaking Appointment's employer that allows one to affect the business decisions of the other;

(d) details of any existing or past contractual relationships between the Undertaking Appointment or the Undertaking Appointment's employer and the ACCC within the past three years.

2.3 A document outlining the terms of appointment for the proposed Undertaking Appointment. This should identify the basis on which fees will be paid, including disclosure of any proposed performance-based fees.

3. Specific Information required for Proposed Undertaking Appointments

The ACCC requires the below information in relation to the relevant Undertaking Appointment.

Proposed Independent Auditor

3.1 A finalised draft audit plan for the Divestiture Business, in an editable format, drafted by the Proposed Independent Auditor and outlining (to the extent possible) the Proposed Independent Auditor’s plans regarding the Establishment Audit and the Audit Report.

Proposed Divestiture Agent

3.2 The finalised draft business sale agreement drafted by the Proposed Divestiture Agent in consultation with Heidelberg Materials, in an editable format. The draft business sale agreement is to provide for the divestiture of the Unsold Business.

3.3 The Proposed Divestiture Agent’s draft marketing and sale plan for the Unsold Business, in an editable format.

Proposed Independent Manager

3.4 The finalised draft separation and management plan for the Divestiture Business, in an editable format, detailing the measures and timing to be implemented by Heidelberg Materials and the Approved Independent Manager in order to fulfil Heidelberg Materials’ and the Approved Independent Manager’s obligations pursuant to this Undertaking. This plan is to be drafted by the Proposed Independent Manager in consultation with Heidelberg Materials to achieve the objectives of the Undertaking including:

(a) the intended mode of operation of the Divestiture Business until completion of its divestiture;

(b) separation measures to ensure the Divestiture Business is operated in a manner which is financially and operationally separate from Heidelberg Materials, including the;

(i) separation of the books and records of the Divestiture Business from those of Heidelberg Materials;

(ii) severance of the Divestiture Business’ participation in any private shared information technology networks, to the extent possible without compromising the viability of the Divestiture Business;

(iii) implementation of specific electronic, information and physical security measures to maintain the confidentiality of any competitively sensitive information of the Divestiture Business; and

(iv) severance of arrangements to share personnel and plant between the Divestiture Business and any businesses to be retained by Heidelberg Materials, to the extent possible without compromising the viability of the Divestiture Business;

(c) details of contracts for the provision of goods or services to the Divestiture Business which will expire after the completion of the divestiture of the Divestiture Business to the Approved Purchaser and the actions which will be taken to ensure they are replaced, renewed and/or renegotiated on commercial terms favourable to the Divestiture Business;

(d) personnel planning to maintain appropriate personnel levels and ensure that the Divestiture Business has access to all personnel necessary to operate the Divestiture Business;

(e) any Material Changes to the Divestiture Business required in order to fulfil Heidelberg Materials' and the Approved Independent Manager's obligations pursuant to the Undertaking;

(f) the cooperation required from the Approved Independent Manager with Heidelberg Materials in relation to the divestiture of the Divestiture Business, including:

(i) the activities to be conducted by the Approved Independent Manager that are necessary for the effective operation of the Divestiture Business, having regard to the nature of the Divestiture Business (including the extent to which the Divestiture Business already has a management structure in place prior to the proposed acquisition that will be retained during the hold separate period);

(ii) the method by which due diligence information, site visits and personnel interviews by and to prospective purchasers of the Divestiture Business will be managed;

(iii) the method by which the Approved Independent Manager and Heidelberg Materials will preserve the confidentiality of the Divestiture Business' competitively sensitive information from Heidelberg Materials and its advisers throughout this process; and

(iv) a protocol whereby the Approved Independent Manager can provide any information requested by Heidelberg Materials without disclosing the details of the Divestiture Business' competitively sensitive information to Heidelberg Materials.

Schedule 4 – Divestiture Business

The Divestiture Business consists of all assets used in and comprising the Yalkara quarry business located at Orange Creek Road, Biloela, QLD 4715, including (unless excluded at the Approved Purchaser's election):

(a) the lease registered with dealing no. 714606561 of Lot 22 Crown Plan M278 from Peter Gordon Graham and Desley Graham to Heidelberg Materials Australia Pty Ltd dated 26 July 2012 (a copy of which is enclosed at Schedule 2 of the Approved Sale and Purchase Agreement);

(b) the plant and equipment described at Schedule 3 of the Approved Sale and Purchase Agreement, which includes:

   (i) (**civil works**) yard paving, material storage bins, fencing, a manager office and lunchroom, a laboratory, maintenance workshop, internal haul roads, retaining walls;

   (ii) (**fixed plant**) jaw crusher, precoat plant (including foundations, aggregate weigh bin, loading conveyor, electrical generator and switchboard), electrical control room, air compressor, water tanks, pipes, pumps and connections, fuel tank;

   (iii) (**mobile plant**) dump trucks, water cart, front end loaders, excavator, site utility truck;

   (iv) (**IT**) weighbridge; and

(c) the stock described at Schedule 5 of the Approved Sale and Purchase Agreement.

Confidential Schedule 5

1. **[Redacted – Confidential]**